JUDICIARY OF TANZANIA

A HANDBOOK FOR MAGISTRATES IN THE PRIMARY COURTS

REVISED AND UPDATED VERSION

Published by Judiciary of Tanzania
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TABLE OF CONTENTS

LIST OF CASES VII

FOREWORD XII

ACKNOWLEDGMENT XV

ABBREVIATIONS XVII

CHAPTER ONE 1

PRIMARY COURTS MANUAL 1

1.Object of manual 1

2. Maxims for magistrates 1

3. Basic rules for hearing cases..... 3

4. Functions of court clerks(Record Management Assistants) 5

5. Establishment and constitution of Primary Courts..... 7

6. Assessors 8

7. Civil jurisdiction of primary courts 10

8. Customary law..... 11

9. Powers of primary courts in civil proceedings..... 12

10. Powers of primary courts in administration cases 13

11. Procedure in civil proceedings..... 16

12. Summonses and service-civil proceedings..... 19

13. Procedure at hearing of civil proceedings 23

14. Parties absent in civil proceedings 25

15. Setting aside order for *"exparte"* proof (Rule 29 of the Primary Courts Civil Procedure Rules) 27

16. Setting aside an *"ex-parte"* decision (rule 30 of the Primary Courts Civil Procedure Rules) 28

17. Execution 29

18. Attachment 32

19. Sale in execution 34

20.Criminal jurisdiction of primary courts 37

21. Powers of primary courts in criminal proceedings 38

22. Service of summons-criminal proceedings 46

23. Warrants of arrest 47

24. Powers of arrest without warrant 48

25. Remand 49

26. Bail 50

27. Search warrants 51

28. Charges 53

29. Trial of offences 53

30. Parties absent in criminal proceedings 53

31. Assessing punishment 54

32. Fine or imprisonment 56

33. Imprisonment in default of payment of fine 57

34. Offenders cannot choose their form of punishment 58

35. Scale of imprisonment in default of payment of fine 58

36. Confirmation of certain sentences and orders 59

37. Contempt of court 61

38. Application of Criminal Procedure Act, Cap, 20 in Primary Courts .. 62

39. Juvenile court (Governed by the Law of the Child Act,2009) 63

40. Transfer from primary court-section 47 of the Act (MCA) 64

41. Transfer to primary court – section 48 of the Act (MCA) 65

42. Additional provisions-section 49 of the Act (MCA)..... 66

43. The Appeal System 67

44. Criminal appeals..... 68

45. Civil appeals..... 69

46. Advocates and public prosecutors 71

47. Representatives 71

48. Justices of the peace 72

49. Limitation of proceedings 73

50. Evidence 74

51. Oath of Witnesses and Interpreters 74

52. Fees 74

53. Exhibits 75

54. Lock-ups (section 70 of the MCA) 77

55. Forms, registers and returns 77

56. Custody of records 77

APPENDIXES 78

Appendix 1: Proceedings in a Civil case 78

Appendix 2: Proceedings in a Criminal case 84

Appendix 3: Powers of arrest without a warrant in Tanzania 90

Appendix 4: Forms, Registrers and Returns 95

Appendix 5: Specimen charge sheets 99

CHAPTER TWO 116

A GUIDE FOR JUSTICES OF THE PEACE 116

A GUIDE FOR JUSTICES OF THE PEACE ASSIGNED TO DISTRICT COURTS 116

A GUIDE FOR JUSTICES OF THE PEACE ASSIGNED TO PRIMARY COURTS 132

CHAPTER THREE 144

JUDICIAL ETHICS AND CONDUCT 144

3.1: Meaning and general overview 144

3.2: The Purpose of Judicial Ethics and Conduct 146

3.3: Sources of Judicial Ethics and Conduct 146

3.4: Breach of the Code of Conduct 147

3.5: Fundamental matters contained in the Codes of conduct and ethics 148

3.5.1: The Rules of the Code of Conduct for Judicial Officers of Tanzania, 1984 148

3.5.2: Bangalore Principles of Judicial Conduct, 2003.....148

3.5.3: Code of Ethics and Conduct for Public Service 150

3.5.4: The Leadership Code of Ethics Act, Cap 398 RE 2015 151

3.6: Disciplinary Procedures for Magistrates.....159

3.6.1: The Judicial Service Commission(JSC).....159

3.6.2: The Judicial Officers Ethics Committee.....161

3.6.3: The Regional Judicial Officers Ethics Committee 162

3.6.4: The District Judicial Officers Ethics Committee.....163

3.6.5: Dismissal and removal 165

3.6.6: Disciplinary Charges 165

3.6.7: Some instances of misconduct.....166

CHAPTER FOUR 168

SOME GUIDING PRINCIPLES IN ADJUDICATION OF CASES IN PRIMARY COURTS FROM THE DECISIONS OF THE HIGH COURT AND THE COURT OF APPEAL 168

LIST OF CASES

A

Abdallah Mkumba v. Mohammed Ililame [2001] TLR 326

Abdul Salum v. Republic [1967] HCD n.107

Amina Bakari v. Ramadhani Rajabu [1984] TLR 41

Andrea v. Republic [1971] HCD n.141

Antony v. Republic [1971] HCD n.146

Asha Shemzigwa v. Halima Shekigenda [1998] TLR 254

Athanas Makungwa v. Darini Hassani [1983] TLR 132

B

Bahawari v. Bahawari [1971] HCD n.102

Bi Hawa Mohamed v. Ally Sefu [1983] TLR 32

Bombo v. Gadiye [1971] HCD n.84

Bushangila Ng'oga v. Manyanda Maige [2002] TLR 335

C

Cecilia Mshamu v. Dick Kawoga [2001] TLR 318

Chairman of Kyangala Village v. Moses Mwamalala and 21 Others [2001] TLR 232

Clemence v. Esteria [1971] HCD n.32

D

Dadi Saidi Kwanga v. Nurdin Akachapa [1999] TLR 398

Daudi Mwaspile v. Republic [1967] HCD n.59

Daniel Masalu v. Mussa Shadrack [1987] TLR 35

Daniel Mlingwa v. Mwaja Mkotyo [1997] TLR 39

Dinya v. Dawa [1971] HCD n.30

E

Emmanuel Paul v. Wilfred Rwemigira [1969] HCD n.12

Embassy Mabeja v. Lugodeja Lugushwa [2001] TLR 293

Expedito Daudi Chunga v. Nsombo and Co. Ltd [2004] TLR 319

F

Fanuel Msengi v. Peter Mtumba [1992] TLR 109

Francis Adolf v. Ibrahim Mustafa [1989] TLR 219

G

Gregory Raphael v. Pastory Rwehabula [2005] TLR 99

H

Halifa v. Hadija [1971] HCD n.1

Halima Athumani v. Maulidi Hamisi [1991] TLR 179

Hamea Mohamed v. Omari Abdullah [1967] HCD n.48

Hassani Msange Sarota v. Republic [1969] HCD n.40

Hemed Stamim v. Renata Mashayo [1994] TLR 197

Herman v. Ndava [1971] HCD n.93

Hussein v. Ali [1971] HCD n.20

J

Jacob Mwangoka v. Gurd Amon [1987] TLR 165

Japhet Mwangwa v. Mtemo Senge [1969] HCD n.21

Japhet Thadei Msigwa v. Republic, Criminal Appeal No. 367 of 2008, CAT (unreported)

Jayant D. Desai v. Hasho Warsama [1967] HCD n.171

Jisho and Another v. Republic [1971] HCD n.131

John Kirakwe v. Iddi Siko [1989] TLR 215

John Kiwanuka v. Republic [1967] HCD n.102

Joseph Lomayani and Others v. Melekizeseck Michael [1997] TLR 192

Juma Rashid Nanyanje v. Shekhe Farisi [1999] TLR 29

K

Kalelsela v. Mwamalilo [1971] HCD n.2

Kalumuna v. Mukandala [1971] HCD n. 16

Katamba Mwaisunga v. Republic [1967] HCD n.58

Kijakazi Mbegu and Five Others v. Ramadhani Mbegu [1999] TLR 174

Kilango v. Kilango [1971] HCD n.105

Kisese Mbugha v. Zainabu Swalehe [1991] TLR 90

Kumbata Mahimbo v. Kumbata Mugendi [1967] HCD n.54

Kyauka v. Malasi [1971] HCD n.4

M

Macharima Said Mnyika v. Ramla Said Mnyika, Criminal Appeal No. 37 of 2016, CAT (unreported)

Manyasa v. Mwanakombo [1971] HCD n.10

Marwa Mbau v. Ligamba Eringo [1969] HCD n.14

Masuka v. Sigonjwe [1971] HCD n.92

Masumbuko Rashid v. Republic [1986] TLR 212

Mathias Katonya v. Ndola Masimbi [1999] TLR 390

Michael v. Msario [1971] HCD n.17

Mohamed Hassani v. Mayasa M. and Mwanahawa Mzee [1994] TLR 225

Mohamed Abdallah v. Halima Lisangwe [1988] TLR 197

Mohamed Ngonyani v. Mtumwa Dodo [1967] HCD n.115

Mukungye v. Tegamaisho [1971] HCD n.84

Mungi v. Chapila [1971] HCD n.97

Musa Mwalugala v. Ndeshehota [1998] TLR 1

Mbegu v. Chauzi [1971] HCD n.82

Mwalifunga v. Mwankonga [1971] HCD n.109

Mwanahawa Hemed v. Rashid Kulomba [1999] TLR 21

Mwanamvua v. Shabani [1971] HCD n.87

Mwinyihamisi Kasimu v. Zainabu Bakari [1985] TLR 217

N

Neli Manase Foya v. Damian Mlinga [2005] TLR 167

Nikaile Tozo v. Philliman Musa Mwashilanga [2002] TLR 276

Ndizu Ngasa v. Masisa Magasha [1999] TLR 202

Nyema v. Lupogo [1971] HCD n.90

O

Omari Chokamba v. Fatuma Mohamed Malunga [1989] TLR 39

P

Paul v. Republic [1971] HCD n.124

Peter Loiludie v. Meyan Mbayo and Others [2002] TLR 68

Peter v. Republic [1969] 1 EA 545

Philipo Mtoakodi v. Republic [1969] HCD n.38

R

Ralang Mumanyi v. Wambura Mwita [1969] HCD n.2

Range Chacha v. Elias Nyirabu [1967] HCD n.115

Rashid Nkungu v. Ally Mohamed [1984] TLR 46

Republic v. Njani Hassan [1983] TLR 238

Robert Aranjo v. Zera Mwijuma [1996] TLR 207

S

Saada v. Hussein [1971] HCD n.9

Saidi Uledi v. Kalesi Ngonela [1997] TLR 195

Saidi Mohamed v. Zena Ally [1985] TLR 13

Saidi Mohamed Geshi v. Hamadi Rashidi [1967] HCD n.73

Saidi Rajabu v. Republic [1967] HCD n.184

Sakaya v. Kasova [1971] HCD n.6

Salvatori Tena v. William Mkodo [1969] HCD n.18

Samsoni Mwambene v. Edson James Mwanyingo [2001] TLR 1

Samweli Moyo v. Mary Cassian Kayombo [1999] TLR 197

Sekunda Mbwambo v. Rose Ramadhani [2004] TLR 439

Simon Kakala v. Patricia Lwekamwa [1998] TLR 187

Somoe Nakuwa v. Said Abdallah Nakuwa [2001] TLR 175

Sosthens Fumbuka v. Republic [2000] TLR 351

Scolastica Benedict v. Martin Benedict [1993] TLR 1

Shechonge v. Shekuba [1971] HCD n.8

Swalehe Mohamed v. Republic [1967] HCD n.44

T

Tatu Kiungwe v. Kassimu Madai [2005] TLR 403

Teofrida v. Kanisius (1971] HCD n.29

Tulian Langoi v. Musee Loserian [1999] TLR 379

V

Violet Ishengoma Kahangwa and Jovine Mutabuzi v. The Administrator General and Mrs Eudokia Kahangwa [1990] TLR 72

Y

Yasini Mikwanga v.Republic [1984] TLR 10

Yusuf Same and Another v. Hadija Yusuf [1996] TLR 347

Z

Zabloni v. Agrey [1971] HCD n.115

Zephrin Mgabona v. Jones Kalumuna [1970] HCD n.12

T

The District Executive Director Tarime District Council and Three Others v. Samwel Mwera Siyange, Civil Revision No. 3 of 2014, CAT (unreported)

FOREWORD

The role and responsibility of the Court in the handling of both Civil and Criminal disputes depends on the efficiency of the judicial system and the proper functioning of the legal framework for resolving disputes, in particular. There must therefore exist effective legal institutions, good governance and a conducive environment in which disputes are resolved. To complement these factors, it is significant that competent and efficient institutional arrangements exist to facilitate the effective management of disputes. Moreover, an independent, credible, well-resourced, skilled, knowledgeable and efficient judicial system is indispensable if it is to properly discharge its duty in the resolution of disputes timeously and effectively.

As part of the efforts to make justice delivery more efficient and to enable Magistrates in Primary Courts to perform judicial work professionally and diligently, the Judiciary of Tanzania has revised and updated this Handbook for Magistrates in Primary Courts. Indeed the establishment, maintainance, enhancement of a strong, reliable, competent and efficient judicial system is linked to the professional training and appraisal of Judicial Officers.

The effort to revise, update and re-produce a Handbook of this kind underscores the fact that the work of a Magistrate in Primary Courts comprises a significant portion of the work load of our courts. The Handbook also underscores the fact that to do their work well, Primary

Courts need Magistrates with highest ethical standards and extensive legal knowledge and unique skills in decision making.

This Handbook therefore aims primarily at providing Judicial Officers particularly Magistrates in Primary Courts, with a tool that will assist them in gaining the necessary skills, knowledge and proficiency that would give them a better understanding of legal issues, interpretation of laws, the functions of the Judiciary and methodologies deployed in the adjudication of disputes and decision making.

I wish to congratulate the Team that revised and updated this Handbook, and put together the relevant materials on the law, procedure and best practices of dispute resolution in Primary Courts. This crucial information on fundamental issues on some areas of the law and procedure will now be available to Magistrates in Primary Courts and certainly to other judicial officers.

I also wish to appreciate the role of the Institute of Judicial Administration Lushoto for coordinating the project.

The overriding objective of this Handbook is further strengthening of the Judiciary of Tanzania capabilities in continuing judicial education for training Magistrates in Primary Courts and to enhance the independence, efficiency, and professionalism in the Judiciary.

The Handbook will therefore help Magistrates in Primary Courts to find the principles and the law which they have to apply when dispensing justice to facilitate speed disposal of cases.

The Handbook exposes some old and new areas and decisions which have never been accessible, not only to Judicial Officers and lawyers,

but also to members of the public. The Handbook comprises four chapters: These are primary court manual, A guide for justice of the peace, Judicial ethics and conduct and some guiding principles in adjudication of cases in Primary Courts from the decisions of the High Court and the Court of Appeal.

I hope that all Magistrates in Primary Courts will diligently study and apply the best practices and guidelines contained herein alongside other relevant materials, legislation, regulations and decided cases.

Prof.Ibrahim Hamis Juma
Chief Justice
Dar es Salaam, December, 2018

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Many people and partners have contributed significantly in a variety of ways in the realization of the project for revising, updating and publication of this Handbook for Magistrates in Primary Courts in Tanzania.

This publication is the product of the joint efforts of the Judiciary of Tanzania and the Team, comprising retired and serving Justices, Judges, Registrars and Judges' Assistants on behalf of the Judiciary of Tanzania who worked tirelessly to produce the work within strict time limits.

I wish to express my profound gratitude to the Hon. Mr. Justice Mohamed Chande Othman, the retired Chief Justice of Tanzania for conceiving the idea of revising, updating and publication of this Handbook for Magistrates in Primary Courts in Tanzania. Through his efforts he requested and encouraged the Hon. Mr. Justice Harold Reginald Nsekela and the Honourable Mr. Justice January Henry Msoffe, Justices of Appeal (both retired) to be part of the Team to undertake this assignment which was actively coordinated by the then Principal of the Institute of Judicial Administration Lushoto (currently the Justice of Appeal) the Hon. Mr. Justice Ferdinand.L.K. Wambali. The team was strongly facilitated by the Secretariat comprising of Hon. Mr. Dunstan Beda Ndunguru, Deputy Registrar and the Private Secretary to the Principal Judge and Mr. Jovine Costantine Bishanga, a Judge's Assistant. There is no doubt that through encouragement and support to the Team and enthusiasm for continuing judicial education by the Judiciary made

this project possible. Indeed, the passion by the leadership to see this project succeed was extraordinary.

I wish further to acknowledge with sincere gratitude, the support of the Chief Justice Hon. Prof Ibrahim Hamis Juma who has seen through this project to its completion, recognizing it as an important tool through which justice will be enhanced through improved jurisprudence and clearly laid out court processes.

I am grateful to all Justices of Appeal, Judges of the High Court, Deputy Registrars and Magistrates who actively participated in the review and validation exercises. Their efforts and contributions were very essential to the production of this Hand Book.

My immense gratitude goes to the Institute of Judicial Administration Lushoto for the tireless efforts of coordinating the project from the beginning to the end and the World Bank for financial and technical support without which this publication would not have been completed. Asante sana.

Eliezer Mbuki Feleshi (PhD)
Principal Judge
Dar es Salaam, December, 2018

ABBREVIATIONS

AC - Appeal Cases

AG - Attorney General

CAP - Chapter

CAT - The Court of Appeal of Tanzania

CPC - The Civil Procedure Code

CPA - The Criminal Procedure Act

DPP- Director of Public Prosecutions

EA -The East Africa

EACA - The East Africa Court of Appeal

EACJ - The East African Court of Justice

EALR - East Africa Law Reports

GN - Government Notice

HC- High Court

HCD - High Court Digest

JAA- Judiciary Administration Act

JSC- Judicial Service Commission

LRT - Law Reports of Tanzania

MCA - The Magistrates' Courts Act

PC - Primary Court

PCCPC- Primary Courts Criminal Procedure Code

RE - Revised Edition

ROFC – Readover the facts and verified to be correct

RM - Resident Magistrate

TLR - Tanzania Law Reports

CHAPTER ONE

PRIMARY COURTS MANUAL

PART I

INTRODUCTION

1.Object of manual

The object of this Manual is to assist Magistrates in Primary Courts to dispense justice in accordance with the provisions of the Magistrates' Courts Act, (MCA) [Cap 11 R.E 2002]. The importance of a proper understanding of the contents of this Manual and the provisions of the Magistrates' Courts Act,[Cap 11 R.E 2002], relating to primary courts, cannot be over emphasized. The primary courts play a vital part in the life of the community and their proper functioning is essential to the dispensation of justice. Should the courts lose the confidence of the people, because of corruption or inefficiency, the whole future of stable government will be jeopordized. It cannot be stressed too often that, in accordance with declared Government policy, the judiciary is independent of the executive.The job of the executive is to put into effect the policies of the Government, and the job of Magistrates in Primary Courts (and indeed of all judges and magistrates) is to administer the laws of the country, treating each case on its merits.

2. Maxims for magistrates

Every magistrate must be impartial. In this regard, magistrates are advised to remember the following maxims:-

(1) Never attempt to evade responsibility in your judicial decisions.

(2) Never convict a man because of his known bad character unless you are satisfied that he has committed the offence with which he is charged.

(3) Never hesitate to acquit a man against whom the evidence is insufficient.

(4) Never hesitate to convict a man and punish him adequately, if the evidence shows that he is guilt, whatever his social position may be.

(5) Never go outside the evidence in the case.

(6) Never give a decision with an eye on your superior officers, the Press, or anybody or anything save the law and the evidence.

(7) Never discuss a case beforehand and never allow it to be discussed beforehand in your presence. It is a good rule never to discuss a case after its conclusion, until such time as it has become old history. A magistrate gains great weight by a silent and reticent demeanour about his work.

(8) Never hesitate to consult those with greater experience than yourself as to points of law or procedure.

(9) Never become angry or excited on the bench, whatever the provocation. Never forget that a magistrate is master in his court, and that an unperturbed demeanour controls a refractory litigant or witness.

(10) Never hurry: take your time. You will not impress the public by anxious haste, but you will do so by a dignified deliberation in your proceedings.

Note that: These maxims were developed in 1925 but are still relevant to date.

3. Basic rules for hearing cases

Magistrates must follow certain basic rules for hearing cases, and all magistrates should know what these rules are. Very briefly, they may be set out as follows:

(1) Don't take part in a case in which you yourself are concerned or have an interest.

(2) Give both parties a fair hearing.

(3) Once a case has been made out, do everything necessary to find out the truth about it.

Let us deal with each rule in turn.

3.1:Bias

Don't take part in case in which you yourself concerned or have an interest. This means that if you, or some near relative or dependant, are involved in a case, you should not take part in it, for "a man should not be a judge in his own cause", and in the latter event, if you hear the case, people will say you were prejudiced. Thus if a magistrate in primary court claims a debt of Shs. 100,000/- from someone or someone claims Shs. 100,000/- from him the case should be heard by a different magistrate in a primary court. A distiction needs to be drawn between criminal and civil proceedings. With regard to a criminal matter, if a magistrates in primary court is concerned in the case or has an interest, the case should be taken in the district court. With regard to

a civil matter, the same procedure should normally be followed, but it must be remembered that there are certain civil proceedings which can only be commenced in a primary court (see paragrph 7 in Part III below); in such proceedings the leave of the High Court should be obtained for the proceedings to be commenced in the district court as per sections 47 and 65 of the Magistrates Courts Act, Cap 11 R.E 2002.

3.2: Fair hearing

Give both parties a fair hearing. This does not mean merely that the court should listen to what the parties say-it usually does this. It means, for one thing, that it should arrange the date for the hearing, and then hear the case, in a way will be fair to both parties and not to one only. For example, if one party has a great number of witnesses and the other party only a few it will be unfair to the first party to keep postponing the case and requiring him to come to court again and again and to bring his witnesess with him each time he comes.

3.3: Direct action by court

Once a case has been made out do everything possible to find out the truth about it. If the court considers that there is something in the complaint, and that the matter in dispute is of some importance, it should investigate it further. For example, it should visit the site of a disputed shamba, or call additional witnesses, or seek for documents, if it thinks it necessary to do so in order to find out the true facts. It should not rely entirely and in every case

on the parties only, often one of the parties will not realize how important it is to his case to call a certain witness, or produce a certain document, and the court should then itself take action. If it does not do this it may get a reputation for giving judgments without full knowledge of all the available facts, and this may lead to unscrupulous people bringing false cases to court. In the same way. It should itself question the parties and witness if it thinks that any of them have not stated all that they know about case. For example Juma complains that Abdulla hit him and says no more, he should be asked by the court, before Abdulla tells his side of the story, why, when, where, with, what, the injuries he suffered and who the witnesses were. Unless all the facts are known, it is, not possible to give a correct and proper judgement.

4. Functions of court clerks(Record Management Assistants)

The court clerk has also a most important part to play and no court can function propery unless he understands his work and does it well. He should read and re-read this Manual until he understands it thoroughly and knows the reasons for everything he does. If he does not understand any instruction he should ask a magistrate about it. His duties may be set out as follows:-

(i) to assist the magistrate to arrange the work of the court;

(ii) to record the work of the court in registers, forms, etc., accurately, intelligently, manually and electronically;

(iii) to see that the court's judgments are executed, especially in criminal cases;

(iv) to impose the correct fees and to cause to be issued receipts for fees and fines, divorce and other certificates;

(v) to assist claimants in setting out their claims properly;

(vi) to ensure that the financial procedure on fees as laid down for primary courts is strictly followed.

He must also be thoroughly conversant with the powers of a justice of the peace. It is a magistrate's responsibility to supervise the work of his court clerk.

PART II

ESTABLISHMENT AND CONSTITUTION OF PRIMARY COURTS

5. Establishment and constitution of Primary Courts

Under the provisions of section 3 of the Magistrates Courts Act,Cap 11 R.E. 2002, a primary court is established in every district. A primary court exercises jurisdiction only within the district in which it is established. Thus the Primary Court of Arusha District cannot exercise jurisdiction in Mbulu District, or any other district for that matter.

A primary court is duly constituted when held by a single magistrate in primary court (sections 6 (1)) and 7 (1) of the Act. In practice, however, two or more magistrates in primary court are usually assigned to a primary court. In this event, each primary court magistrate may hold sittings of the court at the same time as the other or others (section 6 (3)).

Subsection (4) of section 6 confers on the appropriate judicial authority the power to direct two or more magistrates in primary court to hear a particular case or category of case. The appropriate judicial authority might exercise this power for instance in some case of particular complexity or where a point of customary law or Islamic law of general public importance was involved. It is important to note that where a case is directed to be heard by two or more magistrates in primary court, it shall be determined by the opinion of the majority, and if the court is equally divided the proceedings shall be dismissed (section 6 (5)).

A primary court may be held at any place within the limits of its jurisdiction (i.e. within the district). But it must be a place which is regularly or customarily used for such a purpose, e.g. a court house. The appropriate judicial authority will direct where such place will be. A primary court can hear a criminal case on a Sunday or a public holiday (section 10 (5) MCA).

The language to be used in primary courts is Kiswahili (section 13 (1), but where any evidence is given in a language not understood by the accused, it must be interpreted to him in open court in a language understood by him (paragraph 30(1) of the Primary Courts Criminal Procedure Code).

It cannot be stressed too strongly that all proceedings must normally be heard in open court(section 14 (1)) of the MCA.

6. Assessors

It should be noted from section 7 of the Act that a primary court is bound to sit with assessors.

Under the provisions of section 69 of the MCA it is the responsibility of the District Council, before the first day of March in each year, to prepare and deliver to the District Court a list of assessors. The persons chosen as assesors must be ordinarily residents in the district, and must have a knowledge of the customary law prevailing in the area. All persons appearing on the list of assessors are liable to serve as assessors when so required by

a court. It is the responsibility of the district magistrate to provide all primary courts with a copy of the list of assessors.

It is important to note that if the name of a person is not included in a list of assessors, this omission does not disqualify him from sitting as an assessor.

Note that assessors are members of the Primary Court and are empowered or required to participate in the decision making process and finally sign the judgment of the court. See the case of **Neli Manase Foya v. Damian Mlinga** [2005] TLR 167.

PART III

CIVIL PROCEEDINGS

7. Civil jurisdiction of primary courts

The provisions relating to the jurisdiction of primary courts in civil proceedings are set out in sections 18 (1),19 (1)(b) and 19 (1) (c) of the Magistrates' Courts Act and in the Fourth and Fifth Schedules to the Act.

Section 20 of the Written Laws (Miscellaneous Amendments) Act No. 3 of 2016 amended section 18 of the Magistrates Act and set the pecuniary Jurisdiction of the Primary court to be thirty to fifty millions Tanzania shillings.

Further to that, a primary court's civil jurisidiction extends to proceedings where the law applicable is customary law or Islamic law (but there are certain exceptions which are set out in the proviso to section 18 (1) (a) (i)); proceedings for the recovery of civil debts, rent or interest due to the Republic, the Government, a District Council, etc.; administration of deceased estates where the Chief Justice has conferred such jurisdiction: and all proceedings in respect of which jurisdiction is conferred by any other law.

It is important to remember that civil proceedings in respect of marriage, guardianship or inheritance under customary law, or the incidents thereof, must be commenced in a primary court. Similarly, civil proceedings in respect of immovable property, particularly proceedings relating to land are not

conducted by the Primary Court.That is to say,Primary Courts have no jurisdiction to entertain land disputes.

8. Customary law

A Swahili translation of the new definition of customary law and the section regarding the applicability of customary law are set out in the compedium of laws applicable in primary courts.The attention of Magistrates is also drawn to sections 19 (1) (b) and paragraph 2 of the Fourth Schedule to the Magistrates Courts Act, [Cap 11 RE 2002] and sections 11 and 12 of the Judicature and Application of Laws Act, [Cap 358 RE 2002] on application, declaration and modification of customary law.Further to that it is important to note that, the Local Cutomary Law (Declaration) Orders 1963 and 1967 [GN No. 279 of 1963 and GN No. 219 of 1967 respectively] are relevant here.

The attention of magistrates is also drawn to section 47 of the Magistrates' Courts Act . Section 47 of the Act requires clarification.

When a preceeding to establish or enforce any right or remedy under customary law is instituted in a primary court, the court may, if it thinks it has no jurisidiction, reject it of its own motion, and inform the applicant that the proceedings should be instituted in the district court.

But once a primary court has accepted a proceedings, the issue whether or not customary law applies to a person, or whether or not customary law is the law applicable, shall not be a matter for decision by a primary court, and

the primary court should proceed to hear and decide the case in accordance with customary law on the face of it, this provision appears rigid, but it is not so for under section 47 of the MCA any person may apply to a district court for a transfer of the proceedings. Again, the primary court itself can invoke the provisions of section 47 (1) (a) of the MCA which deals with the transfer of proceedings from a primary court.

It should be noted that no appeal lies against the making of, or any refusal to make an order by the higher court under the provisions of sections 47 or 48 of the MCA as provided for under section 49 (3) of the MCA.

9. Powers of primary courts in civil proceedings

The powers of a primary court in civil proceedings are set out in paragraph 3 of the Fourth Schedule to the Magistrares' Courts Act. A primary court in civil proceedings may:-

(a) award any amount claimed;

(b) award compensation;

(c) order the recovery of possession of land (note that currently the Primary Court has no longer such power);

(d) order the restitution of any property;

(e) order the specific performance of any contract;

(f) make orders in the nature of an injunction, both mandatory and prohibitive (i.e. that certain things shall or shall not be done);

(g) order the payment of any costs and expenses incurred by a successful party or his witnesses;

(h) promote reconciliation and encourage and facilitate the settlement, in an amicable way, of the proceedings on such terms as are just:

(i) make any other order which the justice of the case may require.

If property has to be handed over or restored, it should be properly described, and its value should be noted in the order. It is not sufficient to order that a box be returned. The box must be recorded and described properly. This helps to avoid or settle subsequent disputes.

10. Powers of primary courts in administration cases

Section 18 (2) of the Magistrates' Courts Act empowers the Chief Justice, by order published in the *Gazzette*, to confer upon a primary court jurisdiction in the administration of deceased' estates where the law applicable to the administration or distribution of, or the sucession of deceased' estates where the law applicable to the administration or distribution of, or the sucession to, the estate is Customary law or Islamic law. An exception to this provision is where Islamic Law is applicable by virtue of the provisions of the Marriage, Divorce and Succession(Non-Christian Asiatics) Act.

By administrative arrangement, the jurisdiction in the administration of diceased' estates will normally be exercised at the primary court houses at District Headquarters.

The powers of primary courts in administration cases are set out in Part I of the Fifth Schedule to the Act.

There are certain instances where a primary court cannot appoint an adminstrator, and these are set out in paragraph 1(2) of Part I of the Fifth Schedule. For example, a primary court shall not appoint an administrator where a grant of administration has been made under the provisions of the Probate and Admnistration Estate Act, [Cap 352 R.E 2002]. Furthermore a primary court will not hear disputes where the administrator has been appointed by a court other than a primary court.

Paragraph 2 of Part I of the Fifth Schedule sets out the powers of primary courts in administration cases. In brief, a primary court upon whom jursidiction in the administration of deceaseds' estates has been conferred may appoint an administrator:-

(a) One or more persons interested in the estate of the deceased, or

(b) An officer of the court, or

(c) Some reputable and impartial person able and willing, for a fee, to administer the estate.

With regard to (b) above, the term "officer of the court" does not include a primary court magistrate, as the primary court magistrate may, if the administrator is unable to bring the heirs to agreement, have to adjudicate upon a dispute in the primary court.

Where an officer of the court is appointed administrator, he should refer points of legal difficulty to the Administrator – General for his advice. This facility is, however, not available to heirs who have been appointed administrators nor is it available to reputable and impartial persons who have been appointed administrators, as the Administrator-General is not in a position to give legal advice to members of the public.

If an administrator is unable to bring the heirs to agreement, he should advise recourse to the primary court having jurisidiction. In this connection reference should be made to paragraph 1 of Part I of the Fifth Schedule.

The powers and duties of administrators appointed by primary courts are set out in Part II of the Fifth Schedule to the Act. It is important to note that an administrator must account to the primary court for his administration (paragraph 11).

The fees to be charged in administration cases are set out in the Court Fees Rules, It should be noted that where the administrator is a reputable and impartial person able and willing to administer the estate, the fee equal to 5 percent of the gross value of the estate, etc. should be paid by the primary court to the administrator, and where the administrator is an officer of the court, the fee is paid to Government and not to such officer.

11. Procedure in civil proceedings

11.1: General

The procedure to be followed in civil proceedings is set out in the Primary Courts Civil Procedure Rules. In accordance with rule 5 all applications to primary courts may be made in writing and must be signed by the applicant. Applications may also be made orally, in which case the substance of the application shall be recorded by the magistrate or the court clerk, and the applications as recorded must be signed by the magistrate or court clerk, as the case may be, and the applicant.

It should be noted from rule 2 that "sign" includes, the affixing of a mark or thumbprint.

In accordance with rule 7 all summonses, notices, orders, warrants and other processes issued by the court must be sealed with the seal or stamp of the court.

11.2: Institution and withdrawal of proceedings.

The procedure for the institution and withdrawl of civil proceedings is set out in rules 15 and 16. A civil proceeding is instituted by an application (the plaint) which must specify:-

(a) the name of the court in which the proceedings is brought;

(b) the name, occupation and place of residence or place of business of the claimant;

(c) the name, occupation and place of residence or place of business of the defendant, so far as they can be ascertained;

(d) the facts on which the claim is based and when and where it arose;

(e) the relief claimed; and

(f) where property is claimed, the value of the property.

After the court fees have been paid or remitted as required by GN No. 247/2018 second schedule, as the case may be, a case file must be opened and the proceedings numbered and entered in the register accordingly.

Under the provisions of rule 16, the claimant may withdraw the proceedings or abandon part of his claim at any time after the institution of a proceedings, and if he does so he is not entitled to institute any fresh proceedings unless at the time of such withdrawal or abandonment he has obtained the leave of the court to institute a fresh proceeding. The court should only grant such leave for a good and sufficient reason.

11.3: Injuctions

The provisions regarding applications and procedure for injunctions (orders for things to be done or not done) are set out in rule 17. At any time after a civil proceedings has been instituted any party may apply to the court for an

injunction to restrain any person from alienating, destroying, wasting, damaging, or otherwise injuriously dealing with any property which is the subject of the proceeding.

Before ordering an injunction the court may, if it thinks it necessary, examine the applicant in order to satisfy itself that grounds for ordering an injunction do really exist.

Every order for an injunction must be served on the person having possession of the property and on such other person as the court may think fit.

Where the property is of a perishable nature, e.g. vegetables, the court may direct an officer of the court to sell the property either by public auction or by private treaty, and the costs incurred shall be paid out of the proceeds of the sale. The net proceeds of the sale should be placed on deposit pending the conclusion of the proceedings.

It should be noted that a court for good cause may at any time vary or rescind an injunction order.

11.4: Taking of evidence other than at hearing

The provisions for the taking of evidence otherwise than at the hearing are set out in rules 42 and 43. The power (rule 42) to examine a witness immediately might be exercised. e.g. where a witness is about to leave the

jurisdiction of the court. Notice of the day fixed for the examination of a witness must be given to the parties.

Rule 43 provides that where a witness is residing at such a distance from the court that his attendance at the hearing would involve undue delay, expense or incovenience, the court may request another primary court which is situated in close proximity to the residence of the witness in Tanzania to record the evidence of such witness. The court which records such evidence must send it to the court which made the request. Such evidence must be read at the hearing the proceeding and will form part of the record of the case.

It must be stressed, however, that if the witness concerned is a key witness the court might be well advised not to invoke the provisions of rules 42 and 43, and this is a matter for decision by the court.

12. Summonses and service-civil proceedings

12.1: In respect of Defendant.

In addition to the sections of the Act referred to in paragraph 22, reference should be made to rules 18 and 19 of the Primary Courts Civil Procedure Rules.

Normally every summons on a defendant should be issued in duplicate, but it may have to be issued in triplicate, e.g. where the court directs that the

summons be served by affixing a copy of the summons on some conspicious part of the last known residence of the defendant and another copy on the court notice board: in such instance the third copy will be placed in the case file.

The summons must state briefly the nature of the claim.

The summons should normally be served on the defendant personally, but if he has an agent authorised to accept service it may be served on such agent. The defendant or his agent should sign one copy, and the person serving the summons should make an affidavit on the same copy which should be returned to the court and placed in the case file as evidence of service. The defendant or his agent should, retained the other copy.

Where the court is satisified that the summons cannot be served on the defendant or his agent personally without undue delay or expense, it may direct service of this summons by one of the following five methods.

(1) by post, or

(2) by leaving it with an adult male member of the family of the defendant, or

(3) by leaving it with some adult male servant residing with the defendant, or

(4) by leaving it with the defendant's employer, or

(5) by affixing a copy of the summons on some conspicuous part of the last known residence of the defendant and another copy on the court notice board.

Where a summons is not served personally on the defendant or his agent, service may be proved in the case of (1) above by evidence that a postal packet was received by the defendant, together with a certificate of an officer of the court that the post packet contained the summons, and in the case of (2), (3), (4) and (5) above by the affidavit or evidence on affirmation of the person effecting the service of the summon.

If a defendant duly served fails to appear in answer to a summons, the court has no power to issue a warrant of arrest to secure his attendance. The procedure to be adopted is described in paragraph 14.

A summons may be served on a defendant within any part of the district with which the primary court exercises jurisdiction.

If the summons is to be served on a defendant residing in another district, it should be sent to the primary court or the district court of the other district for service. The magistrate receiving the summons for service must endorse it before service.

12.2: In respect of Witnesses

In addition to the sections of the Act referred to paragraph 22, reference should be made to rules 31 to 41 of the Primary Courts Civil Procedure Rules. With regard to the summoning of witnesses in civil proceedings the following main points should be remembered:-

(1) a witness summons is only issued after application by one of the parties if the court on its own motion decides to call a witness (rule 31 and 37);

(2) the party applying for a witness summons must pay the prescribed fees, deposit into court a sum of money to cover the travelling and other expenses of the witness. No deposit for travelling expenses need be paid if the witness lives within three miles of the court which he is required to attend (rule (1));

(3) a magistrate, justice of the peace or court clerk can require the party calling the witness to make an additional deposit to cover the expenses of the witness; in default of payment the court may direct attachment and sale in respect the expenses already incurred (rule 32 (2) and (3). The expenses to be paid to witnesses are laid down in the First Schedule to the Primary Courts Civil Procedure Rules (rule 33). See also rule 37;

(4) the expenses of witnesses must be paid expeditiously as laid down in rule 37;

(5) a witness summons must be issued in duplicate and person served the summons should make an affidavit on the same copy which should be returned to the court and placed in the case file as evidence of service. The

witness should retain the other copy. If the witness cannot be found both copies of the summons should be returned to the court and the person serving the summons should endorse on one copy the reason why the summons could not be served on the witness;

(6) if a witness, duly served, fails to attend the court, the court may issue a warrant of arrest (rule 40 (1).

13. Procedure at hearing of civil proceedings

The procedure to be followed at the hearing of civil proceedings is set out in rules 44 to 55. At Appendix 1 will be found a specimen of proceedings in a civil case. Some of the more important points to remember are set out below:-

(a) at the start of the case find out what the parties admit or deny, and then write down the matters in issue, i.e. the matters on which the court has to make a decision;

(b) normally the claimant first states his case and produces the evidence in support of his case;

(c) then the defendant states his case and produces the evidence in support of it;

(d) after all the evidence has been recorded the parties may, if they wish, address the court, first the defendant and then the claimant;

(e) the evidence of each witness must be taken orally in open court;

(f) except in the case of a child of tender years, the evidence of each witness shall be given on affirmation;

(g) the magistrate must record the substance of the evidence in Kiswahili and at the conclusion of a witness' evidence must read it over to him and record any amendments or corrections. The magistrate must certify that he has done so;

(h) a witness shall first be questioned by the party who called him;

(i) each party shall be entiled to cross-examine the witnesses called by the other party;

(j) the decision of the court must-

(i) be in writing;

(ii) be signed by the magistrate and assessors who heard the proceedings;

(iii) be pronounced in open court; and

(iv) be dated as of the day on which it is pronounced.

(k) The parties must be informed of their right of appeal.

(l) Examine the unsuccessful party as to his means of satisfying the decision; after the examination the court must fix a date for the implementation of the decision, and at the same time it must inform the defendant in the presence of the claimant that if he (the defendant) does not satisfy the decision by the day specified then the claimant will be entitled to institute execution proceedings which may involve the attachment and sale of the defendant's property.

14. Parties absent in civil proceedings

What should be done if only one party appears or both parties do not appear? In a civil case there are three possibilities:-

(1) both the plaintiff and defendant may be absent (rule 22 of the Primary Courts Civil Procedure Rules);

(2) the plaintiff may be absent, with the defendant present (rules 24, 25 and 28 of the Primary Courts Civil Procedure Rules),

(3) the defendant may be absent, with the plaintiff present (rules 23 and 26 of the Primary Courts Civil Procedure Rules).

If (1) occurs, and the plaintiff has not sent word to the court to explain to the satisfaction of the court why he cannot attend or send a representative on the day and at the time set down for hearing, the court should dismiss the proceedings, and the plaintiff must then pay the fees a second time if he wishes the case to proceed. If the plaintiff has sent an explanation to the satisfaction of the court for his non appearance to the court, the court may adjourn the hearing to another day, and shall direct that notice of such adjourned hearing be served on the parties.

If (2) occurs, and the plaintiff has not sent word to the court to explain to the satisfaction of the court why he cannot attend or send a representative on the day and at the time set down for the hearing, the court should dismiss

the proceeding, unless there are exceptional circumstances which could have prevented the attendance of the plaintiff, e.g. the wash away of a road or heavy floods, or unless, the defendant admits the claim or any part thereof, in which case the court should make such order as may be appropriate. If the proceedings has been dismissed because of the non-appearance of the plaintiff, the plaintiff may, subject to any law of limitation, bring a fresh suit on payment of fees a second time, or he may apply for an order to set aside the dismissal, and if the court considers that the plaintiff has produced good reasons, it may set aside the dismissal of the proceeding and appoint a day for the hearing. If the plaintiff has sent to the court an explanation to the satisfaction of the court for his non-appearance, the court may adjourn the hearing to another day, and shall direct that notice of such adjourned hearing be served on the parties, Rule 25 lays down the procedure to be followed in the case of non-attendance of one or more of several plaintiffs.

If (3) occurs and the whereabouts of the defendant are not known the court may adjourn the case while news of him is being sought. If a long time has elapsed, e.g. perhaps three months, or more, and it still cannot be found out where the defendant is, ther court may strike out the case.

If the court is satisfied that the summons was duly served on the defendant and he has not sent word to the court to explain to the satisfaction of the court why he cannot attend or send a representative on the day and at the time set down for the hearing, the court can proceed to hear the case in the absence of the defendant. It should call on the plaintiff to state his case and

call his witnesses. If the court is satisfied that the plaintiff has proved his claim, it may give judgement in the absence of the defendant. The court should, however, keep in mind, that it may be unwise to hear a case in the absence of the defendant where the summons has not been served; personally upon him.

If the court is not satisfied that the summons was served on the defendant in sufficient time to enable him to appear in court, the court shall adjourn the hearing and direct that notice be given to the defendant of the date of the new hearing (proviso to rule 23 of the Primary Courts Civil Procedure Rules).

If the court is not satisfied that the summons was dully served on the defendant, it should adjourn the hearing to another date, and order a second summons to be served on the defendant (rule 23 (b) of the Primary Courts Civil Procedure Rules).

Rule 26 lays down the procedure to be followed in the case of non-attendance of one or more of several defendants.

15. Setting aside order for *"exparte"* proof (Rule 29 of the Primary Courts Civil Procedure Rules)

Where the court has allowed the plaintiff to prove his claim in the absence of the defendant, and the defendant appears at any time before the decision is given, what should the court do?

The court should first ask the defendant his excuse for being late. If the excuse is reasonable and the defendant can produce evidence in support of his excuse, the court shall commence the hearing afresh. If the hearing is commenced afresh, it is not necessary to record all the evidence again provided that the evidence is read over to and confirmed by the person who gave it.

16. Setting aside an "*ex-parte*" decision (rule 30 of the Primary Courts Civil Procedure Rules)

Where the plaintiff has proved his claim and a decision has been given against the defendant in his absence, and then the defendant applies, on payment of the prescribed fee, to have the *ex parte* decision set aside, what should the court do? The court should consider the following points before making an order:-

(1) Is the defendant's application time-barred? If it is then the court should make an order refusing the application.

(2) Was the summons duly served? If the court is satisfied that the summons was not duly served, the court shall set aside the *ex parte* decision.

(3) Was the defendant prevented by any sufficient cause from appearing at the hearing, e.g. was he too ill to travel, or was the country side impassable due to floods, or did the bus in which he was travelling break down? The defendant must produce evidence in support of his excuse. If the court is satisfied that the defendant had a good reason for not attending, the court shall set aside the *ex parte* decision.

Where an application is made to have an exparte decision set aside, the court shall give notice to the applicant and other parties of the date and time for the hearing of the application.

If the court refuses to set aside an ex parte decision, the defendant can appeal against the court's decision not to re-open the case, but this does not of course mean that if the district court agrees to have the case re-opened it will itself hear it. If the district court does agree the case will be returned to the Primary court for re-hearing.

17. Execution

The provsions covering the enforcement of awards and orders for the payment of money in civil proceedings are set out in rules 56 to 61. The provisions regarding attachment (rules 62 to 71) and sale in execution (rule 72 to 85) are explained in paragraph 18 and 19 respectively.

When a primary court has made an award or order for the payment of money and such money has not been paid on the day fixed by the primary court, the award debtor order may be enforced by the primary court by attachment and sale of the property of the judgment-debtor.

It should be noted that where property sought to be attached and sold is:-

(a) A share in the capital of a company, co-operative society or other corporation or

(b) The judgement-debtor's share in any partneship property or profits, not being a share liable to attachment and sale under the provisions of rule 57 (execution of an order against a firm),

the primary court shall, with the consent of the district court, transfer the application for execution to the district court.

Where a court has made an award or order for the restitution of moveable property and the person in actual possession of the property refuses or fails to deliver up the same, the party to whom it was awarded may apply to the court to enforce the order.

It should be noted that where the property is in the actual possession of the person against whom the award was made, the court shall on receipt of an application, make an order for the seizure of the property. But in any other case, the court must summon the person in actual possession of the property, to show cause why he should not be dispossessed of the property.

Notice of the day and time of the hearing must be served on the party to whom the property was awarded and on any other person having an interest in the property.

There are certain restrictions on the entry into dweling houses and these are set out in rule 59. For example, no person executing an order shall enter any dwelling house between sunset and sunrise, except with the consent of the householder.

Warrants may be executed (rule 60) by-

(a) a court broker appointed by the court; or

(b) any other person, whether or not an officer of the Government or of a local authority, whom the court may think it necessary or desirable to appoint. Currently, see the Second Schedule of GN 247/2018 on fees payable in Primary Courts.

The charges payable in connection with the enforcement of awards and orders are set out in the Second Schedule to the Primary Courts Civil Procedure Rules. It should be noted that where a warrant is executed by an officer of a Local Authority, the charges should be credited to the local treasury concerned.

The provisions of paragraph 4 of the Fourth Schedule to the Magistrstes' Courts Act should not be overlooked. In brief this provides that a primary court may, on the application of the party entitled to the benefit of an order made in any civil proceedings, request a district court to take steps for the arrest and detention of any person who has failed to comply with an order for the payment of any amount, including compensation or costs, made by a primary court. Remember that a primary court cannot itself order the arrest

and detention of a judgment-debtor. If a judgement-debtor is detained in a civil prison, the decree-holder is responsible for paying the subsistence of the judgement-debtor during his detention in such prison.

The judgement-debtor can obtain his release from detention in a civil prison at any time by paying the amount awarded against him. Sums disbursed by the decree holder for the substence of the judgement-debtor in the civil prison are deemed to be costs in the suit, and the judgment-debtor cannot be detained in the civil prison or arrested on account of any sum so disbursed.

18. Attachment

The provisions regarding attachment are set out in rules 62 to 71. Some of the more important points are set out below:-

(a) If any money payable under an award or order has not been paid on or before the day fixed by the court under rule 54 (3) it is the responsibility of the Judgement-creditor to apply to the court for the attachment of the property of the judgement-debtor. It should be noted that it is not necessary to notify the judgement-debtor of the application because he will have been warned at the conclusion of the hearing of the case of the consequences of non-payment:

(b) Every warrant of attachment shall contain:-

(i) the names of the parties;

(ii) the amount of money awarded or ordered to be paid any costs payable;

(iii) a description of the property attached in sufficient detail to enable it to be identified:

(iv) a statement that the owner of the property, is prohibited from transferring or charging it in anyway;

(c) where the property attached is a building, a copy of every warrant of attachment must be posted on the main door thereof;

(d) growing crops should not be siezed before the time when they are ready to be cut or gathered;

(e) where the property seized is liable to deteriorate the court may order its immediate sale;

(f) where cattle are to be seized, the court may require the judgement-creditor, before seizure, to provide for the care and sustenance of such cattle while they are in the custody of the court;

(g) in certain circumstances (see rule 69) the judgement-debtor may apply to the court to rescind or vary the warrant of attachment, but no warrant of attachment shall be rescinded or varied unless the judgment-creditor has been given an opportunity of being heard:

(h) any person, other than the judgment-debtor, who claims to be the owner of or to have some interest in property which has been attached by the court may apply to the court to release the property from attachment. He must state the grounds on which he bases his objection. Notice of the day and time for hearing the objection must be served upon the objector, the

judgement-creditor and the judgement –debtor. Further provisions are contained in rule 70 which should be studied;

(i) rule 71 deals with the recision of an attachment order; sub-rule (2) requires explanation as to how a judgement-creditor can default; for example, where property has been attached the judgment-creditor may fail to apply for the sale of the property in accordance with rule 72 or he may fail to pay the required charges, his failure to do so puts him in default and the court is unable to proceed with the execution.

(j) When an attachment has been rescinded a notice of recision must be served on every person who was served with the notice of attachment.

19. Sale in execution

The provisions regarding sale of property in execution are set out in rules 72 to 85.

The five most important points to remember are contained in rules 72,75 and 85. These are:-

(1) no order for sale of property can be made by the court unless the judgment-creditor makes an application for an order for sale and pays the charges;

(2) notice of an application for an order for sale does not require to be given to the judgment-debtor for the very good reason that he will have already

been served with a warrant of attachment and will thus be aware of the consequences of his failure to satisfy the decision of the court;

(3) an application for an order for sale may be made by the judgment-creditor at any time after the expiration of fifteen days from the date of service of a warrant of attachment (other than a warrant of attachmentt of wages) or the seizure of the property, whicherver is the earlier;

(4) no sale of immovable property shall take place until after the expiry of thirty days from the date of issue of the order for sale: the only exception to this is where the property is liable to deteriorate (see rule 66);

(5) an application to set aside a sale in execution must be made within thirty days of the date of sale; it should be noted that no sale once it has taken place shall be set aside unless the judgment-creditor, the judgment-debtor, the purchaser and any other person affected has been given an opportunity to be heard and produce evidence.

The particulars to be contained in an order for sale are set out in rule 73, and the provisions regarding posting and advertisement of an order for sale are set out in rule 74.

The court has the power to adjourn a sale (rule 76) but it should be noted that where a sale is adjourned for more than thirty days, the sale must be re-advertised.

Rule 77 makes provision for the conduct of the sale of property. It should be noted that except where the law provides that produce or cattle should be sold to a co-operative or other marketing organisation, such produce or catlle should be sold at a market if there is one nearby: if there is not a market nearby, then the sale should be by special public auction.

A judgement-creditor shall not, without the leave of the court, be entitled to bid for or buy property offered for sale in execution (rule 79).

Where moveable property is sold, the purchase price must be paid in cash at the time of the sale or as soon thereafter before the conclusion of the sale. Where immoveable property is sold one-quarter of the purchase price must be deposited in cash at the time of the sale and the balance must be paid in cash into court within fifteen days thereafter.

PART IV

CRIMINAL PROCEEDINGS

20.Criminal jurisdiction of primary courts

With regard to the criminal jurisdiction of primary Courts, the attention of primary court magistrates is drawn to the First Schedule to the Act. Part I of the Schedule lists the Penal Code offences which primary court magistrates are authorised to try. It must be emphasized that there are no longer any customary law offences (section 66) e.g. adultery, which in the past was treated as a criminal offence in some parts of Tanzania, is now regarded as a civil wrong for which the remedy lies in the civil courts. Part II of the First Schedule lists the other laws which primary courts have been given jurisdiction to enforce. Primary court magistrates must familiarize themselves with the translation of the First Schedule which is a standard issued to them. Primary courts also have jurisdiction to enforce by laws made by local authorities. It is the responsibility of the local authorities to provide the courts with copies of their by-laws and, if published in English, Swahili translations.

The criminal jurisdiction of primary courts is also governed by paragraph 19 of the Primary Courts Criminal Procedure Code.

A primary court has jurisdiction to try an offence which was commited in the district in which the primary court is established.

Where an accused has been arrested or is in custody, the accused shall be tried by the primary court of the district within which the accused was

arrested or is in custody. It may turn out, however, to be more convenient to send the accused for trial by the primary court of the district within which the offence was commited. For example, if the offence was commited in Bukoba and the accused was arrested in Mtwara, and all the prosecution witnesses reside in Bukoba, it will obviously be more convenient and less expensive to send the accused to Bukoba for trial.

It may be that the offence was committed on a journey. In this case the offence may be tried in the primary court of any district through which the journey lay.

If it is uncertain in which of several districts the offence was committed, the offence may be tried by the primary court of any district in which any ingredient of the offence occured.

If a magistrate is in any doubt as to the primary court by which any offence should be tried, the magistrate should refer the matter to the appropriate judicial authority for his decision which shall be binding on all magistrates' courts.

21. Powers of primary courts in criminal proceedings

The powers of primary courts in criminal proceedings are contained in Part II of the Primary Courts Criminal Procedure Code. A summary of these powers is given below:-

21.1: Sentences which may be passed (paragraph 2 (1))

Subject to the provisions of any law for the time being in force a primary court may pass the following sentences.

(a) imprisonment for a term not exceeding 12 months;

(b) a fine not exceeding five hundred thousand shilings (See the Written Laws(Miscellaneous Amendments)(No.3) Act of 2002);

(c) corporal punishment not exceedings 12 strokes;

The only instance in which a primary court is empowered to pass sentences greater than those referred to above are where a person is convicted of an offence specified in the Schedule to the Minimum Sentences Act,[Cap 90 R.E 2002].

Section 6 (1) of the Minimum Sentences Act requires explantion. Section 6 (1) of the Act provides that where a person is convicted of an offence contained in Part one of the Schedule and:-

(a) he is a first offender, and

(b) the value of the property which he obtained or attempted to obtain or the consideration (in corruption cases) which he provided, gave or offered does not exceed one hundred shillings, and

(c) there are special circumstances of the case, the court may order that in lieu of the minimum sentence, such person shall undergo either ten strokes

of corporal punishment or such term of imprisonment as may appear to the court to meet the requirements of the case.

In **Ramadhani Sultani v. Republic,** High Court Criminal Appeal No. 523/63 was held that where conditions (a) and (b) of subsection (2) of section 5 (currently section 6 (1)) exist, the court must call upon the accused to show special circumstances. The expression "special circumstances" here include the circumstances relating to the commission of the offence and also those relating to the person who committed it. If the court is satisfied that special circumstances do exist, the court must record the same and must then sentence the accused either to ten strokes of corporal punishment or to such term of imprisonment as may appear to the court to meet the circumstances of the case. It should be noted that there is no power to impose a fine or other form of punishment in lieu of the ten strokes of corporal punishment or imprisonment.

Where in addition to the conditions of subsection (1) of section 6 being present the accused is over 45 years of age or is a woman, the court cannot pass a sentence of corporal punishment but must sentence the accused to such term of imprisonment as may appear to the court to meet the circumstances of the case. Here again the court has no power to impose a fine or any other form of punishment in lieu of imprisonment.

It should be noted that first offender means a person who has not previously been convicted of (a) a scheduled offence; or (b) any offence contained in Chapters XXVI to XXXII (offences relating to property) of the Penal Code.

It should also be noted that the provisions of section 6 (1) of the Minimum Sentences Act apply only to the offences contained in Part I of the Schedule to the Act.

Section 10 of the Corporal Punishment Act,[Cap 17 R.E 2002] provides that where a person is convicted at one trial of two or more distinct offences, any two or more passed in respect of all of them. There is nothing in the Minimum Sentences Act which modifies or repeals the provisions of this section. Where, therefore, an accused is convicted at the same trial or two or more offences punishable with minimum sentence, the court must pass and the accused will receive only one sentence of corporal punishment. The proviso to paragraph 6 (1) of the Primary Courts Criminal Procedure Code is also relevant.

Where the court convicts an accused at one trial of two or more offences and sentences him to imprisonment for two or more offences, the punishments shall run consecutively unless the court directs that the sentences of imprisonment shall run concurrently(paragraph 6 (2) of the Primary Courts Criminal Procedure Code). The attention of primary court magistrate is, however, directed to the proviso to paragraph 6 (2). In brief, the meaning of

this proviso is that if the offences are not specified offences under the Minimum Sentences Act, the aggregate punishment cannot exceed 2 years, but if the offences are specified in the Minimum Sentences Act the aggregate punishment could amount to a maximum of 6 years if the offences are in Part II of the Schedule.

In considering whether or not sentences should be made to run consecutively or concurrently, the court should consider the nature of the offences and the dates on which the offences were committed. If the offences are part of the same transaction, e.g. burglary and stealing, the sentences are normally ordered to run concurrently. Similary, if the offences are part of a series, e.g. three separate offences of cattle theif committed over a period of a few days, the sentences are normally ordered to run the concurrently. The important thing for a magistrate to remember is that sentences, whether ordered to run consecutively or concurrently should not be more than is appropriate to the gravity of the particular offence.

21.2: Additional powers

(a) Orders which primary courts can make in criminal proceedings are set out in paragraphs 4 and 5 of the Primary Courts Criminal Procedure Code.

These may be summarized as follows:-

(1) discharge of accused absolutely or on conditions;

(2) promote reconciliation;

(3) supervision of habitual offenders;

(4) compensation not exceeding one hundred thousand shillings (See the Written Laws(Miscellaneous Amendments)(No.3) Act of 2002);

(5) costs;

(6) fortfeiture;

(7) restoration of property.

In addition the courts should keep in mind the provisions of the Probation of Offenders Act,[Cap 247 R.E 2002] (this only affects courts in areas where the Ordinance has been applied), and section 73 of the Prisons Act, Cap. 58 R.E 2002], which makes provision for the release to extra mural labour of persons sentenced to short terms of imprisonment. Section 73 (2) provides that the court shall inform the accused of his right to opt for extra mural labour in all cases in which he is entitled to do.

(b) Compensation.- Magistrates should remember that although they may make an order for the payment of compensation in criminal proceedings, the court, whenever a person is convicted of a scheduled offence under the Minimum Sentences Act, shall (section 7) if-

(1) property was obtained as a result of the commission of the offence; and

(2) the owner of the property can be identified.

order the offender to pay to the owner of the property compensation equal to the value of the property as assessed by the court.

It will be noted that this provision applies whatever the sentence imposed. The compensation so ordered is recoverable by the person to whom it is payable as if it were a civil debt.

Before an order for compensation is made there must be a finding by the magistrate as to the value of the property obtained by the accused and as to the true ownership of it. It will, be noted that the value of the property is also important in considering whether the conditions in subsection 1(b) of section 6 of the Minimum Sentences Act exist.

Magistrates should remember that the amount awarded as compensation is intended to recompense the person in whose favour the award is made for any loss or damage he may have received, but no more. Therefore, no order for compensation should be made where the property is recovered undamaged.

(c) Committal to district court for sentence.- Under the provisions of paragraphs 3 of the Primary Courts Criminal Procedure Code a primary court, may committee the offender in custody to the district court for sentence. For example, after judgment the prosecution may put in previous convictions which might warrant the offender receiving a sentence in excess of that which the primary court is empowered to pass. In such a case it would be proper for the primary court to commit the offender to the district court for sentence. When forwarding the case file to the district court, the magistrate should record his reasons for committing the offender to the district court for sentence.

(d) Forfeiture.- A court may only order the forfeiture of something if there is express provision in some Acts empowering the court to do so. For example subsection (2) of section 34 of the Animal Diseases Act,[Cap 156 R.E 2002], provides:-

"Whenever any person shall have been convicted of an offence as aforesaid, the court convicting such person may, in addition to or in liue of imposing any other punishment, order that the animals or things or any of them in respect of which such offence has been committed shall be forfeited."

Thus if a person moves a dog from a rabies area without the written permission of a veternary officer in contravention of section 22 (2) (a) of Cap156 R.E 2002, the court may, in addition to or in liue of imposing any other punishment, order the dog to be forfeited.

A court has no general power to order that any weapon with which an offence was committed or which was in the possession of the accused at the time of the offence shall be forfeited to Government. But there is express provision in certain Act, e.g. in section 56 (3) of the Fauna Conservation Act, [Cap. 302 R.E 2002]. Thus, if the court convicts a person of an offence contrary to section 33 of Cap 302 R.E 2002, and the weapon used was a bow, the court may order the forfeiture of the bow, but it cannot order the forfeiture of, say, a shotgun kept in the accused's house at the time the offence was committed.

Where firearms are forfeited they should be handed over to the Police. Where trophies, such as elephant tusks or rhinoceros horn, are forfeited they should be handed over to the Game Department or the, District Office.

22. Service of summons-criminal proceedings

Sections 33 and 34 (1) of the MCA and paragraphs 8,9,10 and 12 of the Primary Court Criminal Procedure Code should be studied.

Every summons should be issued in duplicate after the appropriate order authorizing its issue has been written in the case file. The person summoned should sign one copy, and the person serving the summons should make an affidavit on the same copy which should be returned to the court and place in the case file as evidence of service. The person summoned should retain the other copy.

It may happen that the person to be summoned cannot be found. In that event the summons should be served by leaving it with some adult male member of his family, or with some adult male servant residing with him, or with his employer. The person with whom the summons is left should sign one copy, and the person serving the summons should endorse on the same copy the reason why the summons could not be saved on the person to whom it was directed.The copy of the summons should then be returned to the court and placed in the case file. The person with whom the summons is left should make every endeavour to serve, the person to be summoned.

A summons may be served within any part of the district within which the primary court exercises jurisdiction.

If the summons is to be served on a person residing in another district it should be sent to the primary court or the district Court-of the other district for service. The magistrate issuing the summons should endorse on the Summons that fees and expenses (if any) have been paid. The magistrate receiving the summons for service must endorse it before service.

If a person fails to appear in answer to a summons the magistrate, if satisfied that service has been effected, may issue a warant of arrest.

23. Warrants of arrest

Sections 33, 34, 53, 54 and 55 of the MCA, and paragraphs 8, 9, 11 and 12 of the Primary Courts Criminal Procedure Code should be studied.

In a criminal case the court must decide whether to issue an arrest warrant or whether a summons will do. If it is a serious offence or if the court thinks the accused will just run away if he is not arrested, then an arrest warrant should be issued. If the accused has already run away after committing an offence within the courts area of jurisdiction, then an arrest warrant should be issued and sent to the primary court of the area where the accused has gone.

Sections 33 and 34 of the Act and paragraphs 11 and 12 of the Primary Court Criminal Procedure Code lay down the method, etc. of execution. Generally they are the same as for the service of summons described in paragraph 22 above, but for the case of a warrant of arrest it must be served personally on the person named in the warrant. A person executing a warrant of arrest must notify the substance the warrant to the person to be arrested and, if so required, must show him the warrant.

A warrant of arrest is the authority for the person executing the same to take into custody the person named in the warrant. The person executing the warrant must take the person arrested before the court without delay.

A justice of the peace may issue a warrant of arrest. In this connection see sections 53, 54 and 55 of the Act. Where a person has been arrested on the orders of a justice, the justice must take him before a magistrare without delay. If there is no magistrate in attendance at the court house, the justice should enter the matter in the register of the court and either admit the person arrested to bail or remand him (section 56, paragraphs (a) and (b).

24. Powers of arrest without warrant

The powers of arrest without a warrant in Tanzania are set out in Appendix 3. In paragraph C thereof "clerk" means the executive officer of a district council, a clerk to a divisional committee of a district council, a chief executive officer of a district council or divisional committee, and any

assistant executive officer of a district council or divisional committee. "Clerk" does not include market clerks, tax clerks. etc.

25. Remand - (Paragraphs 14 and 15 PCCPC and section 56 (b) of the Act)

If the accused has been arrested, or if he has come to the court to give himself up, and the case cannot be heard there and then, he should be remanded (if he is not admitted to bail) and put in the court lock-up or in gaol. No person should be in a goal for more than fifteen days at any one time or in a court lock-up for more than seven days at any one time. Remands may be made by a primary court magistrate and the reasons for making them must be recorded in the case file. Remands can aslo be made by a justice of the peace(section 56 (b)), but the period of remand must not exceed seven days at any one time. A justice of Peace should not remand a person for more than a total of twenty eight days, without taking him before a magistrate. A remind must never be made by the court clerk. As soon as a person is sent to a lock-up his name must be entered in the lock-up register.

Women should be detained in lock-ups only in exceptional circumstances, and only if separate accommodation is available for them. Even in such circumstances, e.g. the woman has committed a very serious offence, and the case cannot be heard at once, it is better that she should be sent to gaol. No juveniles may be detained in lock-ups.

26. Bail

The provisions relating to bail are contained in sections 24 (1)(a)(i), 30(3) and 56 of the MCA, and in paragraphs 14,16 and 18 of the Primary Courts Criminal Procedure Code.

Sometimes it may be possible to allow the person accused out on bail. This is a matter for the court to decide. If the court considers there are special reasons why the accused should not be allowed out on bail, e.g. that he may abscond, or is dangerous or may try and bribe some of the witnesses, it can refuse to release him. It is entirely for the court to say. If it decides to let him out on bail it can do so if he makes a deposits or signs a bond. The court may further require a trustworthy person or persons to make deposits or sign bonds, promising to pay into court certain sums of money if the accused runs away or does not appear in court when required. The amount to be paid should be about the same as the amount of the fine which would be imposed on the accused for the offence with which he is charged. Thus if he is accused of not taking out a pombe licence and the usual fine is Shs. 800,000/- then the deposits or bonds should be for that sum. A bond should only be accepted from a person whom the court considers to be trustworthy, if it is in any doubt it should demand that a deposit be made.

If a person on bail absconds, the amount of the deposit should be paid into court, or the amount of the bond should be realised at once, if necessary by attachment and sale of the property of the person on bail or of his sureties (those who have signed the bonds). Remember, however, that the court

should not forfeit any bond or deposit of a surety without giving the surety an opportunity of being heard.

A magistrate must always record in the case file his reasons for granting or refusing bail.

In addition to the powers of releasing a person on bail conferred by paragraph 16(1) of the Primary Courts Criminal Procedure Code, a primary court may release a person on bail pending appeal to the district court or when the district court has called for the case file (section 24 (1)(a) (i) of the MCA). A district court also has these powers.

A supervisory magistrate may release a person on bail (section 30 (3) of the MCA).

A justice of the Peace may release a person on bail (section 56 (a) of the MCA).

The High Court may release a person on bail. (Section 32 (1)(b)(i)(A) of the MCA).

27. Search warrants

The provisions relating to search warrants are contained in sections 33 and 34 of the Act, and in paragraph 13 of the Primary Courts Criminal Procedure Code.

Sometimes a complaint will be brought that some things have been stolen but that the complainant has good reasons to believe that they are e.g. in a certain house and he asks for search warrant to be issued.

The statement of the complainant must be written down and affirmed. If the court agrees, a warrant should be prepared and given to a police officer or other person (e.g. a court messenger) to execute. A search warrant can only be issued by a magistrate; it cannot be issued by a justice of the peace or by a court clerk.

The person executing the search warrant should be told that:-

(a) he can only search the house (or premises, etc) named in the warrant (and not just any house);

(b) he can only carry out the search between the hours of 6.30 a.m. and 6.30 p.m.;

(c) he can break into the house only when there is no other way of getting in, and the breaking into must be confined to a door or window. He cannot break through a wall or roof.

(d) he should seize only the things listed in the warrant;

(e) he should endorse on the warrant that it has or has not been executed.

28. Charges

Paragraph 21 of the Primary Courts Criminal Procedure Code lays down that a charge must be drawn up and signed by a magistrate where a magistrate issues process under paragraph 8 of the Primary Courts Criminal Procedure Code or where any person is brough before a court under arrest.

The only exception to this is where a written charge is signed and presented by a police officer. To assist magistrates a list of specimen charges will be found in Appendix 5.

29. Trial of offences

The attention of magistrates is drawn to Part VI of the Primary Courts Criminal Procedure Code. A specimen case file will be found at Appendix 2 and this should be carefully followed.

30. Parties absent in criminal proceedings

What should be done if only one party appears or both parties do not appear? In a criminal case there are three possibilities:-

(1) both complainant and accused may be absent;

(2) the complainant may be absent but the accused may be present;

(3) the accused may be absent but the complainant may be present.

In (1) the court should adjourn the hearing and arrange for the parties to appear on a later date.

In (2) the court may dismiss the charge and acquit the accused person, or it may adjourn the hearing and arrange for the parties to appear on a later date (paragraph 26 of the Primary Courts Criminal Procedure Code). Where the accused is charged with a serious offence, however, the case must be tried and the attendance of the complainant should be secured by a summons if necessary. An accused person should never be convicted unless the complainant has appeared before the court.

In (3), a summons or warrant should be issued to compel the attendance of the accused, a summons if none has yet been issued and the court thinks it will be enough to secure the accused's attendance, but a warrant if he has already received a summons and has not obeyed it, or if the court thinks that a summons will not be obeyed. If the accused cannot be found the complainant should ask the permission of the court to withdraw the complaint. If the court consents to the withdrawal of the complaint, the court should withdraw the charge and discharge the accused (paragraph 23 of the PCCPC.

31. Assessing punishment

It is often not easy to decide the punishment appropriate to an offence, and court-holders vary greatly in what they consider to be suitable sentences, but the following matters should be considered:-

(1) The object of punishment is to deter the accused from committing the same offence again to deter others from committing offences. While it is important to consider the nature of the offence and the circumstance of the accused (e.g. whether he is rich or poor), and of the complainant or person injured (e.g. man or woman, adult or child), it is also important to remember that his punishment should have objects that can be achieved by some other form of puniment, e.g. by a fine.

(2) No offender should be sent to prison if the above objects can be achieved by some other form of punishment. e.g. by a fine.

(3) A person with no previous convictions may be shown leniency which would not be shown to a person who has failed to learn his lesson from previous punishments.

(4) Offences committed against their employers by persons in position of trust e.g. clerks, servants, deserve heavier punishments than if committed by others.

(5) The number of offences of the same kind which are being committed in the court's area should be borne in mind; if the number is increasing a heavier sentence than usual may be justified.

(6) Any profit or advantage gained by the offender out of his offence should be considered; thus it is useless to fine an offender Shs. 10,000/- for selling pombe without a licence if he has made a profit of Shs. 50,000/- from the sale.

32. Fine or imprisonment

When the court has examined the case carefully remembering the points set out above, it should then decide whether a fine is sufficient punishment or whether a sentence of imprisonment should be imposed. If the court considers that the offence is one for which a fine may suitably be given it should not alter this into a sentence of imprisonment merely because it thinks the offender cannot, or will not pay the fine. Someone may pay the fine for him, and he should not go to prison except as a last resort. So decide what is the appropriate punishment and impose it. The recovery of a fine if the accused has property, can be effected by the attachment and sale of the property of the accused. The amount of the fine may be fixed according to the means of the accused, but he should not be deprived completely of the option of paying a fine merely because he has little or no means. If this is done and he serves a substantive term of imprisonment-not one in default of a fine-there is no means of releasing him later should someone come forward with money to pay it for him. If an offender deserves to go to prison he should go there at once, and without the option of a fine, but if he does not deserve to go to prison the court should do all it can to keep him out of it and should not send him there unless there is no other way of punishing him.

Just as the court should not alter a fine into a sentence of substantive imprisonment without the option because it thinks the fine will not be paid, so it should not alter a sentence of imprisonment into a fine at the request of the accused or of someone willing to pay a fine for him. It sometimes happens that a young man's father will come to court and seek to 'redeem'

his son by offering to pay a fine. So that the youth shall not go to prison. Anxious as the court should be to keep people out of prison-especially young men-it cannot agree to allow the accused, or someone representing him, to choose his punishment. The court decides whether a fine or imprisonment is appropriate, and if it considers that the offence deserves imprisonment then it should be, and no change can be made in this decision except on revision or appeal. To change a fine into imprisonment unnecessarily, and to change imprisonment into a fine, shows a complete lack of understanding of the way to impose sentence.

33. Imprisonment in default of payment of fine

This is not to say that an offender cannot be imprisoned in default of payment of his fine. He can, but he should be given an opportunity to pay if there is every probability that he will pay; and the money for the fine should in any case be produced by selling his property, if he has any. But if there is a chance of his running away, and he has no property which can be seized, he should be imprisoned straight away.

If an offender has property the court should allow him time in which to raise the money to pay his fine by the sale or mortgage of the property. As a man of property he has a stake in the country and is not likely to run away without paying his fine. Some may run away, but that is no reason for sentencing all such offenders to imprisonment instead of a fine. No one, for example, should go to prison for not paying a fine of Shs. 5/-, for failing to plant his shamba in ridges (unless he has the means to pay and deliberately

refuses to do so after due notice-which is a very different thing). Accused persons will always ask for time to pay, because in many cases they still hope that the fine will be forgotten. If the accused is in receipt of regular wages, the court may consider whether he should be allowed to pay by instalments.

34. Offenders cannot choose their form of punishment

Some offenders would prefer to go to prison rather than pay up, especially if this involves the sale of stock, but these people also should not be allowed to choose their punishment. When the court considers that a fine is the appropriate punishment in the circumstances of the case, it should impose one and should see that it is paid if the offender has the means to pay. Only if he has no means should it agree to a sentence of imprisonment being served in default. A fine may thus be more severe in some cases than a term of imprisonment, but it is wrong to send a man to prison in default of fine when the money could easily be raised by selling his goat or his bicycle. The court decides the punishment, not the offender.

35. Scale of imprisonment in default of payment of fine (paragraph 2 (4) of Primary Courts Criminal Procedure Code)as amended by the Written Laws (Miscellaneous Amendment) Act No. 2 of 2004. The scale prescribed is:-

Amount	*Maximum period*
Not exceeding Shs. 5,000/-	14 days

Exceeding Shs.5,000/-but not exceeding Shs. 50,000/-	1 month
Exceeding Shs.50,000/-but not exceeding Shs.100,000/-	3 months
Exceeding Shs.100,000/- but not exceeding Shs. 500,000/-	4 months
Exceeding Shs. 500,000/-	6months; and

Such imprisonment, either by itself or together with such substantive imprisonment (if any) as may be imposed, shall not in any event exceed the maximum period of the substantive imprisonment prescribed for the offence.

It must be stressed that these terms of imprisonment are maximum and that there is nothing to prevent a court from sentencing a person to, say, one month's imprisonment in default of payment of a fine of Shs. 5,000/- if it considers that, in the special circumstances of the case, such lesser term is adequate punishment.

36. Confirmation of certain sentences and orders

Certain sentences and orders passed by a primary court require to be confirmed by the district court (paragraph 7 of the Primary Courts Criminal Procedure Code). These are:-

(a) imprisonment for a term exceeding six months;

(b) corporal punishment on an adult;

(c) supervision of an habitual offender;

(d) forfeiture.

When a sentence or order is subject to confirmation by the district court, the case file should be sent without delay to the district court.

When a primary court imposes a minimum sentence under the Minimum Sentences Act the sentence does not require to be confirmed by the district court, but magistrates should not overlook the provisions of paragraph 14 of the Local Courts Adviser's Circular No. 7 of 1963 which lays down that the case file must be sent to the Regional Local Courts Officer (district court under the Magistrates's Courts Act) for scrutiny.

An order to pay compensation is regarded as part of the sentence and does not, therefore, require confirmation.

It will be noted that the only election open to a person convicted of a scheduled offence is to pospone the first instalment of corporal punishment pending appeal.

37. Contempt of court

The provisions covering contempt of court are set out in section 114 of the Penal Code, but primary courts only have jurisdiction to deal with cases covered by the provisions of subsection (1) other than paragraph (d) thereof. As jurisdiction under subsection (2) has not been conferred on primary courts this means that a contempt of court committed in the view of the court cannot be dealt with summarily by the magistrate in whose presence the contempt was committed.

The correct procedure is for the magistrate, in whose presence the contempt was committed, to draw up a charge and open a new case file. If possible the case should be heard by another magistrate.

Magistrates should also note the provisions of section 114A of the Penal Code, which provides that persons who prevent or obstruct the service or execution of process shall be guilty of a misdemeanour and shall be liable on conviction to imprisonment for a term not exceeding one year.

- **The District Executive Director Tarime District Council and Three Others v. Samwel Mwera Siyange**, Civil Revision No. 3 of 2014, CAT (unreported)
- **Masumbuko Rashid v. Republic** [1986] TLR 212
- **Sosthenes Fumbuka v. Republic**[2000] TLR 351
- **Yasini Mikwanga v. Republic** [1984] TLR 10

38. Application of Criminal Procedure Act, Cap, 20 in Primary Courts

Certain sections of the Criminal Procedure Act, Cap. 20 RE 2002, apply in primary courts.This is in accordance with section 3 of Cap 20 which provides:

> **"3. Limitation of application**
>
> (1) Subject to subsection (2), nothing in this Act shall apply to any primary court or primary court magistrate or to the High Court, a district court or a resident magistrate in the exercise of their respective appellate, revisional, supervisory, or other jurisdiction and powers under Part III of the Magistrates' Courts Act.
>
> (2) Notwithstanding the provisions of subsection (1)–
>
> (a) the reference to a court in sections 27, 29, 30, 32 and 141 and the reference to a subordinate court in section 242 shall include reference to a primary court;
>
> (b) the reference to a magistrate in section 36 and sections 70 to 88 shall include a reference to a primary court magistrate;
>
> (c) the Director of Public Prosecutions and any person lawfully authorised by him, may exercise any of the powers conferred on him by sections 90 and 91 in respect of proceedings in a primary court and proceedings in the High Court or a district court under Part III of the Magistrates' Courts Act; but nothing in this paragraph shall be construed as derogating from the provisions of section 29 of the Magistrates' Courts Act;

(d) sections 137, 138, 139, 140 and 141 shall apply to, and the High Court may exercise jurisdiction under section 148(3), 149, 348 and 349 in respect of primary courts.

(3) In this section "primary court", "district court" and "resident magistrate's court" have the meanings respectively assigned to those expressions in the Magistrates' Courts Act."

It should be noted that sections 90 and 91 are subject to the provisions of section 33 (1) of the Magistrates' Courts Act which means that the Director of Public Prosecutions or a State Attoney cannot appear in person in a primary court.

It should also be noted that section 139, 140, 141 and 142 are subject to the provisions of sections 17, 18, 25 and 26 of the Magistrates' Courts Act.

Section 141 sets out the procedure for proving previous convictions where these are not admitted by the accused.

39. Juvenile court (Governed by the Law of the Child Act,2009)

Under section 97 (2) of the Act, the Chief Justice may by notice designate any premises used by a Primary Court to be a Juvenile Court.He has done so through GN No. 314 of 2016. This however, does not confer a Primary Court with jurisdiction to try juvenile matters.

PART V

TRANSFER OF PROCEEDINGS

40. Transfer from primary court-section 47 of the Act (MCA)

It should be noted that, with two exceptions which are referred to below, a primary court cannot on its own motion transfer a case to another court. If a primary court considers that any proceedings should be transfered to another court it should send the case file to the district court stating its reasons in the case file why it considers the proceedings should be transfered. A note to the effect that the case file has been sent to the district court must be made in the register. The district court will record its order in the case file. No appeal against the order of the district court lies to the High Court. If any party applies to a primary court for the proceedings to be transferred to another court, the primary court may either (a) send the case file to the district court giving its reasons why it considers the proceedings should be transfered to another court or (b) refuse the application for transfer and in this event no appeal against such refusal shall lie to the district court.

The two exceptions to which reference was made above are:-

(a) In a criminal case if the accused appears to be of unsound mind the primary court must transfer the case to the district court;

(b) In a criminal case if the accused is charged with an offence punishable in the primary court by imprisonment for more than twelve months or, in the case of an adult, by corporal punishment, the primary court must ask the accused before he pleads to the charge if he elects to have the case

transferred to the district court. If the accused elects to have the case transferred to the district court, the primary court must ask the accused before he pleads to the charge if he elects to have the case transferred to the district court, the primary court must transfer it. The election of the accused must be recorded in the case file, and magistrates are advised to sign the election and to invite the accused to sign it also. If the accused elects to have the case tried in the primary court but, after he has pleaded to the charge, requests the primary court to transfer the case to the district court, the primary court has no power to grant such request.

In certain circumstances which are described in section 47 of the Act, the High Court, court of a resident magistrate, the district court or the Director of Public Prosecutions, can order the transfer of proceedings from a primary court.

41. Transfer to primary court – section 48 of the Act (MCA)

Where any proceedings which could have been started in a primary court have been started in a district court, a court of a resident magistrate, or the High Court, such court can transfer the proceedings at any time before jugement to a primary court having jurisdiction. In addition the High Court has the power to transfer proceedings from any magistrate's court to a primary court.

42. Additional provisions-section 49 of the Act (MCA)

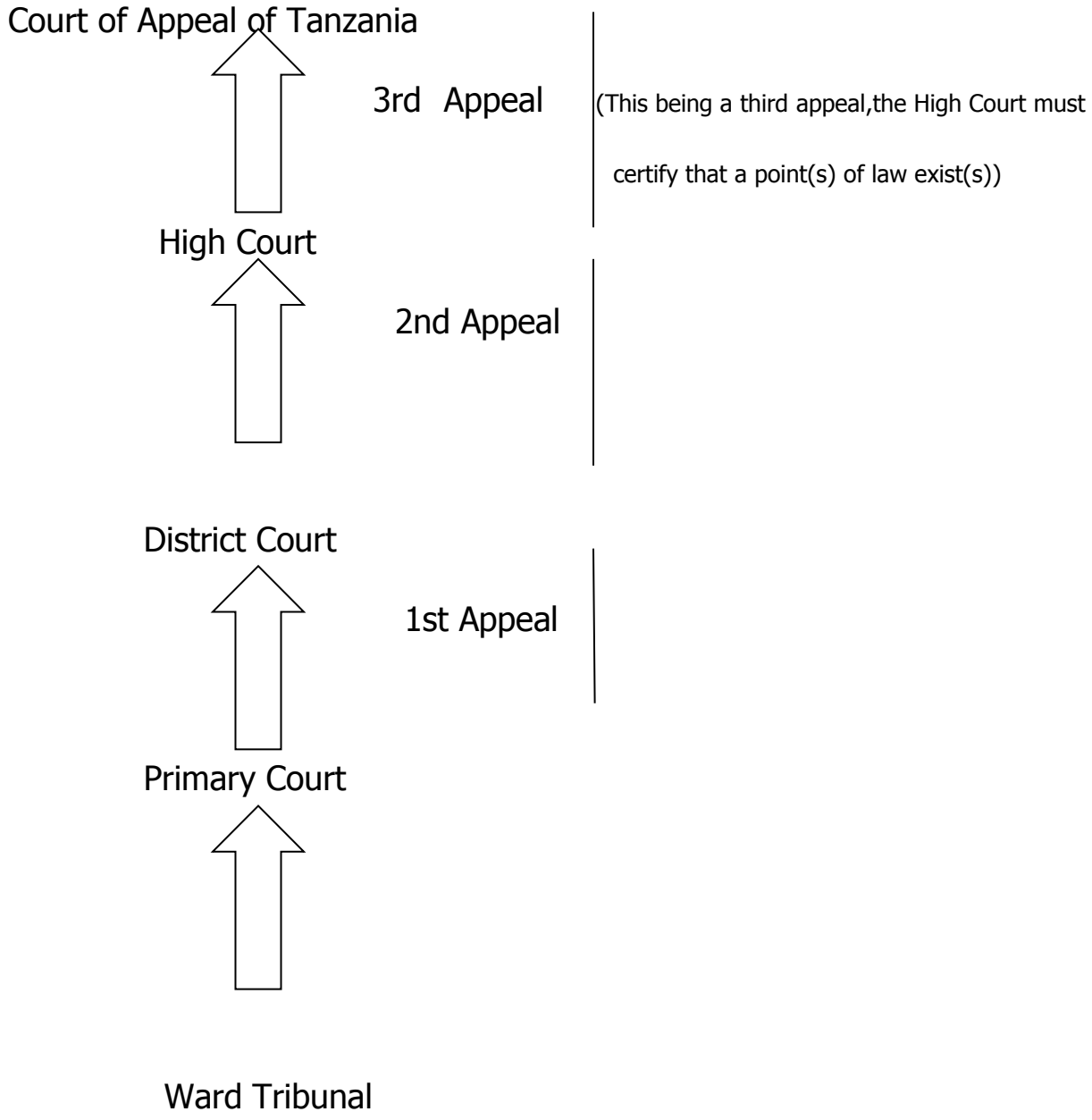
The court to which any proceedings have been transferred shall hear the case in exactly the same way as if the proceedings had been started in that court.

Where any court transfers any criminal proceedings to another court, the court transferring the case shall either take security for the appearance of the accused or remand him in custody.

PART VI

THE APPEAL SYSTEM

43. The Appeal System (General)-The provisions regarding appeals from Ward Tribunal and primary courts are contained in the Ward Tribunals Act, Cap 206 R.E 2002 and Part III of the Magistrates' Courts Act, Cap 11 RE 2002. The appeal ladder is as follows:-



44. Criminal appeals

Section 20 of the Act provides that in criminal proceedings, any person convicted of an offence by a primary court, if aggrieved by any order or decision of the primary court, may appeal therefrom to the district court of the district for which the primary court is established. Where any person has been acquitted by a primary court the Director of Public Prosecution or a complainant has a right of appeal.See section 20 (1) (a) of the Magistrates Court Act, [Cap 11 R.E 200].

In certain cases no appeal is allowed; these are set out in subsection 2 of section 20 of the Act. To give but one example, no appeal shall be allowed in any case in which a primary court has passed a sentence of a fine not exceeding one hundred shillings only save for the leave of the district court.

It is important to note that a petition of appeal must be filed in the District court (not the primary court) within thirty days after the decision or order against which the appeal is brought. Therefore, when explaining his rights of appeal to a convicted person, the magistrate should make it clear to the convicted person that, if he wishes to appeal, his petition of appeal must be filed in the District court within thirty days.

It must be stressed that a primary court has no power to extend the time for filing an appeal; this is a matter for the district court.

45. Civil appeals

Section 20 (1) (b) of the Act provides that in civil proceedings if a party aggrieved by any order or decision of the primary court, he may appeal there from to the district court of the district for which the primary court is established.

As for criminal appeals, a petition of appeal must be filed in the district court (not the primary court) within thirty days after the date of the decision or order against which the appeal is brought, and this must be explained to the parties at the conclusion of the case in the primary court.

The procedure to be followed in civil appeals is set out in the Civil Procedure (Appeals in Proceedings Originating in Primary Courts) Rules, 1964 (GN No. 312 of 1964). Although these Rules do not directly concern primary court magistrates, they should at least be familiar with the provisions of rules 3, 7, 12, 14, 16 and 17 that they can explain the correct procedure to parties. The provisions of these rules are set out in brief below:-

Rule 3. – Every petition of appeal must set out precisly and under distinct heads, numbered consecutively, the ground of objection to the decision or order appealed against and must be signed by the appellant or his agent, if any.

When the appeal is to the High Court, it must be filed in duplicate.

Rule 7.- Any person who has filed an appeal from a district court may apply in writing to the district Court for a stay of execution. An order granting or refusing a stay of execution is appealable to the High Court.

Rule 12.- An appellant can state in his petition of appeal that he does not intend to appear personally or by advocate at the hearing of the appeal, and he can include a written statement of his arguments in support of the appeal. In such a case, the appellate court shall not dismiss the appeal for want of appearance, unless the court had expressly required the attendance of the appellant in person.

Rule 14.- Except with the leave of the appellate court, an appellant or his agent is not entitled to be heard on any ground of objection not set forth in his petition of appeal. So it is important for an appellant to set out all his grounds of objection in his petition of appeal.

Rules 16 and 17. These rules make provision for the re-admission of an appeal and the re-hearing of an appeal, where an appeal has been dismissed in default of appearance by the appellant or where judgement has been pronounced against the respondent in his absence.

In each case application must be made to the appellate court which dismissed the appeal or pronounced judgment.

PART VII

MISCELLANEOUS

46. Advocates and public prosecutors

Under the provisions of section 33 (1) of the MCA no advocates or public prosecutors are allowed to appear in primary courts. This does not, of course, preclude advocates from sitting in a court as a member of the public. They are, however, allowed to appear in appeals from a primary court to the District court, High Court and Court of Appeal of Tanzania.

A Public Prosecutor is a police officer not below the rank of Sub-Inseptor or a State Attorney. There is, therefore, no objection, where it is convenient (e.g. at Urban Courts where complainants have taken their complaints to a nearby Police Station), to a Police Sergeant, Corporal or Constable to present a criminal case to the Court and to examine and cross-examine witnesses.

An advocate is not precluded from advising his client or assisting him in the preparation of papers.

47. Representatives

Parties should themsleves give their evidence unless there is some good reason why a party should be represented by someone else. The court should not allow a representative of a party to act on his behalf merely because the party would like the representative to speak for him, or because

he thinks the representative is a cleverer man than he is, or because the party is too lazy to come to court. There must be some very good reason, e.g. extreme old age, before the court will agree to listen to a representative in a civil case. Representatives may not appear in criminal cases. Where a representative is allowed, he must be either a relative of the party or a member of his household (section 29 (2) of the MCA).

In any proceeding, civil or criminal in which a body corporate, e.g. Patel and Company Limited, is a party, a person employed by the body corporate and authorised by it, may appear for such party, but not an advocate.

48. Justices of the peace

The provisions relating to the appointment and powers of justices of the peace assigned to primary court houses are contained in sections 51, 52, 53, 54, 55 and 56 of the MCA. A guide for justices of the peace assigned to primary courts is issued separetely to all primary court magistrates and justices. This should be studied. Remember that every primary court magistrate is a justice assigned to the district court of the area where his primary court is established (section 58 of the MCA). This being so every primary court magistrate should make himself familiar with the provisions of Sections 56 and 57 of the MCA in addition to the other sections referred to above.

In actual practice, however, it will normally only be the primary court magistrates at District Headquarters who will exercise the powers of a justice assigned to a district court. Thus, in the absence of a resident magistrate in the Resident Magistrate Court, District Court or the primary court, in his capacity as justice, can deal with remands, bail, etc. And can exercise the special powers given to him by section 56 and 57 of the MCA. Furthermore, a primary court magistrate, in his capacity as a justice, can direct any person brought before him under arrest to be taken before the district court without the necessity of opening a case file in the primary court. For justices who are assigned to district courts a separate guide is issued, and this also should be studied by primary court magistrates, Primary court magistrates have powers of supervision over the justices assigned to their court houses.

Note that A Guide for Justice of Peace which was made under section 56 (2) of the then Magistrates Court Act of 1963, Cap 537(currently section 62 (2) of the Magistrates' Courts Act, Cap 11 RE 2002) by Chief Justice contains, inter alia, the manner of taking extra judicial statements.Thus, it must be adhered by all Justice of Peace when recording or taking extra judicial statement of an accused. See the case of **Japhet Thadei Msigwa v. The Republic**, Criminal Appeal No. 367 of 2008, CAT at Iringa (unreported).

49. Limitation of proceedings

In criminal proceedings the provisions for the limitation of time for trial in certain cases are set out in section 241 of the Criminal Procedure Act (CPA) Cap. 20. The reference to a subordinate court in section 241 includes

references to a primary court.See also section 20 of the Primary Court Criminal Procedure Code (PCCPC).

In civil proceedings the provisions regarding the limitation of actions are contained in the Customary Law (Limitation of Civil Proceedings) Rule, 1964.

50. Evidence

The Minister for Justice under the powers conferred upon him by subsection (2) of section 15 of the Magistrates' Courts Act has made regulations prescribing the rules of evidence in primary courts. These regulations-the Primary Courts(Evidence) Regulations. 1964 have been published as Government Notice No. 22 of 1964.

51. Oath of Witnesses and Interpreters

Note- Every witness and interpreter must be sworn or affirmed before giving evidence or interpreting.

52. Fees

The fees to be charged are laid down in the Court Fees Rules made under section 4 of the Judicature and Application of Laws Act,[Cap 358 R.E 2002].

These fees are in many cases different from the old fees. Therefore Court Fees (GN 247 of 2018 Second Schedule) should be carefully studied.

53. Exhibits

Exhibits produced by the parties or witnesses should be handed over to the court. The exhibit should be numbered and the reference number put in the margin parallel to the evidence relating to it: -

I produce the spear (Put in, and marked Ex. 1) Ex.1.
I produce the knife (Put in, and marked Ex.2) Ex.2

If the exhibit is a document it should be endorsed with the name of the court, the number of the case, the party producing it and the date, and the endorsement should be signed by the magistrate.

For instance:-

The Primary Court of Mbulu District at Khatesh,
Criminal Case No.16 of 1964,
Exhibit 1.

Put in by Juma Mohamed.

7th July, 1964.

A. SAID.

P.C: Magistrate.

Bulky exhibits should be labelled in the same way and stored.

If a case is completed and neither of the parties has appealed, the court may order the exhibit to be returned to the person having the right to it. The order should be written in the case file and the person taking it should sign a receipt for it, also in the case file. If the exhibit is perishable. e.g. fish or fruit

taken from a suspected thief, it should either be returned to the owner as soon as possible, or if the true owner cannot be discovered, it should be sold by auction, and the money obtained placed on deposit.

54. Lock-ups (section 70 of the MCA)

The Minister for Home Affairs is responsible for the establishment of lock-ups, but he is authorized to delegate his powers to Regional Commissioners. As every primary court magistrate is a visiting justice in relation to lock-ups he should familiarize himself with any rules made or circulars issued from time to time by the Minister for Home Affairs regarding the administration, control, etc. of lock-ups. Reference should also be made to paragraph 25 in this Manual which deals with remands. In practice, for some time to come, the administration and control of lock-ups will be exercised by District Councils and their employees on behalf of the Ministry of Home Affairs.

55. Forms, registers and returns

A list of forms, registers and returns for use in primary courts are outlined in Appendix 4.

56. Custody of records

Court records should be carefully stored. Case files should be arranged in sequence, so that any case required can be produced for inspection at a moment's notice. Provisions regarding the disposal of records are contained in the Record (Disposal) Rules of 2017. This being the case, primary court magistrates, if concerned about the disposal of court records, should consult district magistrates regarding their disposal.

APPENDIXES

Appendix 1: Proceedings in a Civil case

1. Once the case is ready for hearing the procedure set out below should be followed.

2. Date:……

3. Before me: ……Magistrate

   Assessors……

4. Name of Claimant……

5. Name of Defendant……

6. Read out plaint.

For example, the claimant is claiming the repayment of Shs. 100,000/- and the return of one sewing machine (valued at Shs. 100,000/=, lent to the defendant.

7. Do you admit the claim?

Defendant says, as regards the Shs. 100,000/-. I admit I borrowed it from the claimant, but I repaid Shs. 50,000/- to claimant on 2nd February, 2018, in the presence of two witness Ali Juma and James Robert. As regards the sewing machine, the defendant states that he (the defendant) had originally lent the sewing machine to the claimant, and that the claimant had returned it to him at the same time as the claimant had lent the defendant the Shs. 100,000/-

Claimant is asked to speak to the defendant's answer to the claim.

8. Claimant has never repaid Shs. 50,000/- to me. As regards the sewing machine, it is my own property. I hold a receipt for its purchase from Patel's Stores.

9. Issues

(1) Did the defendant repay Shs. 50,000/- to the claimant?

(2) Is the sewing machine the property of the claimant or the defendant?

10. Claimant. Ali Athumani, tribe Mhehe, of Iringa, tailor, aged 33, Mohamedan, affirmed, states:

……

……

(the magistrate shall record the substance of the evidence of the plaintiff (and subsequently the defendant) and each witness, and at the conclusion of his evidence shall read it over to him and record any amendments or corrections. The magistrate must certify that he has done so.)

XXD. Defendant……

……

……

Signature of Magistrate

11. Chandrikant Patel, Asian, of Iringa, trader, aged 46, Hindu, affirmed, states:

I am the owner of Patel's Stores…….....

XD. Court…….....

…….....

R.O.F.C

…….....

Signature of Magistrate

12. Proceedings adjourned to 6th June, 2018, at 9 a.m

…….....

Signature of Magistrate

13. Court as before,

Parties both present

14. Defendant, Mohamed Abedi, tribe Mhehe, of Iringa, tailor, aged 36, Mohamedan, affirmed

XXD. Claimant…….....

…….....

R.O.F.C

…….....

Signature of Magistrate

15. Ali Juma, tribe Mhehe, of Iringa, unemployed, aged 32, Mohamedan affirmed, states:

.....

.....

XXD. Claimant.....

R.O.F.C

.....

Signature of Magistrate

16. James Robert, tribe Mhehe, of Iringa, teacher, aged 35, Christian, affirmed states:

.....

.....

XXD. Claimant.....

R.O.F.C

.....

Signature of Magistrate

17. If they so wish the parties may address the court in the following order:-

The defendant

The claimant

The substance of what they say must be recorded.

18. Judgment. (The Magistrate here sets out his judgment and reasons, and he the states-)

The issues are answered as follows:-

Issue (1) the defendant did not repay Shs. 50,000/- to the claimant.

Issues (2) the sewing machine is the property of the claimant.

Accordingly there will be judgment for the claimant for the sum of Shs. 100,000/- as claimed, and the defendant is ordered to return the sewing machine to the claimant. The claimant is awarded the costs of this suit.

6th June, 2018

.....

Signature of Magistrate

Signature of Assessors

Note: - The whole judgment must be pronounced by the magistrate in open court.

19. Inform the parties of their right of appeal.

20. The court must now examine the defendant as to his means of satisfying the decision.

Defendant

I do not own a house. I rent two rooms from Salehe Salum. I posses a bicycle valued at Shs. 40,000/- I work as tailor and my wages are Shs. 80,000/- per month. I have a wife and one child aged three years to support. I still have the sewing machine in my possession and it is in working order.

Claimant:

I have no questions to ask.

21. Court:

With regard to the debt of Shs. 100,000/- I order the defendant to pay in two instalments as follows:-

1st instalment on 7th July, 2018

2nd installment on 7th August, 2018.

With regard to the sewing machine the defendant must return it to the claimant on or before 7th July, 2018. The defendant is informed that if he does not pay the instalments on the days fixed by the court and does not return the sewing machine on or before 7th July, 2018, the claimant will be entitled to institute execution proceedings which may involve the attachment and sale of the defendant's bicycle or a proportion of his wages as allowed by law and the seizure of the sewing machine.

6th June, 2018

.....

Signature of Magistrate

Appendix 2: Proceedings in a Criminal case

1. The preliminary procedure to be followed by a magistrate is set out on the front cover of the Criminal Case File. Always remember to record details of remands, bail, etc. Once the case is ready for hearing the procedure set out below should be followed.

2. Date .....

3. Before me: ……. .....Magistrate.

Assessors.....

4. Name of Complainant .....

5. Accused……present in person.

6. Charge read and explained to accused.

7. After reading the charge the court or the complainant must briefly state the facts on which the charge is founded. These facts should be recorded.

8. If the accused is charged with an offence punishable in the primary court by imprisonment for more than twelve months or, in the case of an adult, by corporal punishment, the accused must be asked, in terms of section 47, of the MCA, if he elects to have the case transferred to the district court. If the accused so elects the magistrate must transfer the case to the district court. Whatever course the accused elects to follow, the accused's answer must be recorded and signed by the magistrate and interpreter (if any). The magistrate is advised to invite the accused to sign also.

9. If the accused does not elect to have the case transferred to the district court, the accused is then asked to plead to the charge.

10. If the accused admits the truth of the charge, his admission shall be recorded as nearly as possible in his own words and then read over to him. The magistrate and interpreter (if any) must sign the accused's admission, and the magistrate shall invite the accused to sign it also. The court will then convict the accused and sentence him.

11. If the accused does not admit the truth of the charge, the court shall enter a plea of not guilty and then hear the evidence in the manner explained in the following paragraphs. (The complainant gives his evidence first. Witnesses who have not yet given their evidence should be requested to wait outside the court room.)

12.1st P. W - Ali Athumani, tribe Mnyamwezi of Tabora, cultivator, aged 30, Mohamedan, affirmed, states:

13. (The magistrate shall record the substance of the evidence of each witness, and at the conclusion of his evidence shall read it over to him and record amendments or corrections. The magistrate must certify that he has done so).

XXD Accused .

R.O.F.C.

.....

Signature of Magistrate

2nd P. W.....

Accused has no questions.

R.O.F.C.

.....

Signature of Magistrate

3rd P. W.....

Accused has no questions.

XD. Court.....

R.O.F.C.

.....

Signature of Magistrate

14. At any stage of the proceedings, the court may, if it is satisfied that the accused has no case to answer, dismiss the charge and acquit the accused.

15. If the court considers that the accused has a case to answer, it shall, after the close of the case for the prosecution, ask the accused whether he wishes to give evidence and to call witnesses. If the accused does not wish to give evidence nor to call witnesses, the court should proceed to give judgment. If the accused wishes to give evidence or to call witnesses, or both, the magistrate shall record the evidence of the accused and the defence witnesses in the same manner as for the other witnesses. When accused wishes to give evidence and call witnesses, the accused should give his evidence before that of his witnesses.

16. Accused: Juma Hassani, tribe Mnyamwezi, of Tabora, cultivator, aged 40, Mohamedan, affirmed, states:

.....

.....

XXD. Complainant ....

R.O.F.C.

.....

Signature of Magistrate

1st D.W .....

Complainant has no questions.

XD. Court..... .....

R.O.F.C.

.....

Signature of Magistrate

17. After hearing all the evidence, the Magistrate will proceed to pass judgment. Every judgment must contain the point or points for decision, the decision thereon and the reasons for such decision, and it must be dated and signed by the Magistrate and the assessors.

Judgment

.....

.....

17.10.2018

.....

Signature of Magistrate

Signature of assessors

18. Record previous convictions (if any). The accused must be asked if he admits them. If the accused does not admit them they must be proved in the manner provided in section 143 of the CPA, Cap 20

19. Record report (if any) of Probation Officer.

20. The Magistrate should then proceed to pass sentence according to the law.

17.10.2018

.....

Signature of Magistrate

21. If the sentence is one which requires to be confirmed by the district court *(see* paragraph 7 (1) of the Primary Courts Criminal Procedure Code) record the fact on the case file. The accused must be asked to make an election in terms of paragraph 4 of the PCCPC. At the same time the court must explain to the accused the consequences of an election under either sub-paragraph (a) or (b) of paragraph 4 of the PCCPC. The Magistrate should record whether the accused elects either to start serving his sentence or to postpone serving his sentence pending confirmation.

22. Inform the accused of his right of appeal to the district court, and record the fact that you have done so. (Section 20 of the Act contains the provisions for appeals from primary courts. Note particularly the provisions of subsection 2 of section 20 which sets out the cases in which no appeal is allowed.)

……

Signature of Magistrate

Signature of assessors

Appendix 3: Powers of arrest without a warrant in Tanzania

A. Police officers

Section 15 of the Criminal Procedure Act, Cap 20 sets out the cases where a police officer may arrest without a warrant. It should be particularly noted that a police officer without a warrant of arrest and without an order from a magistrate may arrest any person whom he reasonably suspects of having committed a cognizable offence. Cognizable offence means any offence which under the First Schedule to the Criminal Procedure Act or any other law it is permissible for a police officer to arrest without a warrant.

Section 15 of the Criminal Procedure Act also sets out a number of other cases in which a police officer may arrest without a warrant. These include:-

(a) the arrest of any person who commits a breach of the peace in the presence of a police officer;

(b) the arrest of any person who obstructs a police officer in the due execution of his duty or who escapes or attempts to escape from lawful custody.

The following points should be noted:-

(a) After an arrest without a warrant the police officer must take the person arrested as soon as possible either before a court which is empowered to try the offence in respect of which the person has been arrested, or to a police station.

(b) The person arrested must be subjected to only that degree of restraint which is necessary to prevent his escape.

B. Regional and Area Commissioners

Under the Regional Administration Act,[Cap 97 RE 2002] , both Regional and District Commissioners may themselves arrest or order a police officer to arrest persons whom they consider likely to cause a breach of the peace or-disturbance. The following points in this respect should be noted:-

(a) No offence need actually have been committed by the person arrested.

(b) No arrest should be made under this Act unless it is thought that the breach of the peace or the disturbance cannot be prevented in any way other than by detention.

(c) The person arrested must be taken before a magistrate as quickly as possible. For this purpose a magistrate means a magistrate of the district court.

(d) At the time of making or ordering the arrest the Regional (RC) or Area Commissioner (DC), as the case may be, must record the reasons for the arrest and a copy of the paper setting out the reasons must be delivered to the magistrate whom the person arrested is taken.

(e) If the person arrested is not taken before a magistrate within48 hours of his being taken into custody he shall be released and shall not be liable to be arrested again for the same reason or for the same cause under the powers given by the Regional Administration Act,[Cap 97 RE 2002].

C. Clerks and Messengers employed by District Councils

The Local Government (District Authorities) Act, [Cap 287 R.E 2002], gives limited powers of arrest to clerks and messengers employed by district councils.

These powers may be briefly summarized as follows:-

(i) Where a clerk employed by a district council is informed that a person who is subject to the jurisdiction of the district council and who is within the area of the council, has committed an offence for which he may be arrested without a warrant or in respect of whom a warrant of arrest has already been issued by a court of law, he may cause such person to be arrested and taken before a district court or primary court having jurisdiction-section 42A.

(ii) Messengers employed by a district council may exercise the same powers of arrest as is given to clerks employed by the councils. It should be noted, however, that in exercising these powers messengers must act under the instructions of the clerk of the council-section 42A (3).

(iii) The clerk employed by a divisional committee of a district council has the same powers of arrest as the clerk of a district council itself but only within the area of jurisdiction 'of the division in question-Section 42C.

D. Private persons

Limited powers of arrest are given to private persons by section 16 of the Criminal Procedure Act. The position is this: A private person may arrest any person who in his own presence commits an offence for which the latter can

be arrested without a warrant under any law in force. However, even if the offence is not committed in the view of the private person, if the private person suspects on reasonable grounds that someone has committed one of the more serious offences, known as felonies, he may arrest that person without a warrant.

It should be noted that as soon as possible after the arrest the private person should hand the person arrested over to a police officer or to a police station.

E. Magistrates and Justices of the peace

(1) Justices of the Peace - Under section 53 of the Magistrates' Courts' Act a Justice of the Peace may arrest or may order any person to arrest any person who in his view commits a cognizable offence. The definition of a cognizable offence is dealt with under sub-paragraph A above. The appointment of Justices of the Peace is dealt with under section 51 of the Magistrates Courts Act.

The following points should be particularly noted:-

(a) every executive officer of a district council shall be a Justice of the Peace for the area over which the district council has jurisdiction;

(b) the person arrested by or on the order of a Justice of the Peace shall be taken before a magistrate, where possible, without unnecessary delay.

(2) Magistrates. - A primary court magistrate is by reason of section 58 of the Magistrates' Courts Act a Justice for the district over which his primary court has jurisdiction. As such he has the same powers of arrest as Justices.

The powers of arrest of district court magistrates are dealt with in sections 17 and 18 of the Criminal Procedure Act. Under section 17 a district court magistrate may himself arrest or order the arrest of any person who in his presence and within the geographical area of his jurisdiction commits any offence. Under section 18 any district court magistrate may arrest or direct the arrest in his presence and within the geographical area of his jurisdiction of any person in respect of whom he is able at the time to issue a warrant of arrest. It should be noted that in respect of the powers given by section 17 the offence need not be committed in the presence of the magistrate.

Appendix 4: Forms, Registrers and Returns

A. Important criminal forms for primary court centres

(Must have Judiciary Serial No.)

1. Complaint/Charge Forms.

2. Criminal Case File Covers.

3. Criminal Case File Sheets.

4. Summons Forms.

5. Warrants of Arrest.

6. Committal Warrants.

7. Summons to Witnesses.

8. Bond and Bail after Arrest Forms.

9. Bond to Appear and Give Evidence Forms.

10.Warrant for a Levy of a Fine Forms.

11. Search and Arrest Warrant Forms.

12. Search Warrants.

13. Surety Bonds.

14. Revision Order Receipts Forms.

15. Combined Criminal Register/Return.

16. Remand Warrants.

17. Fines Outstanding Return.

B. Important civil forms for primary court centres

(Must have Judiciary Serial No.)

1. Civil Case File Covers.
2. Civil Case File Sheets.

3. Summons to an Assessor.

4. Primary Courts: Monthly Return Civil Cases Forms.

5. Primary Courts: Civil Case Registers.

6. Order Sending Judgment for Execution to Another Court.

7. Certificate of No/Partial Satisfaction.

8. Judgment (hati ya hukumu).

9. Letter Forwarding Notice/Summons.

10. Letter Returning Notice/Summons.

11. Order to Raise Warrant of Attachment.

12.Letter Forwarding Warrant of Attachment of Salary.

13. Injunction.

14. Attachment Before Judgment.

15.Warrant to Give Possession of property, etc.

16. Warrant for Seizure of Specific Moveable Property.

17. Warrant of Committal.

18. Warrant of Arrest of Witness.

19. Proclamation of Sale.

20. Warrant of Sale of Property in Execution of Judgment.

21. Warrant of Attachment of Property in Execution of Judgment.

22. Plaint

23. Summons (to Defendant).

24. Notice of Date of Hearing.

25. Order to Attach Salary.

26. Affidavit.

C. Forms for issue to district courts only

(Must have Judiciary Serial No.)

1. Police Supervision Forms.

2. Court Order on Revision Forms.

3. Warrant of Imprisonment After Appeal/Revision.

4. Order on Case Committed for Sentence Forms.

5. Notice to Prisons Confirmation/Variation of Primary Court Sentence.

6. Judgment/Order on Appeal Forms.

7. District Courts: Monthly Return Appeals and Revisions Forms.

8. District Court Civil Appeal Registers.

9. District Court Criminal Appeal Registers.

10. District Court Criminal Revision Registers.

11. District Court Civil Revision Registers.

12. Calling for Records Letter Forms.

Appendix 5: Specimen charge sheets

1. STATEMENT OF OFFENCE

GOING ARMED IN PUBLIC, contrary to section 84 of the Penal Code.

PARTICULARS OF OFFENCE

AB on the……day of…….in the …….Region went armed in public without lawful occasion in such a manner as to cause terror to CD and EF.

2. STATEMENT OF OFFENCE

FORCIBLE ENTRY, contrary to section 85 of the Penal Code.

PARTICULARS OF OFFENCE

AB on the……..day of …….in the ……Region in order to take possession of land belonging to CD entered upon such land in a violent manner.

3. STATEMENT OF OFFENCE

AFFRAY, contrary to section 87 of the Penal Code.

PARTICULARS OF OFFENCE

AB on the……day of ……in the …….. Region took part in a fight in a public place, namely (specify the place).

4. STATEMENT OF OFFENCE

USING ABUSIVE LANGUAGE, contrary to section 89 (I) (a) of the Penal Code.

PARTICULARS OF OFFENCE

AB on the ……..day of……in the…… Region

used abusive language to CD in such a manner as was likely to cause a breach of the peace.

5. STATEMENT OF OFFENCE

THREAT OF INJURY TO A PERSON EMPLOYED IN THE PUBLIC SERVICE, contrary to section 101 of the Penal Code.

PARTICULARS OF OFFENCE

AB on the ……..day of……..; in the ……; Region held out a threat of injury to CD, namely threatened to kill the said CD, being a person employed in the public service as a police officer, for the purpose of inducing the said CD to forbear to an act connected with the exercise of the

public functions of the said CD, namely to forbear prosecuting AB on a charge of theft.

6. STATEMENT OF OFFENCE

DESTROYING EVIDENCE, contrary to section 109 of the Penal Code.

PARTICULARS OF OFFENCE

AB on the ……day of ……..in the ……Region knowing that a payment voucher No will be required in evidence in a judicial proceeding, namely the trial of CD on a charge of theft, willfully destroyed the said payment voucher with intent thereby to prevent it from being used in evidence.

7. STATEMENT OF OFFENCE

CONTEMPT OF COURT, contrary to section 114 (1) (a) of the Penal Code.

PARTICULARS OF OFFENCE

AB on the …….day of…….in the ……..Region within the premises in which a judicial hearing was proceeding, namely the trial of CD on a charge of theft, in the Primary Magistrate's Court at Same, showed disrespect in speech to the magistrate conducting the said trial, to wit, referred to the magistrate as being biased and corrupt.

8. STATEMENT OF OFFENCE

CONTEMPT OF COURT, contrary to section 114 (1) (c) of the Penal Code.

PARTICULARS OF OFFENCE

AB on the…… day of……. in the ……Region caused a disturbance in the course of a judicial proceeding, namely a civil case in which CD was the plaintiff and EF the defendant, heard in the primary court at Same.

9. STATEMENT OF OFFENCE

PREVENTING SERVICE OF PROCESS, contrary to section 1 14A of the Penal Code.

PARTICULARS OF OFFENCE

AB on the…….day of ……in the ……Region knowing prevented the service upon CD of a summons issued by the primary court at Moshi in respect of Criminal Case No……..of to be held in the said primary court.

10. STATEMENT OF OFFENCE

ESCAPE FROM LAWFUL CUSTODY contrary to section 116 of the Penal Code.

PARTICULARS OF OFFENCE

AB on the …….day of ……., in the Singida Region, being in the lawful custody of the prison at Singida, escaped from-the said prison.

11. STATEMENT OF OFFENCE

ABSENCE FROM EXTRA-MURAL EMPLOYMENT, contrary to section 116A (1) of the Penal Code.

PARTICULARS OF OFFENCE

AB on the……day of……, in the Coast Region, having received permission to work outside the Ukonga Prison in accordance with the provisions of section 87 of the Prisons Ordinance, unlawfully absented himself from the task of (specify the task) allotted to him.

12. STATEMENT OF OFFENCE

AIDING A PRISONER TO ESCAPE, contrary to section 117 (1) of the Penal Code.

PARTICULARS OF OFFENCE

AB on the ……..day of……., in the Singida Region, aided a prisoner, namely CD, to escape from the lawful custody of the Singida Prison.

13. STATEMENT OF OFFENCE

DISPOSAL OF PROPERTY UNDER LAWFUL SEIZURE, contrary to section 118 of the Penal Code.

PARTICULARS OF OFFENCE

AB on the…….. day of……., in the Singida Region, knowingly and with intent to defeat the attachment of certain property, namely (specify the property) ordered by the Singida Primary Court, disposed of the said property.

14. STATEMENT OF OFFENCE

ABDUCTION OF A GIRL UNDER 16, contrary to section 134 of the Penal Code.

PARTICULARS OF OFFENCE

AD on the.....day of....., in the.....Region, unlawfully took CD, an unmarried girl under the age of 16 years, out of the custody of her father, EF, and against the will of the said EF.

15. STATEMENT OF OFFENCE

INSULTING THE MODESTY OF A WOMAN, contrary to section 135 (3) ofthe Penal Code.

PARTICULARS OF OFFENCE

AB on the ……..day of……, in the……. Region, with intent to insult the modesty of a woman, CD, uttered words,

namely (specify the words) intending that such words should be heard by the said CD.

16.STATEMENT OF OFFENCE

DESERTION OF CHILDREN, contrary to section 166 of the Penal Code.

PARTICULARS OF OFFENCE

AB on the ……..day of……., in the Region……

being a person having the lawful care or charge of CD, a child of 12 years of age and being able to maintain the said CD, willfully and without lawful or reasonable cause, deserted the said CD and left him/her without means of support.

17. STATEMENT OF OFFENCE

BEING AN IDLE AND DISORDERLY PERSON, contrary to section 176(5) of the Penal Code.

PARTICULARS OFOFFENCE

AB on the……day of ……., in the……..Region, publicly conducted himself in a manner likely to cause a breach of the peace.

18. STATEMENT OF OFFENCE

UNLAWFUL WOUNDING, contrary to section 228 (1) of the Penal Code.

PARTICULARS OF OFFENCE

AB on the……day of……., in the……..Region, unlawfully wounded CD.

19. STATEMENT OF OFFENCE

OMITTING TO TAKE PRECAUTION AGAINST PROBABLE DANGER FROM AN ANIMAL, contrary to section 233 (d) of the Penal Code.

PARTICULARS OF OFFENCE

AB on the…….day of……., in the……Region, in a manner so rash or negligent as to endanger human life, omitted to take precautions against the probable danger to human life caused by a lion kept in the possession of the said AB.

20. STATEMENT OF OFFENCE

COMMON ASSAULT, contrary to section 240 of the Penal Code.

PARTICULARS OF OFFENCE

AB on the……day of……., in the ……..., Region, unlawfully assaulted one CD.

21. STATEMENT OF OFFENCE

ASSAULT OCCASIONING ACTUAL BODILY HARM, contrary to section 241 of the Penal Code.

PARTICULARS OF OFFENCE

AB on the……..day of……, in the……..Region, unlawfully assaulted one CD thereby causing actual bodily harm to the said CD.

22. STATEMENT OF OFFENCE

WRONGFUL CONFINEMENT, contrary to section 253 of the Penal Code.

PARTICULARS OF OFFENCE

AB of the……day of……, in the…… Region, wrongfully confined one CD.

23. STATEMENT OF OFFENCE·

THEFT, contrary to section 265 of the Penal Code.

PARTICULARS OF OFFENCE

AB on the……..day of……., ……in the Region, stole the sum of Shs. 100,000/-the property of CD.

24. STATEMENT OF OFFENCE

CATTLE STEALING, contrary to sections 265 and 268 of the Penal Code.

PARTICULARS OF OFFENCE

AB on the……day of……., in the…….Region, stole three cows the property of CD

25. STATEMENT OF OFFENCE

STEALING BY A PERSON EMPLOYED IN THE PUBLIC SERVICE, contrary to sections 265 and 270 of the Penal Code.

PARTICULARS OF OFFENCE

AB on the……..day of……in the…….Region, being a person employed in the public service as a police officer, stole the sum of Shs. 500,000/- the properly of the Republic.

26. STATEMENT OF OFFENCE

STEALING BY CLERK, contrary to sections 265 and 271 of the Penal Code.

PARTCULARS OF OFFENCE

AB on the ……day of……in the……. Region, being a clerk employed by the CD company, stole a radiogram valued at: Shs. 750,000/- the property of the Company.

27. STATEMENT OF OFFENCE

KILLING AN ANIMAL WITH INTENT TO STEAL, contrary to section 279 of the Penal Code.

PARTICULARS OF OFFENCE

AB on the……..day of…… the……. Region, killed one cow the property of CD with intent to steal the skin thereof.

28.STATEMENT OF OFFENCE

ROBBERY, contrary to section 286 of the Penal Code.

PARTICULARS OF OFFENCE

AS on the ……..,……..day of……in the …….Region, did steal the sum of Shs. 500,000/- from one CD and at or immediately before or immediately after such stealing did use actual violence to the said CD in order to obtain or retain the said sum of money. ART

29. STATEMENT OF OFFENCE

ASSAULT WITH INTENT TO STEAL, contrary to section 288 of the Penal Code.

PARTICULARS OF OFFENCE

AB on the ……..day of……..in the ……assaulted one CD with intent to steal from the said CD.

30. STATEMENT OF OFFENCE

DEMANDING WITH MENACES WITH INTENT TO STEAL, contrary to section 292 of the Penal Code.

PARTICULARS OF OFFENCE

AB on the……day of……in the…… Region, with menaces demanded the sum of Shs. 100,000/- of one CD with intent to steal the same.

31. STATEMENT OF OFFENCE

HOUSEBREAKING (or BURGLARY, as the case may be), contrary to section 294 of the Penal Code.

PARTICULARS OF OFFENCE

AB on the……day of……in the……..Region.

32. STATEMENT OF OFFENCE

ENTERING A DWELLING HOUSE WITH INTENT TO COMMIT A FELONY, contrary to section 299 of the Penal Code.

PARTICULARS OF OFFENCE

AB on the……day of…… 19……in the ……..Region, entered the dwelling house of one CD with intent to commit a felony therein.

33. STATEMENT OF OFFENCE

BREAKING INTO A BUILDING AND COMMITTING A FELONY, contrary to section 296 (1) of the Penal Code.

PARTICULARS OF OFFENCE

AB on the ……day of……..19 , in the……Region, broke and entered a warehouse belonging to one CD and stole therein four jembes and six kangas the property of the said CD.

34. STATEMENT OF OFFENCE

CRIMINAL TRESPASS, contrary to section 299 of the Penal Code.

PARTICULARS OF OFFENCE

AB on the……day of……19……in the Region, unlawfully entered upon property in the occupation of CD, with intent to commit an offence therein or to intimidate, insult or annoy the said CD.

35. STATEMENT OF OFFENCE

OBTAINING GOODS BY FALSE PRETENCES, contrary to section 302 of the Penal Code.

PARTICULARS OF OFFENCE

AB on the ……day of ……19 ……in the Region, with intent to defraud obtained a yard of cloth from CD, by falsely pretending that he was the servant of EF and that he had been authorized by the said EF to collect the said property from the said CD.

36. STATEMENT OF OFFENCE

RECEIVING (or RETAINING) STOLEN PROPERTY, contrary to section 311 (1) of the Penal Code

PARTICULARS OF OFFENCE

AB on the ……..day of……19 …….in the ……. Region, did receive (or retain) two kangas, the property of CD knowing or having reason to believe the same to have been feloniously stolen.

37. STATEMENT OF OFFENCE

SETTING FIRE TO CROPS contrary to section 321 (a) of the Penal Code.

PARTICULARS OF OFFENCE

AB on the……day of……19 ……..in the Region, wilfully and unlawfully set fire to a crop of maize standing in a field belonging to one CD.

38. STATEMENT OF OFFENCE

INJURING ANIMALS contrary to section 325 ofthe Penal Code.

PARTICULARS OF OFFENCE

AB on the……day of……..19 ……in the wilfully and unlawfully killed a dog the property of one CD.

39. STATEMENT OF OFFENCE

MALICIOUS DAMAGE TO PROPERTY, contrary to section 326 (1) of the Penal Code.

PARTICULARS OF OFFENCE:

AB on the……..day of……19……in the wilfully and unlawfully damaged a dwelling house, the property of one CI).

40. STATEMENT OF OFFENCE

PERSONATION, contrary to section 369 of the Penal Code.

PARTICULARS OF OFFENCE

AB on the……day of……19…….. in the…… Region,

with intent to defraud one CD, falsely represented himself to be some other living person, namely EFt

41. STATEMENT OF OFFENCE

ATTEMPTING TO STEAL, contrary to section 265 and 381 of the Penal Code.

PARTICULARS OF OFFENCE

AB on the ……day of……..19…….. in the……..Region, attempted to steal three kanzus, the property of CD.

42. STATEMENT OF OFFENCE

INCITING TO ASSAULT, contrary to section 390 and 240 of the Penal Code.

PARTICULARS OF OFFENCE

AB on the……day of ……19…….. in the Region, incited one CD to assault one EF.

CHAPTER TWO

A GUIDE FOR JUSTICES OF THE PEACE

PART I

A GUIDE FOR JUSTICES OF THE PEACE ASSIGNED TO DISTRICT COURTS

1. Introduction

The purpose of this short guide is to explain to Justice assigned to District court-houses what are their powers and functions. The guide is not exhaustive and when Justices have doubts as to what they should do, they should always seek advice from a District Magistrate. For Justices who are assigned to Primary Court-houses a separate guide has been issued.

So that law and order may be maintained and the administration of justice be carried out at all times in all parts of the State, Parliament, under the Magistrates' Courts Act, has created Justices of the Peace. Those assigned to District Court-houses are given certain powers described in this guide, by which, in the absence of a District Magistrate from his court, they can assist by taking action to ensure that criminal and civil proceedings are not delayed but are prepared ready for hearing when a District Magistrate is next due to hold court.

2. Who are Justices assigned to District Courts?

(i) All Primary Court Magistrates are Justices assigned to the District Court-houses of the District wherein their Primary Court is established.

(ii) The Executive Officers of District Councils (who are all *ex officio* Justices) if assigned to a District Court-house by a District Magistrate.

A justice cannot take any action in a District Court-house unless he has been assigned thereto by a District Magistrate.

3. General functions of Justices

A Justice assigned to a District Court will not often have to exercise any general law and order functions, since District Court-houses are nearly all at District Headquarters where there is always a police station: he may, however, arrest or order the arrest of any person he sees commit a cognizable offence he may receive a complaint either orally or in writing and take action thereon; this action should be:

(i) If the complaint is of a civil nature, the complainant should be directed to the appropriate District or Primary Court where the court clerk will take action on the complaint.

(ii) If the complaint is of a criminal nature, the complainant should be directed to the police station. A Primary Court Magistrate will exercise his own magisterial functions in his own Primary Court-house if he considers the complaint is appropriate to his own and not a District Court. He will only exercise Justice of the Peace functions if the matter which arises is one that is properly concerned with a District Court, e.g. a serious offence such as murder or rape, or a civil case concerning lease-hold land. A Justice who is a Primary Court Magistrate can therefore cause such serious proceedings coming to his official notice to be directed straight to a District Court without

his having to commence proceedings in his Primary Court and then formally seek their transfer to a District Court. Likewise, a Justice assigned to a District Court who is not himself a Primary Court Magistrate (i.e. an Executive Officer of a District Council) will use his discretion as to whether a complaint brought to him should be directed to a District or a primary Court.

4. Jurisdiction of Justices in the absence of a District Magistrate

In the absence of a District Magistrate, a Justice assigned to a District Court may sit in a District Court-house and take the following action:-

Criminal matters –

(i) Further remand any person already remanded in custody by a District Magistrate.

(ii) Extend the period of bail of any person admitted to bail by a District Magistrate.

(iii) Remand in custody or commit to bail any person lawfully arrested by the police or appearing before the court duly summoned.

(iv) Issue an arrest warrant in respect of any person who has failed to appear in breach of a bond.

Criminal and civil matters

(v) Endorse warrants and summons received from courts outside the District.

(vi) If it is shown to the satisfaction of the Justice that any property in dispute in a case is in danger of being destroyed; or being hidden; or being damaged; or being injuriously dealt with by any person, then the Justice may issue an injunction to restrain any such person from so doing if he deems fit,

the Justice may take the property into his custody, and if it is perishable sell or dispose of it and retain the proceeds as if it were the property itself. Action under this paragraph will normally be taken by a Justice –

(a) in criminal proceedings on the application of the complainant;

(b) in civil proceedings on the application of the plaintiff (on payment of the prescribed fees to the court clerk).

Normally a Justice will issue an injunction and will only take the property into custody on the further application of the complainant in a criminal case or of the plaintiff in a civil case on the grounds that the injunction is being disobeyed or that there is reason to believe that it will be disobeyed.

Note: Any property taken into custody should be kept carefully at the Courthouse, and if any property is sold then the cash received must be deposited without delay at the court-house and a receipt obtained therefor from the court clerk.

Civil Matters –

(vii) Issue a summons to a defendant, witness or other party.

Note: A person charged with murder or treason should always be remanded in custody. When deciding whether to issue a warrant of arrest or to summons a person, and similarly when deciding whether to remand an accused person in custody or to commit him to bail, a Justice should always bear in mind that to detain a person in custody is to deprive him of his freedom. He should, therefore, always satisfy himself that the accused is likely to run away; or to refuse to attend court; or to commit a public nuisance; or to interfere with witnesses; or the charge is a serious one and

investigating would be impaired were the accused not in custody, before he issues an arrest warrant or remands a person in custody.

5. Procedure to be followed by Justices

(i) When he receives a complaint a Justice must examine the complainant; and if satisfied that there are sufficient grounds, he may issue a summons or a warrant of arrest to compel the attendance of the person accused by the complainant. A Justice should not issue a warrant of arrest unless he is satisfied that the person accused should properly be detained in custody pending trial or if a Justice considers he is unlikely to answer to a summons. (see Note to para. 4 (vii) *supra.)*

(ii) When a warrant of arrest is issued and directed to a police officer, the police officer may be authorized by the Justice to release the accused on his executing a bond for a specified sum that he will appear before the Court.

(iii) Every summons or warrant used will be in the form laid down, a stock of which will be held at every court centre. Every summons or warrant issued by a Justice will direct the appearance of the accused at the court centre as specified in the warrant or summons. This will, of course, usually be the same court centre as that to which the Justice is assigned.

(iv) A summons should be served personally, provided that where a Justice is satisfied that personal service cannot be effected, or can only be effected with undue delay or expense, he may direct that the summons be served by registered post, or by affixing a copy of the summons on some conspicuous part of the last known residence of the person to be served or if the person to be served cannot be found, a summons may be left with an adult male

member of his family, or with an adult male servant residing with him. Any such person with whom a summons is left shall take all reasonable steps to serve the person to be summoned.

(v) A summons to a defendant in a civil case should state briefly the nature of the claim made against him.

(vi) Where a party in a civil case is summoned only to produce a document and not to give evidence himself, it will be sufficient if he causes the document to be produced in court as required by the summons without himself making a personal appearance at court.

(vii) in all cases, both criminal and civil, where a summons is served personally one copy should be left with the person summoned and a copy signed by that person should be returned to the court.

Note: Justices do not have the power to issue search warrants.

Justices should always remember that a person arrested should be brought before a magistrate as soon as possible: the maximum period for which a Justice may remand an accused in custody before he is brought before a magistrate is twenty-eight days. Justices will receive general instructions as to the circuits of District Court Magistrates and as to when a Justice should direct an accused person to any other District Court-house than that to which he is assigned.

(viii) In criminal proceedings where on receipt of a complaint a Justice decides to issue a warrant or summons, the action taken must be recorded and the charge entered in the criminal case register of the District Court-house concerned.

(ix) Where a Justice decides to take no action on a complaint, he should record the complaint in a file kept for that purpose at the Court-house. Every such complaint should be entered in the file as follows:-

Date of Complaint	*Name of complainant*	*Shauri*	*Reason in brief why Justice to take no action*

Signed .....

Justice

Date: .....

(x) In criminal proceedings, when a prisoner either summoned or arrested is brought before a Justice at a District Court-house, a case file must be opened (if this has not already been done) and a charge drawn and enclosed therein (if this also has not already been done).

The Justice will record, sign and date in the case file the action that he decides to take in respect of the prisoner, i.e. whether remanded in custody, if so for how long or whether granted bail, or whether to be brought before another District Court.

Note. It will be the responsibility of the court clerk to give every assistance to the Justice in making entries in the records of the Court-house and in preparing warrants/summons ready for signature.

The court clerk should always know when the magistrate is next coming to the Court-house so that cases can be set down for hearing when the magistrate will be present, and summons should direct the appearance of

accused persons or witnesses on the day set down for the magistrate to hear the case.

6. Special powers of Justices assigned to District Court- houses

S.57 MCA (A) A justice assigned to a District Court house may take and record the confessions of persons in the custody of the police.

A prisoner wishing to make a statement may be brought to the office of a justice under police escort and usually bearing a letter from the Officer-in-Charge, Police, to the effect that the accused, who is under arrest in connection with an alleged offence, wishes to make a voluntary statement to a magistrate/ Justice.

On every such occasion, a Justice should take the following action, which should be recorded on foolscap paper:

In the District Court of .....

at .....

Justice of the Peace assigned to this District Court.

(1) The prisoner is brought before me in police custody..... at o'clock on..... (date).

(2) I am informed by the police that the prisoner is accused of .....

.....

And wishes to have a statement recorded.

(3) The prisoner is placed in the custody of…… . (messenger) and the police are directed to leave the premises. I am satisfied that there is no police officer in the office nor in any place where these proceedings can be seen or heard.

(4) ……Duly affirmed as interpreter between (Kichagga and Kiswahili).

Note: It will often be convenient to use the messenger guarding the prisoner as the interpreter. Unless the Justice speaks fluently the language of the prisoner, an interpreter who does so should be used.

(5) The prisoner is informed that he is before a Justice and asked if he wishes to say anything. He replies, "Yes, I wish to say something". (If the prisoner replies. "No". He should be returned at once to police custody).

(6) I have, with the consent of the prisoner, examined his body. The result of my examination is as follows:-

……..

Note: The record should state whether any marks, bruises, cuts are noted and whether they appear to be old or recently caused.

(7) The Justice should now ask the prisoner the following questions and record his replies thereto:

Q.- On what day and at time were you arrested by the police?

A.-

Q.- At what place were your arrested?

A.-

Q. After you were arrested where were you taken by the police and where did you sleep until you were brought here before me?

A.-

(8) The Justice must now explain to the prisoner that he is free to make a statement or not, as he pleases. And he should next ask the prisoner the following questions and record his replies thereto:-

Q.- Has any persons by any threat or by any promise or by any violence towards you persuaded you to come here to make a statement before me?

A.-

Q.- Do you really wish to make a statement to me of you own free will?

A.-

Q.- You understand that if you make a statement, it will be recorded and may be used as evidence later when you are brought to trial?

A.-

I have questioned the prisoner and after careful consideration of his replies, I am satisfied that he is a free agent and that the statement he makes is a voluntary one and that he has not been forced to make it by threats or any other means.

Signed .....

Justice

Date: .....

(9) The prisoner is asked: Do you wish to make a statement? Reply:

"Yes, I wish to say .....

.....

(the exact words of the prisoner must be recorded)

.....

(Signature or R. T.M. of prisoner)

I believe that this statement was voluntarily made. It was taken down in my presence and hearing and was read over to the prisoner making it and agreed by him to be correct and it contains a full and true record of the statement made by him.

Signed .....

Justice

Date .....

(Signature of Interpreter if used) .....

Date: .....

Note: Once the prisoner starts to make his statement, the Justice should not intervene in any way until he has finished. The Justice when recording the statement of the prisoner must not ask any question except where essential for the sake of clarification: example: "I was at a 'beer drink': deceased and Ali were there. They shouted at me. He then hit me with his beer mug". The Justice could properly ask the prisoner who "he" was.

(10) The accused is returned to police custody:

Signed .....

Justice

Date .....

Note: The recorded statement should be given as soon as possible to the court clerk of the District Court.

It is appreciated that the procedure in taking a confession is a lengthy one: the Justice will have much to write down. This is essential so that the record may show conclusively that the statement made was really a voluntary one.

Some District Courts will have cyclostyled forms including paragraphs 2,3,5,6, 7 and 8: this will save time in writing, but if used must be carefully and fully complied with by Justices.

S.80 Cap 58 (B) Prisoners of unsound mind (as repealed by the Prisons Act No 34, 1967 which was subsequently amended by the Written Laws(Miscellaneous Amendments) Act No 2 of 2002

Where a remand or convicted prisoner is suspected of being of unsound mind and the medical officer of a prison considers it is necessary/desirable for the prisoner to be detained for further observation in a Government mental hospital, the medical officer will furnish a report in writing: a Justice may after considering such report, make an order in writing authorizing the removal of the said prisoner to a Government mental hospital and his detention therein for such time not exceeding thirty days as may be required to determine the condition of his mind.

It will be the officer in charge of the prison at which the remand or convicted prisoner is being held, who will apply to the Justice for an order in these cases: Justices are strongly recommended to require any such prisoner to be

brought before them or to visit the prison to see any such prisoner before making any order for removal.

S.9A Cap 98

(C) Persons believed to be of unsound mind.

A Justice should always sit in the Court-house when acting under this section

(1) A Justice assigned to a District Court may order the detention for mental observation of any person brought before him by the police believed to be of unsound mind. In all such cases a Justice should take the following action:

(i) On receiving a report from an officer i/c a police station direct that the said person be brought before him.

(ii) Where any such person is brought before him examine him and if he considers that it is appropriate authorize his detention in suitable custody for such period not exceeding 15 days, as may be necessary for the Medical Officer to determine whether such person is of unsound mind.

(iii) Inform any such person in respect of whom any order for detention in custody is made of his right to appeal there from to the High Court.

(iv) Inform the District Court to which he is assigned of the action he has taken.

(2) A Justice may –

(i) Sit in private when examining any person brought before him under this law.

(ii) Allow any such person brought before him to be represented by
a suitable person. Or may appoint a suitable person to represent him.

(iii) Order the further detention of any such person in suitable custody, for a period not exceeding 15 days provided that in no case should any such person be detained in custody for a total period exceeding 60 days.

Note: When a Justice proceeds under this law, he should open a case file and enter therein the action that he takes. For example:

"In the District Court of Kondoa

Before……., Justice assigned to Kondoa District Court.

.....

Date

Petro Joseph present in person, in custody of Police Constable James. Police Constable James explains that the prisoner has been tearing his clothers, screaming, throwing stones and mud at the school children.

I have noted the behaviour of Petro Joseph who has sat on the floor in front of me in his torn clothes and has shouted words that do not make sense. He has been unable to answer my questions and he appears to be in a very abnormal state.

I order that Petrol Joseph be detained in Kondoa Prison for 15 days for medical observation

Petrol Joseph informed of his right to appeal against this order to the High Court Dar es Salaam.

Signed ……

Justice

Date ……

Case file handed to Kondoa District court clerk to be brought to the attention of District Magistrate at first opportunity.

Signed .....

Justice

Date .....

Note: A Justice does not have the power under this law to commit to a Government mental hospital a person certified by a doctor to be of unsound mind: this can only be done by a magistrate.

A Justice will only order the further detention of a person believed to be of unsound mind where this is recommended to him by the medical officer.

A Justice may order the release from custody of any person detained under this law at any time where recommended by a medical officer.

When proceeding under this law a Justice will normally order the detention of a person in custody to the Local Prison. If practicable, however he should order any such person to be detained in a Government mental hospital.

If a Justice considers that a person brought before him for examination by him does not need to be detained for medical observation, he should order the person to be released forthwith from custody unless the police proceed to charge him with an offence.

7. Supervision of Justices

The work of Justices will be subject to the supervision of the magistrates who exercise jurisdiction at the Court-houses to which Justices are assigned and supervisory magistrates.

The Registrar of the High Court may from time to time issue instructions for the guidance and control of Justices, and every Justice must comply with and obey such instructions.

8. Oaths to be taken by Justices

Every Justice is required to take the following official oath:-

"I,…….. , do swear that I will well and truly serve the United Republic of Tanzania in the office of Justice of the Peace and that, in the exercise of the functions of that office, I will do right to all manner of persons to the best of my ability and power in accordance with the laws and customs of the Republic. So help me God."

This oath will be sworn or affirmed before a District Magistrate and will be recorded in a book kept for this purpose.

9. Miscellaneous

The Court-house stamp must always be affixed to any summons, warrant of arrest or remand warrant issued by a Justice.

PHJ/M/H

14.12.2017

PART II

A GUIDE FOR JUSTICES OF THE PEACE ASSIGNED TO PRIMARY COURTS

1.The purpose of this small guide is to explain to Justices appointed under the Magistrates' Courts Act and assigned to Primary Court-houses what are their powers and functions. The guide is not exhaustive and when Justices have doubts as to what they should do, they should always seek advice from the magistrates in their District. For Justices who are assigned to District Courts and who will have other functions, a separate guide has been issued.

2. Why Justices are appointed

There are two main reasons for the appointment of Justices:

(i) To ensure that law and order is maintained throughout the rural areas of Tanzania where there will often be neither magistrate nor police readily available to take appropriate action.

(ii) To assist at Court-houses presided over by magistrates who will often be peripatetic and absent on circuit. Justices will be able to give assistance to these magistrates by taking action to ensure that criminal and civil proceedings are ready for hearing and the parties duly summoned to attend Court when the magistrate is next due at the Court-house.

For these purposes, so that the administration of justice may be carried out at all times, Parliament, under the Magistrates' Courts Act, has created Justices who will have certain powers and duties described in this guide.

3. Who are Justices?

(i) The following officers of District Councils are all Justices under section 51 of the Magistrates' Courts Act: the Chief Executive Officer of every District Council, the Chief Executive Officer of every Divisional Committee of a District Council and all Assistant Executive or Divisional Executive Officers.

(ii) Such other persons as the Minister for Justice may appoint.

A Justice cannot exercise his powers at a Court-house until he has been assigned to one Justices will be assigned to Court-houses by the appropriate judicial authority: this will usually be the District Magistrate.

It is generally intended that Divisional and Assistant Divisional Executive Officers will be assigned to the Court-houses at which or nearest to which they reside in the normal course of duty as the officers of Local Government.

4. Where can a Justice exercise his powers?

(i) Normally only at the Court-house to which he is assigned by a Magistrate of the District Court.

(ii) Anywhere in the District where he is appointed a Justice for the purpose of para. 5(a) and (b) below

Note: Unless he is causing the arrest of a person whom he sees commit a cognizable offence, a Justice should normally tell a complainant to proceed to the nearest Court if he knows that a magistrate is in attendance there, rather than take any action himself. If the magistrate is away, then the Justice is

advised whenever possible to proceed to the Court-house to which he is assigned and to exercise his functions there.

5. What are the powers to Justices?

S.56 MCA

(a) A Justice may arrest or order the arrest of anyone whom he *sees* commit a cognizable offence.

(b) A Justice may-

(i) Receive a complaint either orally or in writing from a complainant: the Justice must examine the complainant and if satisfied that there are sufficient grounds he may issue a summons or a warrant of arrest to compel the attendance of the person accused by the complainant. A Justice should not issue a warrant of arrest unless he is satisfied that the person accused should properly be detained in custody pending trial or if a Justice considers he is unlikely to answer to a summons.

Note: It is emphasized that Justices should always bear in mind that to detain a person in custody is to deprive him of his freedom. Before remanding an accused to a prison or lock-up a Justice should always satisfy himself that the accused is –

likely to run away; or

to refuse to attend Court; or

to commit a public nuisance; or

to interfere with witnesses; or

that the charge is a serious one and the investigation would be impaired were the accused not in custody.

(ii)When a warrant of arrest is issued and directed to a police officer the police officer may be authorized by the Justice to release the accused on his executing a bond for a specified sum that he will appear before the Court.

Note: Normally in rural areas there will not be a police officer to whom to direct a warrant a warrant will usually be directed to a Court or Council messenger to whom the power to release an accused person is not given.

(iii) Every summons or warrant used will be in the form laid down, a stock of which will be held at every Court centre. Every summons or warrant issued by a Justice will direct the appearance of the accused at the Court centre as specified in the warrant or summons. This will of course, usually be the same Court centre as that to which the Justice is assigned.

(iv) A summons should be served personally provided that – where a Justice is satisfied that personal service cannot be effected or can only be effected with undue delay or expense, he may direct that the summons be served by registered post; or by affixing a copy of the summons on some conspicuous part of the last known residence of the person to be served: or if the person to be served cannot be found a summons may be left with an adult male member of his family; or with an adult male servant residing with him. Any

such person with whom a summons is left shall take all reasonable steps to serve the person to be summoned.

(v) A summons to a defendant in a civil case should state briefly the nature of the claim made against him.

(vi) Where a party in a civil case is summoned only to produce a document and not to give evidence himself, it will be sufficient if he causes the document to be produced in Court as required by the summons without himself making a personal appearance at the Court.

(vii) In all cases, both criminal and civil, where a summons is served personally, one copy should be left with the person summoned and a copy signed by that person should be returned to the Court.

Note: In cases of serious crime, such as murder, the Justice will always direct the appearance of the accused before a District Court.
Justices should always remember that a person arrested should be brought before a magistrate as soon as possible: see para 7(iii) the maximum period for which a Justice may remand an accused in custody before he is brought before a magistrate is twenty-eight days. The appropriate judicial authority (usually the District Magistrate) will give general instructions as to the circuits of Primary Court Magistrates and as to when a Justice should direct an accused person to any other Primary Court-house than that to which he is assigned.

Justices do not have the power to issue search warrants.

6. Procedure by Justices

Whenever a Justice considers a complaint under para. 5 (b) above, he should take the following action at the Court-house to which he is assigned:

(i)Where he has decided to issue a warrant or summons, he must enter up columns 2, 3,4,5,6 and 8 in the criminal "Register and Return" of the Court: this should be entered for him by the court clerk.

If a warrant or summons directs an accused to be brought to any other Court (e.g. the District Court) column I should not be entered.

An entry instead should be made in the remarks column (column 18- "Accused to be brought before …….Court".

(ii) Where a Justice decides to take no action on a complaint, he should record the complaint in a file kept for that purpose at the Court-house.

Every such complaint should be entered in the file as follows:-

Date of Complaint Name of complainant Shauri Reason in brief why Justice to take no action

Signed …….

Justice

Date: …….

Note: The information required which is outlined above emphasizes clearly to Justices the need to exercise their functions whenever possible at the Court-house to which they are assigned.

7. Powers of Justices which can be exercised only in the absence of a magistrate and only when sitting in the Court-house to which they are assigned

Whenever an arrested person is brought before a Justice at the Court-house the Justice shall-

(i) Open a case file, enter the charge on the outside of the file cover and sign it.

Note. If any magistrate or a police office has already drawn a charge it should be placed in the case file.

And may-

(ii) Admit the person arrested to bail with or without sureties or on his own bond-except any person charged with murder or treason who must be sent in custody to a District Court. Or-

(iii) May remand the person accused in custody in prison or a lockup for a period not exceeding seven days at anyone time and never for a total exceeding twenty-eight days unless communications to the nearest magistrate have been interrupted.

Note: Before deciding to remand an accused person in custody a Justice should always be satisfied that it is really necessary to do so; that the accused is likely to run away or to refuse to attend Court or to comit a public

nuisance, or, not being of known good character has no-one available to stand surety for him.

A Justice shall-

(iv) Enter in the appropriate space on the outside of the case tile cover the action he has taken, e.g. "21/7/2018 accused, Ali Abdullah present in person, arrested without a warrant, charged as above remanded in custody at.. Court lock-up to 28/7/2018.

Signed .....

Justice

Court-house.....

Note: It will be the responsibility of the court clerk to give every assistance to the Justice in making entries in the records of the Court-house and in preparing warrant/summons ready for signature.

The court clerk should always know when the magistrate is next coming to the Court centre so that cases can be set down for hearing when the magistrate will be present, and summons should direct the appearance of accused persons or witnesses on the day set down for the magistrate to hear the case.

A Justice may-

(v) Issue an arrest warrant in respect of any person who has failed to appear in breach of a bond.

(vi) Cause any arrested person to be taken to a District Court.

Note: When a Justice directs an arrested person brought before him to be taken to a District Court or to appear before a magistrate at any Primary Court-house other than that to which he (the Justice) is assigned, as in para. 6 (i) above, he will record this in the remarks column of the combined "Register and Return" at the Court· house: a case file will not be opened, nor will column 1 of the Register be filled in.

(vii) Issue a summons compelling any person to appear and give evidence or to produce any document in respect of any proceedings to be heard in the Court-house.

(viii) Endorse warrants and summons received from Courts outside his District so that action can be taken thereon.

Note. This means that where a summons or a warrant is received at this Court-house from outside the District, a Justice may countersign it and direct the warrant to a police officer or messenger so that the summons can be served or the warrant duly executed.

(ix) If it is shown to the satisfaction of the Justice that any property in dispute in a case is in danger of –

being destroyed; or

being hidden; or

being damaged; or

being injuriously dealt with by any person, then the Justice may issue an injunction to restrain any such person from so doing if he deems fit, the Justice may take the property into his custody, and if it is perishable sell of dispose of it and retain the proceeds as if it were the property itself.

Action under this paragraph will normally be taken by a Justice-

(a) in criminal proceedings on the application of the complainant;
(b). In civil proceedings on the application of the plaintiff (on payment of the prescribed fees to the court clerk).

Normally a Justice will issue an injunction and will only take the property into custody on the further application of the complainant in a criminal case or of the plaintiff in a civil case on the grounds that the injunction is being disobeyed or that there is reason to believe that it will be disobeyed.

Note: Any property taken into custody should be kept carefully at the Court-house, and if any property is sold then the cash received must be deposited without delay at the Court-house and a receipt obtained therefore from the court clerk.

8. Procedure in civil cases

In civil proceedings it will only be necessary for a Justice to take action under-
(a)Para. 5 (b) (i): When a Justice considers a complaint made to him is of a civil nature, he should advise the complainant to proceed to Court, where, in the absence of a magistrate, the court clerk will be ready to assist him and to take such action as is necessary.
(b) Para. 7 (vii): When a summons is issued to a defendant, witness or other party, summons will be prepared by the court clerk for signature by the Justice.

(c) Para.7 (viii): When endorsing summons received from outside the District.
(d) Para.7 (ix): When taking action to protect property in dispute in a case.

Note: It will not be necessary for a Justice to make any entry in a civil case file or register. It will be the responsibility of the court clerk to see that civil case files are opened, appropriate entries therein and in the register of civil cases, duly made.

9. Supervision of Justices

The work of Justices will be subject to the supervision of the magistrates who exercise jurisdiction at the Court-houses to which Justices are assigned, the District Magistrate and supervisory magistrate.

The Registrar of the High Court may from time to time issue instructions for the guidance and control of Justices, and every Justice must comply with and obey such instructions.

10. Oaths to be taken by Justices

Every Justice is required to take the following official oath:-
"I…… do swear that I will well and truly serve the United Republic of Tanzania in the office of Justice of the Peace and that, in the exercise of the functions of that office, I will do right to all manner of persons to the best of my ability and power in accordance with the laws and customs of the Republic. So help me God."

This oath will be sworn or affirmed before a District Magistrate and will be recorded in a book kept for this purpose.

11. Miscellaneous

The Court-house stamp must always be affixed to any summons warrant of arrest or remand warrant issued by a Justice.

CHAPTER THREE

JUDICIAL ETHICS AND CONDUCT

3.1: Meaning and general overview

- Ethics means rules of conduct or behaviour pertaining to a particular class of human action.
- Judicial ethics refer to a body of moral principles that control, influence or guide the conduct of behaviour of judicial officers.
- Judicial conduct and ethics addresses the complete spectrum of judicial conduct, including uses and abuses of judicial power, judicial demeanor, disqualification, ex-parte communications, case management, financial activities and disclosure, civil and criminal liability, methods of discipline and removal, civic and charitable activities, personal conduct and political activities.
- Judicial ethics therefore is part of a large category of legal ethics, a term that apply to lawyers in all branches of the legal profession. But judicial officers form a particular group within the community of lawyers.
- Ethics issues for judicial officers may arise in the courtroom, outside the courtroom and in judgment writing.
- Thus judicial conduct and ethics apply both in and outside the courtroom.

- Judicial ethics thus can be defined as an examination of the proper behaviour of Judges and Magistrates. It concerns an examination of the high standards of judicial conduct necessary for rule of law to flourish.
- It must be noted that failure by judicial officers to live by these standards will inevitably weaken the confidence that the society generally has in the judiciary and ultimately in the justice system as a whole.
- Magistrates do not live in a vacuum .They are the product of society and form an important part of it. But they must stand apart from those who are judged in terms of conduct and ethics as they cannot enjoy the same freedom enjoyed by other citizens like not being members of political parties. Magistrates as judicial officers are expected to behave according to certain standards of conduct both in and outside of the court.
- The Constitution of the United Republic of Tanzania Cap 2 under Article 151 defines the ethics of the office of the judge to mean ethical rules guiding the conduct of persons holding the office of Judge or Magistrate.
- **NOTE THAT**: Section 3 of The Judiciary Administration Act, (JAA) 2011, No. 4 of 2011 defines a judicial officer to mean a person in the service, appointed to perform the functions and exercise the powers of adjudication or determination of cases in the courts of law and includes a Judge's Assistant.

- The cardinal principles of judicial ethics that apply to any judicial officer whether in the subordinate court or higher court can be divided broadly into three categories-

  One, concerning the acts attributable to his official functions as a judicial officer;

  Two, concerning his conduct while in public glare;

  Third, the expectation of him during his private life. These may necessarily overlap each other.

3.2: The Purpose of Judicial Ethics and Conduct

- To help Magistrates to adhere to highest standards of personal and official judicial conduct.
- To preserve the judicial system fairness, integrity and impartiality by eliminating bias and prejudice.
- To enhance public trust and confidence in the judiciary.
- To provide guidance to Magistrates for regulating judicial conduct.
- To improve conduct and help Magistrates to perform their duties more efficiently.
- To safeguard and promote Independence of the Judiciary.
- To maintain confidence in the expectations of citizens.

3.3: Sources of Judicial Ethics and Conduct

- Judicial oath is the starting point of judicial ethics. The oath makes a judicial officer to step into a position of judicial power.

- The Judicial oath in Tanzania states:

  "I.....Do swear that I will well and truly serve the United Republic of Tanzania in the office of.... and I will do justice in accordance with the Constitution of the United Republic of Tanzania as by law established and in accordance with the laws and customs of the United Republic without fear or favour, affection or ill will. So help me God."
- The Constitution of the United Republic of Tanzania, Cap 2.
- International standards of judicial conduct; The Bangalore Principles of Judicial Conduct.
- The Judiciary Administration Act No. 4 of 2011.
- The Maxims for Magistrates.
- The Code of Conduct for Judiciary Officers of Tanzania adopted in 1984 by Judges and Magistrates in a Conference held at Arusha in March 15th – 16th.
- The Code of Ethics and Conduct for Public Service, 2005.
- The Leadership Code of Ethics, 1995 (Cap 398) (Section 4 defines a public leader to include a judge and a magistrate)

3.4: Breach of the Code of Conduct

- Para (iii) of the Explanations (page 1 of the Code) reads:-

  "Violation of any of the rules contained in this Code shall constitute judicial misconduct and may entail disciplinary action."

3.5: Fundamental matters contained in the Codes of conduct and ethics

3.5.1: The Rules of the Code of Conduct for Judicial Officers of Tanzania, 1984

- The Code of Conduct has four (4) rules:-

Rule 1- A Judicial Officer should avoid impropriety and appearance of impropriety in all his duties.

Rule 2- A Judicial Officer should be competent and have the necessary knowledge and skills in adjudicative and administrative duties. The rule is divided into four parts:

A-Adjudicative duties

B-Administrative

C-Disqualification

D-Waiver of disqualification

Rule 3- A judicial officer may engage in activities to improve the law, the legal system and the administration of justice.

Rule 4 - A judicial officer should regulate his extra judicial activities to minimize the risk of conflict with his judicial duties.

3.5.2: Bangalore Principles of Judicial Conduct, 2003

- The Bangalore Principles of Judicial Conduct were adopted in April, 2003. These were annexed to the report presented to 59th Session of the United Nations Special Rapparteur on the Independence of Judges and Lawyers, Doto Param Cumaraswamy.

- The Bangalore Principles of Judicial Conduct has become the International model for professional ethics of judicial officers and many countries in the Commonwealth and the world have made the same part of the laws.
- The Principles contain six fundamental values:

Value 1- Independence

Judicial independence is a pre-requisite to the rule of law and a fundamental guarantee of a fair trial. A judge shall therefore uphold and exemplify judicial independence in both its individual and institutional aspects.

Value 2-Impartiality

Impartiality is essential to the proper discharge of the judicial office. It applies not only to the decision itself but also to the process by which the decision is made.

Value 3-Integrity

Integrity is essential to the proper discharge of the judicial office.

Value 4- Propriety

Propriety and the appearance of propriety are essential to the performance of all the activities of a judge.

Value 5- Equality

Ensuring equality of treatment to all before the courts is essential to due performance of the judicial office.

Value 6- Competence and diligence

Competence and diligence are prerequisite to the due performance of judicial office.

3.5.3: Code of Ethics and Conduct for Public Service

- Code of Ethics and Conduct for Public Service(under the Authority of section 34 of the Public service Act, 2002 and Regulation 65 (1) of the Public service Regulations 2003). In order for the public service to be efficient and respected, public servants must behave, conduct and observe the following matters constituting the Code of Ethics and Conduct:-

  1. Pursuit of Excellence in Service
  2. Loyalty
  3. Diligence
  4. Impartiality
  5. Integrity
  6. Accountability
  7. Respect for law
  8. Proper use of official information

  Note: Apart from those principles a Magistrate as a judicial officer is required:-

  (a) To be viewed by the public correctly
  (b) Demonstrate competence and hard work
  (c) To show uprightness. Uprightness here means and includes incorruptibility, honesty and moral integrity.
  (d) To demonstrate good personal habit and behaviour.
  (e) To demonstrate courtesy.
  (f) To demonstrate patience and impartiality and punctuality.

(g) To guard against first impressions by parties in court.

(h) Dress properly.

3.5.4: The Leadership Code of Ethics Act, Cap 398 RE 2015

4 (1) In this Act, unless the context requires otherwise–

"Code" means the Code of Ethics for Public Leaders established by this Act;

"Commissioner" means the Ethics Commissioner appointed under section 19;

"Government" means the Union Government or the Revolutionary Government of Zanzibar;

"Minister" means the Minister responsible for public leadership code of ethics;

"public leader" means any person holding any of the following public offices, namely–

(i) President of the United Republic;

(ii) Vice-President of the United Republic;

(iii) President of Zanzibar;

(iv) Prime Minister;

(v) Chief Minister of Zanzibar;

(vi) Speaker and Deputy Speaker;

(vii) Chief Justice of the United Republic;

(viii) Minister, Deputy Minister and Regional Commissioner;

(ix) Attorney-General;

(x) Judge and Magistrate;

(xi) Member of Parliament;

(xii) …

6. The Code of Ethics for public leaders shall seek as far as possible to institute and invoke the following principles in respect of the conduct of public leaders, namely–

(a) in relation to ethical standards, that public leaders shall while in office act with honesty, compassion, sobriety, continence, and temperance, and uphold the highest possible ethical standards so that public confidence and trust in the integrity, objectivity and impartiality of Government are conserved and enhanced;

(b) in relation to public scrutiny, that public leaders shall have an obligation–

(i) to perform their official duties and arrange their private affairs in a manner that would bear the closest public scrutiny, an obligation that is not fully discharged by simply acting lawfully;

(ii) in relation to all public leaders whether in elective or appointive offices, there is to be established a procedure for declaration of all property or assets owned by, or liabilities owed to him, his spouse or unmarried minor children, without prejudice to the right of wives and husbands of public leaders to own property independently of their spouses;

(c) in relation to decision making, that public leaders shall, in fulfilling their official duties and responsibilities make decisions in accordance with law, in the public interest and with regard to the merits of each case;

(d) in relation to private interests, that public leaders shall not have private interests, other than those permitted by the Code that would be affected particularly or significantly by government actions in which they participate;

(e) in relation to public interest, that on appointment or election to office, and thereafter, public leaders shall so arrange their affairs as will prevent real, potential or apparent conflicts of interest from arising, but if such a conflict does arise between the private interests of a public leader and his official duties and responsibilities, the conflict shall be resolved in favour of the public interest;

(f) in relation to gifts and benefits, that public leaders shall not solicit or accept transfers of economic benefit other than incidental gifts, customary hospitality or other benefits of nominal value, unless the transfer is pursuant to an enforceable contract or property right of the public leader;

(g) in relation to preferential treatment, that public leaders shall not step out of their official roles to assist private entities or persons in their dealing with the government where this would result in preferential treatment to any person;

(h) in relation to inside information, that public leaders shall not knowingly take advantage of, or benefit from, information which is obtained in the course of their official duties and responsibilities and that is not generally available to the public;

(i) in relation to government property that public leaders shall not directly or indirectly use, or allow the use of, government property of any kind, including property leased to the government, for purposes of according economic benefit to the leader;

(j) in relation to post-employment, that public leaders shall not act, after they leave public office, in such a manner as to bring the service to ridicule or take improper advantage of their previous office, so that possibilities may be minimised of–

(i) allowing prospects of outside employment to create a real, potential or apparent conflict of interest for public leaders while in public office;

(ii) obtaining preferential treatment or privileged access to government after leaving public office;

(iii) taking personal advantage of information obtained in the course of official duties and responsibilities until it becomes generally available to the public; and

(iv) using public office to unfair advantage in obtaining opportunities for outside employment.

8. The provisions of this Part shall constitute part of the code of ethics for public leaders according to the Constitution, and breach of the code shall result in any of the following actions, namely–

(a) warning and caution;

(b) demotion;

(c) suspension;

(d) dismissal;

(e) advising the leader to resign from the office to which the breach relates;

(f) imposition of other penalties provided for under the rules of discipline related to the office of the leader; and

(g) initiating action for the leader to be dealt with under the appropriate law.

9 (1) Every public leader shall, except where the Constitution or any other written law provides otherwise–

(a) within three months after the commencement of this Act; or

(b) within thirty days after taking office;

(c) at the end of each year; and

(d) at the end of his term of office,

submit to the Commissioner a written declaration, in a prescribed form, of all property or assets owned by, or liabilities owed to him, his spouse or unmarried minor children, subject to subsection (2) and subsection (5).

(2) Where the declaration of assets is made by the Commissioner under this section, the declaration shall be submitted to the President.

(3) A public leader shall not be required to declare as his property, and property shall not be deemed to be declarable by a public leader if–

(a) it is not matrimonial property;

(b) it is not jointly owned with the public leader's spouse or spouses;

(c) there is no allegation that a public leader appears to have suddenly and inexplicable come into possession of extraordinary riches in relation to his observable sources of income.

(4) Any property or asset acquired by a public leader after the initial declaration required by paragraph (a) or (b) of subsection (1) and which is not attributable to income, gift, or loan approved in the Code shall be deemed to have been acquired in breach of the Code unless the contrary is proved.

(5) Any public leader who has previously made a declaration of assets under this section shall, during the subsequent declaration be required to declare as to the increase or decrease of assets as the case may be.

(6) The public leader shall, in making the declaration of assets under this section–

(a) state the monetary value of the declared assets and the source or the manner in which he has acquired the assets;

(b) state or disclose his debts if any and any other liabilities

12 (1) A public leader shall be considered to have breached the Code if he knowingly acquires any significant pecuniary advantage, or assists in the acquisition of any pecuniary advantage by another person, by–

(a) improperly using or benefiting from information which is obtained in the course of his official duties and which is not generally available to the public;

(b) disclosing any official information to unauthorised persons;

(c) exerting any improper influence in the appointment, promotion, disciplining or removal of a public officer;

(d) directly or indirectly converting Government property for personal or any other unauthorised use for the purposes of reaping private economic benefit;

(e) soliciting or accepting transfers of economic benefit, other than benefits of nominal value, including customary hospitality and traditional or token gifts;

(f) gifts from close family members or from public leaders elsewhere; or

(g) transfers pursuant to an enforceable property right of the public leader or pursuant to a contract for which full value is given.

(2) The public leader shall, where he receives a gift of the value exceeding fifty thousand shillings–

(a) declare the received gift and its value; and

(b) submit the declaration of the gift to the accounting officer of the office concerned, who shall in writing direct as to the use or disposal of the gift.

18 (1) The Ethics Secretariat, which is established by section 132 of the Constitution of the United Republic, shall be an extra-ministerial department of Government under the Office of the President.

(2) The Secretariat shall, subject to the Constitution and to this Act, have the duty to receive–

(a) declarations which are required to be made by public leaders under the Constitution or any other law;

(b) allegations and notifications of breach of the Code from members of the public; and

(c) inquiries into any alleged or suspected breach of the Code by all public leaders who are subject to this Act.

(3) The Secretariat shall, in performing its duties under this section, have the power to receive and entertain all allegations in respect of any public leader, whether oral or written from the members of public without inquiring as to the names and addresses of the person who has made the allegation.

(4) The Secretariat shall, in addition to the duties conferred on it under subsection (2) and (3) have power to initiate and to conduct any investigation in respect of breach of ethics prescribed under this Act.

(5) Notwithstanding subsection (4), the Commissioner shall, where the Secretariat intends to conduct investigation in respect of Bank Accounts, by order in writing Supported by warrant issued by a Magistrate upon showing cause to the Magistrate as to why the Order should be issued, authorise any officer of the Secretariat to investigate any bank account of a public leader.

(6) Any Order made by the Commissioner under subsection (1) shall be sufficient authority for the disclosure or production by any person of all or

any information accounts, documents or articles as may be required by the officer of the Secretariat so authorized.

(7) The President shall provide for the staffing of the Secretariat, and for the taking by them of the oath of secrecy in respect of matters handled by them.

3.6: Disciplinary Procedures for Magistrates

3.6.1: The Judicial Service Commission(JSC)

- The Judicial Service Commission is established under Article 112 of the Constitution of the United Republic of Tanzania and its functions and powers are provided under Article 113.
- According to Article 112(2) of the said Constitution, members of the Commission are -

  (a) the Chief Justice who is the Chairman;

  (b) the Attorney General;

  (c) a Justice of Appeal of Tanzania who is appointed in that behalf by the President after consultation with the Chief Justice;

  (d) the Principal Judge; and

  (e) two members who are appointed by the President.
- Article 113(1) of the Constitution provides for the functions of the Commission which are –

  (a) to advise the President regarding appointments of the Judges of the High Court;

  (b) to advise the President on matters relating to discipline of Judges;

(c) to advice the President in relation to salaries and remuneration for Judges;

(d) to advise the President in respect of appointment and discipline for Registrar of the Court of Appeal and the Registrar of the High Court;

(e) to appoint magistrates and control their discipline; and

(f) to establish various committees for purposes of implementation of its functions.

- Article 113 (4) of the said Constitution provides that Powers of appointments, confirmation, disciplinary and removal of magistrates of courts in Mainland Tanzania is vested in the Judicial Service Commission.
- Similarly, section 29 (1) (a) and (e) of the Judiciary Administration Act, 2011, No. 4 of 2011 stipulates the functions of the Judicial Service Commission.
- Section 33 (1) (JAA) - Subject to the provisions of this Act, the Commission may, by regulations, delegate the exercise of any function conferred on it by the Constitution other than the power of removal in the public interest to the Committees established or which may be established under this Act.

(2) Without prejudice to the provisions of subsection (1), the Commission may delegate its functions as follows-

(a) .....;

(b) investigation and inquiry into discipline relating to judicial officers to the Judicial Officers Ethics Committee established under this Act;

(c) investigation and inquiry into discipline relating to any Magistrate or Judge's Assistant to the Regional Judicial Ethics Officers Committees established under this Act; -

(d) interdiction of any Magistrate or Judge's Assistant to the Judge in-charge of the Zone or Division of the High Court, pending the continuation and completion of disciplinary proceedings;

(e) …….

- Article 113A of the Constitution prohibits judges and magistrates to join or to be members of political parties.
- Therefore, the Judicial Service Commission (JSC) employs, promotes and disciplines unethical magistrates by termination, retirement on public interest or dismissal depending on the gravity of the wrongful conduct.

3.6.2: The Judicial Officers Ethics Committee

- Established under section 46 of the Judiciary Administration Act, 2011, (No. 4 of 2011).
- Except the Principal Judge and Registrar of the High Court who are members by virtue of their offices, the rest of members are appointed by the Chief Justice. Members comprise the Principal Judge (Chair), two high court judges and two judicial officers. The Registrar of the High Court is the Secretary to the committee.
- The functions of the Judicial Officers Ethics Committees are:-

(i) receive complaints against judicial officers other than justice of Appeal, the Judge Kiongozi or judge of the High Court;

(ii) serve a judicial officer with a complaint;

(iii) forward a complaint to the Commission;

(iv) inquire into the complaint;

(v) warn a judicial officer for any complaint which does not warrant reference to the Commission; and

(vi) take any other means as it may deem necessary in the circumstances.

- It is to be noted that any complaint against a judicial officer which the committee considers to be grave shall be submitted to the Judicial Service Commission for consideration (S.37 (2) and S. 46(2) respectively).
- Section 47 (3) – in conducting its business the Judicial officers Ethics Committee is guided by the procedure stipulated in the fourth schedule to the Act.
- Section 49 – sections 41, 42, 43, 44 and 45 relating to the complaints procedure shall apply *mutatis mutandis* to complaints against judicial officers.

3.6.3: The Regional Judicial Officers Ethics Committee

- Established under section 50 of the Judiciary Administration Act, 2011, (No. 4 of 2011).
- Functions of the Committee

  Every Regional Judicial Officers Ethics Committee shall [s.50 (5)]:-

(i) receive and investigate complaints submitted by members of the public concerning District or Resident Magistrates in the regional and submit reports to the Commission;

(ii) carry out inquires into the conduct of a District or Resident Magistrate in consequence of a direction so to do given by the Judge in charge, and report back to him or take other appropriate action according to law; and

(iii) perform such other functions as the Chief Justice may in writing under his hand to the Chairman, direct.

- The complaints procedure is as stipulated in section 50 (7) – (14).

3.6.4: The District Judicial Officers Ethics Committee

- Established under section 51 of the Judiciary Administration Act, 2011, (No. 4 of 2011).
- Functions of the Committee

  (i) receive and investigate complaints submitted by members of the public concerning Primary Court Magistrates in the district and submit reports to the Commission;

  (ii) carry out inquiries into the conduct of the Primary Court Magistrate in consequence of a direction so to do given by the Judge in charge, and report back to him;

  (iii) perform such other functions as the Minister may direct.
- The complaints procedure is as stipulated in section 51 (3) – (7)
- The finding of all the Committees must be reported to the Judicial Service Commission.

3.6.5: Dismissal and removal

- Section 35 (1) JAA- The powers to remove from office or terminate the appointments of judicial officers other than the Chief Justice, Justices of Appeal, the Jaji Kiongozi, Judges of the High Court, the Chief Registrar, the Registrar of the Court of Appeal and the Registrar of the High Court, shall be exercised in accordance with this section.

  (2) A judicial officer shall not be dismissed unless the Commission is satisfied that-

  (a) a disciplinary charge has been made and proved on a balance of probability against such officer on any or all of the following grounds-

  (i) misconduct incompatible with the holding of judicial office;

  (ii) gross negligence in the discharge of judicial duties;

  (iii) breach of the Code of Judicial Ethics; and

  (iv) bad reputation incompatible with the holding of judicial office;

  (b) such officer has had an opportunity to answer a charge under paragraph (a); and

  (c) an inquiry has been held into the charge.

3.6.6: Disciplinary Charges

The charge against a magistrate or judicial officer may be preferred in the following grounds:

(a) misconduct incompatible with the holding of judicial office,

(b) gross negligence in the discharge of judicial duties,

(c) breach of the code of judicial ethics, and

(d)bad reputation incompatible with the holding of judicial office.(Section 35 (2) of the JAA, No. 4 of 2011).

3.6.7: Some instances of misconduct

A judicial officer commits an offence against discipline if he or she does all or any of the following:-

(a) conduct himself or herself in any manner prejudicial to the good image, honour, dignity and reputation of the service;

(b) practices favouritism, nepotism or corruption whether for personal advantage or gain or that of any other person;

(c) practices discrimination of sex, race, ethnic origin, tribe, birth, creed or religion, social or economic standing, political opinion or disability;

(d) is a habitual late comer or absents or absconds from duty without reasonable excuse;

(e) is insubordinate, rude, abusive, and disrespectful or uses vulgar language;

(f) is lazy or produces poor standard work;

(g) is untrustworthy or lacks integrity in public or private transaction;

(h) engages in private interests at the expenses of his or her official duties;

(i) divulges official information to unauthorised persons;

(j) acts in contravention of the code of conduct for judicial officers, judicial oath or any other oaths taken by the judicial officer;

(k) is convicted of a criminal offence by the court of law;

(l) disregards the chain of command in his or her place of employment without reasonable excuse;

(m) abuses judicial authority; or

(n) in any way contravenes any provisions of the law standing orders or any other instructions relating to the discipline of judicial officers.

CHAPTER FOUR

SOME GUIDING PRINCIPLES IN ADJUDICATION OF CASES IN PRIMARY COURTS FROM THE DECISIONS OF THE HIGH COURT AND THE COURT OF APPEAL

A. This chapter reproduces some important decisions of the High Court of Tanzania and Court of Appeal of Tanzania in cases originating from Primary courts in criminal, civil, probate and administration and matrimonial cases.The aim is to offer some guidences to magistrates on important areas of law.

B. Guiding Principles and lessons from decided cases

1: HALIFA V. HADIJA [1971] HCD n.1

The appellant filed a claim for the paternity of a child and its custody from the respondent. Evidence adduced in the Primary Court established that there were various customary payments and rites which the respondent permitted the appellant to perform and make. He gave for example the ceremonial dress customarily given to an expectant fiancée and Shs.150/= to the mother of the respondent for having deflowered her daughter. These payments were made with due publicity. Evidence further showed that the respondent allowed the appellant to care for her during her pregnancy by taking her to hospital for ante-natal care and she lived with him for sometime after a baby

was born before running away to a new lover. The Primary Court found for the appellant, but the District Court reversed the decision. **On appeal the High Court held that:**

(1) The respondent cannot now be heard to deny the child's paternity by the appellant. It is the law, according to the Customary Law Declaration that once a man is named as the father of a child, the burden is on him to prove that he is not, provided there is evidence that he had sexual intercourse with the mother before the child was born. In this case the appellant actually paid the respondent's mother damages for deflowering the respondent. He did this willingly and apparently quite happily as he was going to marry the respondent. He even took her to his home where she remained until she ceased having love for him.

(2)There was sufficient evidence for the trial court to find as it did that the appellant had established his claim over the disputed child. The purported reversal by the District Magistrate is at variance with the facts established, the customary law so clearly spelt out by the trail court, and the unanimous opinion of all the assessors in both courts below. As such the purported reversal, unjustified by the facts and law as it is, cannot be allowed to stand.

Hence the Appeal was allowed.

2: KALELSELA V. MWAMALILI [1971] HCD n.2

The appellant filed a petition for divorce against the respondent her husband alleging desertion and refusal to maintain her and the children of the marriage. There were three children from the union of nine years but the respondent disputed the paternity of the last child. The Primary Court granted divorce and the respondent after successfully claiming a return of part of the bride price, appealed against the order granting divorce on the ground that he had not been summoned or informed of the divorce proceedings. He also asserted that he wanted his wife back. The District Court after considering the sanctity of marriage, held that the lower court had no jurisdiction to grant a divorce and that the respondent had not been served. The divorce order was reversed and the husband declared man and wife. **On further appeal, the High Court directed by holding that:**

> (1) I fully agree with the Mbeya District Court as to the sanctity of marriage and that such union should not likely to be broken. Even so, a court cannot and should not blind itself to the realities of the position. Whether or not, as alleged by the husband, Emmanuel, his father-in-law is responsible for the break-up of the marriage, it is abundantly clear from the proceedings as a whole that the marriage has broken down. In fact, as noted, the husband disputes the paternity of the last child born to them. Such attitude, apart from any other consideration, hardly bodes well for a happy resumption of married life.

(2)Whatever the merits or demerits of the Ilomba Primary Court's decision granting the divorce, the fact remains that the husband Emmanuel did not appeal from it, but instead he filed a suit in the Kyela Urban Primary Court claiming the refund of six head of cattle. He is therefore, to my mind, stopped from disputing the validity of the divorce granted by the Ilomba Primary Court, which, he himself has accepted, in that he filed a suit for the refund of the bride-price. In the circumstances, the Mbeya District Court had no justification or right to set aside the divorce granted by the Ilomba Primary Court.

Hence the Appeal was allowed.

3: KYAUKA V. MALASI [1971] HCD n.4

The appellant leased a parcel of land from the respondent under Chagga customary law on the understanding that his tenancy would be good only as long as he paid "Masiro". "Masiro" presumably is the consideration for such tenancy. The appellant was found by the District Court to have been in occupation from 1959 to 1966, the time when this suit was filed. The appellant brought evidence that he spent Shs.600/- for clearing and preparing the land for cultivation. At the time when his tenancy was terminated, he had not made any inexhaustible improvements on that land, apart from the clearance and preparation for cultivation. What crops the appellant had planted were annual, and not perennial. The court of first instance awarded him Shs.300/= for this improvement. He appealed with the

result that the District Court gave him no relief at all. **On appeal to the High Court, it was held that:**

(1) It is not in dispute that the respondent was entitled to terminate the appellant's tenancy, especially after serving him twice with a written notice to vacate the land. The respondent cannot therefore be said to have sought repossession at his whim, as was the case in Mwahula Kibungo v. Mudabe Muhunguka 1969 H.C.D. 274.

(2) Compensation, however, is for improvements "of a permanent nature "(Makofia Merianananga v. Asha Ndisia 1969 111 H.C.D. 204). Annual crops cannot be and are in fact not improvements of a permanent nature. The appellant was reaping them annually and deriving full benefit from them. In so doing he must have been fairly and adequately rewarded for the trouble he took to clear and prepare the land for cultivation. This is the view taken by the District Court, and I endorse it. For this reason I hold that the Shs.600/= paid by the appellant to prepare the land for cultivation was adequately rewarded by the crops he reaped from 1959 to 1966. Further, I hold that the expense was reasonable consideration for the tenancy for the seven years or so which the appellant enjoyed.

(3) In the circumstances, there cannot be justice or reason to award the appellant any further compensation, as the District Court properly ordered.

Hence the Appeal was dismissed.

4: SAKAYA V. KASOVA [1971] HCD n.6

The respondent Kasova Honaulu married the woman Senea d/o Ngilisho. The marriage was not a success because Kasova infected Seneu with syphilis and only one of their many children lived. Seneu then formed an association with Sakaya, the appellant. She was cured of her disease and had two children with Sakaya. At the beginning of this association Kasova claimed Seneu at the Primary Court. She was ordered to return to Kasova, but she later returned to Sakaya. No proper marriage ceremony was carried out between Sakaya and Seneu and this gave colour to Kasova's claim to Seneu and the two children born during Seneu's association with Sakaya. Seneu's father agreed that Kasova's marriage still existed to Seneu. Therefore the woman and two illegitimate children belonged to Kasova and not Sakaya. The Primary Court however decided that the marriage did not continue to exist because the Respondent had abandoned his wife; and he had not taken proper steps to reclaim her over so many years that it must be considered that he was waiting for the time that he would claim from Sakaya. The latter had properly cared for Seneu and their children. The assessors were equally clear that Kasova had lost his right to the children. The District Court reversed the decision. **On further appeal to the High Court, it was held that:**

> (1) With respect I find myself in agreement with the unanimous views of the Primary Court. Seneu did use the right to leave Kasova because of the disease with which he had infected her. I accept the Primary Court's view of the evidence that Kasova did abandon his wife. Nor could he be entitled to any repayment of bride price because he had

children with Seneu and one was still alive. It may be that Sakaya has not yet arrived at the stage of being the fully rightful claimant of the children because he has not been recognized as the lawful husband of Seneu, or alternatively the children have not been adopted. But, if the marriage between Kasova and Seneu was properly deemed to have been abandoned that the result would be that the children are illegitimate and pass under the hand of Seneu's father until such time as Sakaya legitimate his position.

(2) I should not however make an order that Sekaya have the right to the children until his position is legitimized.

Hence the Appeal was allowed.

5: SHECHONGE V. SHEKUBA [1971] HCD n.8

The appellant unsuccessfully sued his uncle for a piece of land alleging that the land belonged to his father who had inherited it from his grandfather. According to the respondent, the land belonged to Mbaruku Bobo his cousin from whom the appellant's father had inherited it. It was then used by the respondent's sister before the respondent took over. The respondent's story was corroborated by Salimu Mbaruku, Bobo's son who also testified that the land passed to the appellant's father before the appellant was born and according to Kisamba Customary Law, the land must now pass to the respondent. This view of the customary law was accepted by the Primary and District Courts. **On further appeal to the High Court, it was held that:**

(1) With respect, I agree with the finding, but would qualify it by saying that the evidence shows clearly that the land belongs to the parties' clan. The respondent has a better claim according to the Customary Law of Succession, but his right was of suing the land and not of disposing of it without the consent of the other members of the clan, who would be entitled after him. The appellant may therefore redeem the land as of right. The respondent himself must have realized this because he indicated to the trial court that he sold the land out of desperation, he being old and of humble means, and because his nephews, including the appellant, would not assist him financially. The appellant may therefore redeem the piece of land by paying to the buyer the purchase price, which is apparently shs.580/=.

(2)If the appellant wishes to redeem, he will have to pay compensation for such improvements, if any, the value of which, I direct should be assessed by the primary court magistrate and his assessors.

Hence the Appeal was dismissed.

6: SAADA V. HUSSEIN [1971] HCD n.9

The parties were married in 1963 under Islamic Law. In 1966 the appellant/wife left the matrimonial home and went to live with her parents. The respondent/husband made unsuccessful efforts to return her to him. Whereupon in 1969 the respondent started divorce proceedings alleging

desertion. The marriage was dissolved by the Primary Court and respondent brought an action claiming custody of two children born while the appellant was away from the matrimonial home. The appellant objected on the ground that the respondent was not the natural father of the children. The respondent was not sure whether the appellant was pregnant when she left him. The Primary Court found that it was likely that the appellant was pregnant when she left the respondent and awarded custody of the elder child to the respondent. It was also found that the younger child was of a different father and custody was awarded to the appellant. The District Court, applying Islamic Law, reversed and awarded custody of both children to the respondent. **On further appeal to the High Court, it was held that:**

(1) Under Mohammadan law, legitimacy is determined by the date of conception, not by the date of birth. If a child is born within two or four years (depending upon the particular school of law adhered to by the parties) after dissolution of a Muslim marriage, Mohammedan law presumes the child to be the child of the union. This is a mere presumption and as was held in Abdallah v. Omari Mihondo, 1953, Digest of Appeals from Local Courts, Case No.28, a rebuttable presumption.

(2)In the present case, the two children were conceived and born during a subsisting marriage notwithstanding the fact that the appellant was living with her parents at the time. The children are therefore, according to Mohammadan law; of the union.

(3) The two children should be awarded to the respondent.

Therefore, the Appeal was dismissed.

7: MANYASA V. MWANAKOMBO [1971] HCD n.10

A divorced wife sued the husband for maintenance of three children. The husband died before the case was finalized. The District Magistrate substituted a surviving widow for the deceased husband and made an order of maintenance against her at the rate of Shs.50/= per month. On appeal, the learned judge set aside the order because the liability for maintaining the children of the broken marriage rested on the deceased husband and not on his surviving widow. The judge however awarded the children a house allegedly owned by the deceased. When the divorced wife sought to execute the order, a claimant appeared who asserted that the house was his as it had been transferred to him years ago by the deceased. **The Chief Justice in this inspection note outlined the proper procedure and held that:**

> The divorced wife should have been advised to apply for execution under the Magistrates' Courts (Civil Procedure in Primary Courts) Rules, 1964, section 58. The claimant could then appear and show cause why he should not be evicted. If the Court rejects the claim, then the matter would be at an end, the order executed. If the Court holds that the property in fact belongs to the claimant, then the divorced wife can appeal if she wishes.

8: KALUMUNA V. MUKANDALA [1971] HCD n.16

The respondent sued the appellant for a piece of land. The land had been inherited by the respondent together with her brother and other sisters. The appellant alleged that the brother had sold the land to him for Shs.3, 900/= which had already been paid. The respondent's contention was that her brother had sold only his portion of the land and that this sale did not include her portion. The Primary court found that the brother had sold the whole shamba. The District Court reversed the decision. **On further appeal, the High Court held that:**

> (1) From the evidence I think there was sufficient material entitling the primary court magistrate to come to the decision he did. That Leonard sold the whole shamba to appellant is evident from the receipts– Exhibits A to D produced to court by the appellant. In these receipts Leonard acknowledges receipt of a total of Shs.3, 900/= as price of the shamba to appellant.
>
> (2) The absence of the respondent during the sale of the shamba does not in this case invalidate the sale. However, the respondent is under section 570 – Customary Law of the Haya Tribe by CORY & HARTNOLL, allowed to prove that she was not a party to the sale. If she takes this course and proves to the court that she was not a party to the sale, she will be allowed to claim the whole land if she can pay the sum his brother rose from Francis.
>
> Hence the Appeal was allowed.

9: MICHAEL V. MSARIO [1971] HCD n. 17

This is an appeal against the order of the District Court raising the attachment on a parcel of land alleged to belong to the respondent's son. The primary Court Magistrate who heard this case ruled in favour of the appellant, pointing out that the respondent's son had been occupying his father's land long enough for him to lay claim on it. **On appeal to the High Court, it was held that:**

> (1)There are numerous authorities to the effect that prolong tenancy do not confer title to land under Chagga Customary Law. Indeed in the case of Makofia Merianangа v. Asha Ndesia 1969 H.C.D. 204 P.184, Plat, J. as he then was, refused free title to the appellant who had been a tenant for no less than thirty years.
>
> (2) Such happens to be exactly the relationship between the respondent and his son. The Primary Court Magistrate was clearly wrong in holding to the contrary; i.e. that Elimu Kunda's long occupation at the will of Kunda Msario his father conferred free title to Elimu.
>
> Hence the Appeal was dismissed.

10: HUSSEIN V. ALI [1971] HCD n. 20

The appellant allowed the respondent to build a house on his empty plot on the understanding that his right of occupancy over the plot would be transferred to the respondent's name. The respondent built the house and

lived in it with her tenants for over ten years. Ownership was not transferred to the respondent and the transaction was improper as it did not get the requisite consent of the Commissioner for Lands or his agent. The primary court found for the respondent and ordered the appellant to transfer the plot in the name of respondent. The appellant appealed to the District and the High Courts. **Where the High Court held that:**

> (1) In such cases the amount spent on the plot should be treated as money had on behalf or for the benefit of another.
>
> (2) In the present case, it is established that [Respondent] has spent more than Shs.4, 000/= on the plot belonging to [Appellant] to raise the house, and has been occupying this house for more than ten years, but [Appellant] is now no longer prepared to transfer ownership of the plot to her, and in fact wants to evict her from the house. I would have been very happy if I could have got the approval of the Commissioner for Lands to transfer the house to Respondent but it is not as easy as it appears.
>
> (3) What I propose to do is to enter judgment against [Appellant] and in favour of [Respondent] for the sum of Shs.4, 000/= with interest and costs. If [Appellant] cannot pay the money straight away, because I am not going to give him much time since he has been fooling about with the plot on which he has spent nothing practically, then execution proceedings should immediately issue, by attaching the house and selling it by public auction. I would direct that [Respondent] should continue to remain in the house as before and

that she should be permitted by the District Court to bid at the auction. If her bid is the highest, then a certificate of sale should issue to her and the house should be transferred to her by order of court. If any other person interested out-bids [Respondent] and offers more than Shs.4, 000/= so that she can obtain all her money with interest and costs, then she has nothing to worry about and she should let the house go to such bidder, because she will get all her money and try to obtain her own plot on which she can build another house.

11: TEOFRIDA V. KANISIUS [1971] HCD n.29

The respondent filed a suit in the primary court claiming paternity of a child. The court found that he was the father of the child but then stated that he could legitimize the child when it attained seven years, depending on the child's decision. **It was held that:**

(1) I think this order stems from confusing the paternity of the child with its custody. Section 181B of Law of Persons (G.N.279 of 1963) provides for the legitimization of a child born in such circumstances before the child is weaned. The respondent filed a suit a mere three months after the birth so he was clearly within time. Custody and maintenance are different from the issue of paternity. It is inconceivable that the child should be asked to decide who her pater is. "Similarly, the District Magistrate said the respondent should legitimize the child if the appellant agrees. The appellant might have agreed to the legitimization of the child by the respondent if she had

agreed that the respondent was the pater. The whole point is that she did not agree, and that is why they came to court. The paternity of the child respondent may legitimize the child as of right and not *subject* to the wishes of the appellant.

(2) I therefore order that if the respondent wishes he may legitimize his child by offering to the appellant's father the customary Shs.100/= not later than 15th of April 1971, G.N.279 having been made applicable to the subjects of the Songea District Council by G.N.476 of 1963, and "Songea District Council" being defined by G.N.280 of 1963 as being the Songea District and Mbinga District."

Hence the Appeal was dismissed.

12: DINYA V. DAWA [1971] HCD n.30

This is an appeal against an order for the maintenance of a wife. There was evidence that the appellant did not drive away the respondent/wife from the matrimonial home. The respondent ran away on her own direction after a quarrel. When she was away the respondent provided some foodstuffs and money. The primary court had ordered the appellant to pay Shs.500/= for maintenance of the respondent.**It was held that:**

(1) I agree with the assessors in the Primary Court that the respondent was nashiza.Under Islamic law a husband is not obliged to cohabit with such a wife or provide for her. This does not mean that he must not do so. A wife ceases to be nashiza only after she stops being disobedient. There was evidence, which the trial magistrate

believed that during the discussion with relatives and religious leaders the respondent agreed to go back to the appellant. In my opinion she ceased to be nashiza then. The appellant was indecisive during that discussion. He said the wife should continue to live where she was, and then he changed his mind and said he would give her talak later on the same day, which he did not. From that point it was thus his duty to maintain her, and the evidence indicates that he gave the maize etc. to the respondent before this discussion, and nothing after that.

(2) With respect to the trial magistrate, however, it was for the respondent, not the appellant, to establish when during the three years she ceased to be nashiza and up to what date she was maintained, for it was she who was claiming maintenance. Neither the parties nor the witnesses gave any such dates, and the only useful guidance given by the appellant and not challenged by the respondent was that on the 1st of March 1969, only a month before the respondent went to court, they were eating the staying together. I am not therefore satisfied about the basis on which the figure of Shs.500/= was reached, and because of the foregoing reasons this appeal succeeds.

13: CLEMENC V.ESTERIA [1971] HCD n.32

Two wives of a deceased had a dispute over ownership of a shamba. The respondent argued that by virtue of Haya Customary law, her son Albert

being the first son in the senior house was entitled to be the principal heir and inherit the shamba in which his father was buried. The appellant on the other hand argued that the shamba was given to her son by virtue of the deceased's will. Although the primary court magistrate held the will to be invalid, the court by a majority found in favour of the appellant. The District Court reversed. **Hence this appeal where the High Court held that:**

(1) Questions of inheritance where Customary Law is involved are governed by Laws of Inheritance G. N. No.436/63.Section 19 of this Government Notice is to the effect that- "The principal heir of the deceased is his first son from the senior house. If the deceased left no son of the senior house, his eldest born son of any house will be his principal heir."As there is no argument in this case that Albert is the first son of the deceased from his senior house, Albert is, unless reason to the contrary is shown, he is a principal heir of his father's property.

(2)The will produced tends to show that the deceased excluded Albert as the principal heir. I have myself examined the document and I am satisfied that it is suffering from a let of irregularities. The alleged will is not witnessed by any kinsmen of the deceased as required by section 19 of the Law of Wills G. N. No.436/63. None of the deceased's wives witnessed the will. From the document it is not at all clear that the testator intended to disinherit Albert, his principal heir at law, because he does not expressly say so as required by section 34 of the Law of Wills. In ***Kwekaza v. Kyekuza***, Bukoba D. C's Appeal No.69 of 1935 in which a similar dispute was in issue it was

held – "That a testator cannot disinherit a person entitled to inherit without giving sufficient reasons for the change of the rules." The document produced by appellant, was clearly invalid and as such the position of Albert as the principal heir remains unchanged.

Hence the Appeal was dismissed.

14: MBEGU V. CHAUZI [1971] HCD n.82

In proceedings by the respondent/wife for maintenance of her children, a dispute arose as to the custody of the children. The appellant / husband alleged that the respondent decided to start planting crops on the strip. The appellant and the owner of the land objected to this move. Whereupon the appellant took the dispute to court. **The Primary Court held that the respondent.**

(1) In Muslim law it is a rule in cases of separation that children should remain in the custody of their mother till at the age of seven. But even at this age it is not flatly that the custody is to return to the father, but the law directs that after seven years a child should be asked, before the two parents, as with whom is he/she going to live and whosever custody the child chooses it is to be accepted. In case of mother's death or say mental defect; this right is to be transferred to the maternal side, to mother's sister or mother etc. on the other hand, the principle of interest of child's welfare demands that children in general and particularly those under the age of seven should be in the custody of their mothers. It is the duty of thus Court to positively have in mind when deciding any matter in which children's well being

is in question. The age of the children involved in this case are, the elder about $5^1/_2$ years and younger just over a year.

(2) Children to be in the custody of their mother.

15: BOMBO V. GADIYE [1971] HCD n.84

The respondent was given permission by an owner of land to use a narrow strip of land as a cattle track so that the respondent's cattle would not trespass on the appellant's adjoining shamba. The respondent decided to start planting crops on the strip. The appellant and the owner of the land objected to this move. Whereupon the appellant took the dispute to court. The Primary Court held that the respondent should vacate the strip on recovery of Shs. 20/- from appellant for improvements made on the strip. The District Court reversed holding that permission given to respondent to occupy the strip could not be withdrawn because respondent had been in occupation since 1963.**It was held that:**

> This clearly is a very serious misdirection as the case of **Kisema Ndutu v. Mahselo Mishinga** 1968 HCD 8 shows. In that case the plaintiff was permitted to cultivate a piece of land by the defendant's father. Eight years later the defendant withdrew the permission. The Court found itself unable to infer adverse possession as there was no evidence that Sukuma law would permit such inference. Such is the case here. The learned District Magistrate had no evidence to infer adverse possession under Mbulu/Iraqu law for a period of about seven years only. So that when Kwatlema or Ami sought to dispossess the respondent, they were fully entitled as the Primary Court rightly concluded. The learned District Magistrate would have been entitled to reverse the Primary Court, however, had the respondent occupied of twelve years or more (**Paskasis Bwaham v. Aloys Cyrilo** 1967 HCD

117). The respondent was a tenant at will and no notice to quit was required. This, or course did cause the respondent some loss for which compensation was commendably ordered. The respondent's insistence on continued occupation in spite of the termination of this tenancy is unjustified despite the contrary view of the District Court.

Hence the Appeal was allowed.

16: MUKUNGYE V. TEGAMAISHO [1971] HCD n.84

This is a suit to redeem a clan shamba which is alleged to have been sold by the respondent's brother to the appellant. The Primary Court allowed respondent to redeem the shamba on condition that he paid Shs. 300/- to the appellant being the purchase price which appellant had paid for it. The District Court affirmed but ordered that respondent to pay compensation of Shs. 900/-. No details were given as to how the District court arrived at the figure of Shs. 900/-. The appellant appealed on the grounds that (a) the respondent was not entitled to redeem the shamba because the Customary Law (Limitation of Proceedings) Rule (G. N. 311 of 1964) whereby the time of limitation for proceedings "to recover possession of land or money secured on mortgage of land" is 12 years does not speak of redemption where there is an outright sale as in this case so that the period applicable here was 3 months only; (b) the amount of compensation was patently inadequate; (c) the money awarded to appellant was made payable over too long a period.**It was held that:**

(1) It would seem to me that the expression "proceedings to recover possession of land" is very wide. It is not limited to proceedings to recover possession of land, arising out of any specified transactions respecting that land. I am, therefore, of the view that this expression includes proceedings to recover possession of land, where there was an outright sale of that land. It, therefore, follows that the respondent was entitled to redeem the clan shamba within 12 years from the time the right accrued to him, and from the evidence it is clear that that right was still subsisting at the time he instituted the proceedings in 1968. (Citing **Evarister Martin v. Apolinary Tibishumbwamu** [1968] HCD n. 412)

(2) In assessing compensation, the correct thing to do "would be to itemize the award by showing the number of coffee and banana trees and the value of each tree as is generally accepted in the area. I believe that by breaking down the award as suggested above, it would make it more apparent, especially tot eh parties, that justice has not only been done but appears to have been done.

(3) Case remitted back to District Court with a direction to make a fresh order for compensation in respect of improvements based on the number of banana and coffee trees to be ascertained by him, multiplied by the value of each tree.

(4) Respondent's salary had been attached (to the extent of 1/3) for a considerable time before the suit and it was therefore reasonable to allow him 12 months within which to redeem the shamba.

(5) Appeal allowed to the extent that District Court is to reassess the compensation.

17: MWANAMVUA V. SHABANI [1971] HCD n.86

The appellant/wife sued the respondent/husband for a declaration that their marriage had been dissolved by the respondent's act of returning her to her parents and demanding the dowry back. There were allegations by the respondent that appellant was denying him sexual intercourse giving excuses such as illness or being in the menses whenever she was requested. The dispute reached the appellant's father who offered to keep his daughter and refund the dowry. The learned Sheikh who tried the case found that he respondent's ac of accepting back the "mahari" (dowry) constituted "Talaka ya Kinaya" (implied or constructive divorce). The District Court confirmed but ordered the appellant to pay Shs. 400/- to the respondent as "khului". She appealed from that order. **It was held that:**

(1) There is no question that the law governing this appeal is that of Islam, but owing to the presence of several Islamic Sects, it has been held by this Court that it is necessary to specify which school of Islamic Law should govern the case (See Adamu Mtondo v. Likuna Omari 1968 H. C. D. 289). The notorious fact that most Tanzanian indigenous Muslims are Sunnis of the Shafii sect is judicially noticeable. The other Muslim sects are those to which Asiatic, Arab or other non-indigenous Muslim Tanzanian belongs. Over these people, our Primary Courts have no jurisdiction. It therefore follows, by analogy, that only cases governed by the Sunni Shaffi School of law

are triable by the Primary courts normally. Unless Muslim litigants prove to the contrary, the Primary Court shall apply the Sunni Shafii law, and according to that law, this appeal is determinable.

(2) It is safe to conclude from (the evidence) that the appellant did unreasonably refuse her husband sexual intercourse. According to Islamic Law, she became "Nashiza" on so doing, thereby forfeiting all her rights for maintenance (El Buhriy "Nikahi" s. 50 p. 9).

(3) With due respect to the learned Sheikh I am unable to see how he could have reached such conclusion in view of the fact that it was solely due to the appellant's persistent frustration of the respondent that the latter agreed to part with her on condition that she should refund the "mahari" paid to her. If there was any divorce, it must have been "at the initiative of the wife" as Section J, put it in the case of El Haji Salum Mbogoromwa v. Asumini Ngobesi 1968 HCD 383. Had the refund been made, the divorce would have been a "khula" divorce and the refund, the "khului." As things went, the Court declaration was illegal as the respondent had recalled his wife before the khului was paid to him. The Khula divorce would have been complete upon the respondent's legal wife until the respondent agreed before the district Magistrate to divorce the appellant on payment of Shs. 400/- "khului." The "khula" divorce was pronounced by the District Court, in other words.

(4) The only question remaining in this appeal is whether the Court could fix the amount of "khului" payable by the wife seeking divorce.

The amount itself is negotiable by the parties inter se. should the parties fail to agree, it is only fair that the Courts are able to intervene and fix a sum arrived at by the Courts are able to intervene and fix a sum arrived at by the Court itself.

(5) In this case Shs. 400/- fixed by the Court cannot be o unreasonable as to warrant interference.

Hence the Appeal was dismissed.

18: NYEMA V. LUPOGO [1971] HCD n.90

The appellant sued the respondent for damages for adultery with his wife. The Primary Court awarded him damages of Shs. 800/-. The District Court reduced the damages to Shs. 700/-. **On appeal to the High Court it was held that:**

(1) In so far as the quantum of damages is concerned, it is clear that the sum of Shs. 800/- is very excessive and ought to have been reduced by the District Court. The District Court magistrate, in considering the amount which ought to be allowed has made the following observations on the records:- "The respondent claimed Shs. 800/-. This amount appears to be well out of proportion. After all, the woman herself appeared to have had no interest with the respondent. She kept herself ready to move with anyone she approved. As such it would be quite improper to condemn another person for the looseness of the woman. I think that the district Court magistrate has very fairly described the circumstances surrounding this matter and has given

very sufficient reasons for his differing from the decision of the Primary Court. I can see no objection whatever to such decision.

Hence the Appeal was dismissed.

19: MASUKA V. SIGONJWE [1971] HCD n.92

This case was filed by the adulterer against the husband as a claim for custody of a child born of the wife, of which the adulterer claimed he was the father. The wife admitted adultery with the claimant and said that he was the true father of the child. The claim failed both in the Primary and the District Courts because according to Gogo customary Law, every child born during the subsistence of the marriage is a child of such marriage. **On appeal to the High Court, it was held that:**

(1) It would of course be quite improper to allow the claim of the woman in circumstances such as these, or even to accept such evidence as having any bearing on the matter, Furthermore, there is no proof of non-access over a considerable period of time and, had there been such, the fat of paternity would have had to have been proved aliunde and not by the mere asseveration of the mother. It is clear that the local customary law contains not only basic robust common-sense but that it also accords with more sophisticated codes in this matter.

(2) The Ruling of the two Courts below is clearly correct and to hold otherwise would cut at the root of much of the marriage bond.

(3) The child is declared to be the son of the husband of the woman and is consequently placed permanently in his custody as the true father.

Hence the Appeal was dismissed.

20: HERMAN V. NDAVA [1971] HCD n.93

The appellant was ordered to pay Shs. 250/- damages to the respondent by the District Court for defamation of character. The claim was brought under Chagga Customary Law and the facts were admitted by the appellant in the Primary Court were the respondent had been awarded Shs. 500/- damages. The District Court reduced damages to Shs. 250/= and commented while doing so: "According to the Chagga customary law, if somebody abused a name of another person, compensation is one goat and one cow or Shs. 250/-.**On further appeal, the High Court held that:**

(1) Unless Chagga custom varies from village to village, I cannot but disagree with this observation. This same court noted in two recent cases that the customary damages were one goat for a commoner and one fattened goat (Ndafu) for a chief. In the absence of evidence to show that the custom in fact varies from one part of Chagga land to another, I cannot accept the comment as the correct statement of the law. Accordingly the respondent is to receive Shs. 50/- or one goat.

(2) As the institution of the chief has long become an anachronism, I presume the respondent will have to be content with a mere goat and not necessarily a fattened one (Ndafu).

21: MUNGI V. CHAPILA [1971] HCD n.97

This is an appeal from the judgment of a District Court sitting as an appellate court from Primary Court. The ground of appeal is that the District Court acted improperly in failing to record reasons why additional evidence was heard on appeal as required by s. 17(a) of the Magistrates Courts Act. **It was held that:**

> (1) "It is true that the District Court, on deciding to record additional evidence itself, did not give the reasons for so doing, but I note that learned counsel for the appellant did not go so far s to say that, because of such omission, the additional evidence taken by the District court should be disregarded by this Court. Nor do I consider that such disregard would be possible, for the requirements of the section concern matters of procedure alone, while the basic duty of the Court is to ascertain the true facts, so that it can come to a just decision. It seems clear that such evidence was desirable in the circumstances of the case and, while this Court must note that the magistrate in the District Court did not comply strictly with the section, the evidence recorded must form a part of the record and must be taken into account in reaching the conclusion. (2) Appeal dismissed.

22: BAHAWARI V. BAHAWRI [1971] HCD n.102

The appellant was ordered by the Primary Court to pay Shs. 1,550/- to the respondent as maintenance of his wife for the period of 17 months and 18

days. The District Court affirmed the order and this appeal were then brought. The grounds of appeal were that: (a) the local courts had no jurisdiction in the matter as the parties were Arabs from Arabia; (b) the wife was living in her husband's father's house and therefore there was no obligation to maintain her. **It was held that:**

(1) When the need for the claim to be instituted in Court arose the appellant (then defendant) was residing here where he carries on business and, as such, under section 18 (a) of the Civil Procedure code 1966, the Court is competent to deal with the suit as here is where he carries on business.

(2) On the other hand, the appellant did not raise this objection to the Court of first instance and this being an appellate court he cannot-without being satisfied that " there has been a consequent failure of justice", and I am convinced that there is no such failure – entertain this objection as provided under section 19 of the Civil Procedure Code.

(3) Here for the wife to be living in her father's or husband's father's house (as the two are brothers) is a very weak reason for the appellant to base his argument against maintaining his wife. The reason is father weakened by the fact that the husband at the moment is not at home but in far away foreign country.

Hence the Appeal was dismissed.

23: KILANGO V. KILANGO [1971] HCD n.105

The appellant/wife sued for divorce on the grounds that the respondent/husband was not maintaining her. The Primary Court ordered the marriage to be dissolved. On appeal, the District Court ordered the appellant to pay two cows and Shs. 10/- in view of the fact what she was the one seeking divorce. **On further appeal, the High Court held that:**

(1) The learned District Magistrate was clearly imposing "Khului" on the appellant who had merely come to as for "fashki", that is, dissolution of marriage by court. "Khului" is only payable when the wife seeks to move her husband to pronounce the Talak on her. But where the wife seeks to move the court (Kadhi) to dissolve the marriage on some matrimonial offence such as neglecting to maintain the wife, then the principles of "talak khula" do not apply. Instead the court should find out whether the matrimonial offence is proved and should there be proof, then the court should, on its own motion, pronounce the marriage dissolved. This is all in accordance with the Sunni Shafii School of law to which all indigenous Tanzanians of the Muslim faith subscribe.

(2) Order of "Khului" set aside.

(3) The appellant proved on a balance of probabilities that the respondent was not maintaining her. The Primary Court order dissolving the marriage is therefore confirmed.

(4) The respondent shall be bound to maintain the appellant during her period of Eda provided she observes the rules of Eda.

Hence the Appeal was allowed.

24: MWALIFUNGA V. MWANKINGA [1971] HCD n.109

The respondent obtained a divorce from the appellant's daughter on the grounds of her desertion. The primary court awarded him back four of the six head of cattle he had paid as dowry. The primary court took into account the fact that the daughter was at fault in deserting the respondent and that the parties had lived together for nine years and had one child which died [Applying Para. 54 of the Law of Person (Government Notice 279/ 1963)]. On appeal, the District Court ordered that all the six head of cattle be refunded. They so ordered because: (a) the appellant was aware of his daughter's bad behaviour towards her husband as it was he who had represented her in divorce proceeding; (b) "the women of this country have a habit of enriching their fathers by leaving their former husbands to the marriage of another in order that when the question of a return of the bride wealth paid by the former husband who has been deserted comes into consideration, part of it is given to the father of the girl after he has received another bride wealth from the new husband," which habit should be discouraged; (c) the appellant had received new bride wealth from another man in respect of the deserting daughter.**On further appeal,the High court held that:**

(1) The Primary Court made a generalization as to the practice of women leaving their husbands in order to obtain additional bride-wealth or bride-price for their parents, which practice, the court said, should be discouraged. The District Court however, has narrowed

down this generalization to the particular, that the appellant's daughter has re-married and he had received another bride-price for her. As remarked, there is not a shred of evidence to support such findings.

(2)The Primary Court based its finding of the facts as adduced in evidence, and very properly directed itself on the law. The District Court therefore was neither right nor justified in interfering with the judgment and order of the Primary Court on the grounds of pure speculation unsupported by any evidence.

Hence the Appeal was allowed.

25: ZABLONI V. AGREY [1971] HCD n.115

The appellant was sued for Shs. 1,000/- compensation for unexhausted improvements on a piece of land which he won from the respondent in a civil case. The suit was rejected by the Primary Court because the improvements were made by the respondent for the parties' father long before the land became the appellant's. The District court reversed the decision on the ground that the respondent had cared for the improvements for 12 years since the land was given to the appellant and therefore the appellant should pay compensation for the care since it was his fault in taking so long before clearing his title. **One appeal to the High Court, it was held that:**

(1) With all respect, this reasoning does not accord with justice. The respondent may have sweated for 12 years but he certainly did reap a lot for his sweat. He must have enjoyed the fruits of the development

which became the appellant when the latter got the Kihamba. There is every reason to believe that the respondent must have been more than adequately compensated in the 12 years of his tenancy and to award him further compensation would not be just. It would be like punishing the appellant for his laches.

(2)The law of limitation on customary land claims came into being in 1964. Before then there was nothing like limitation such claims. It would therefore have to be 12 years from 1964 before the appellants could be held time barred. The learned Magistrate himself conceded that the respondent effected no unexhausted developments on the disputed land. He awarded compensation only for caring for these developments although as pointed out earlier on the respondent was reaping the fruits of his sweat in the process. It has often been held that compensation is only for unexhausted developments of a permanent nature such as perennial crops, buildings etc. in this case the respondent does not claim to have made any such improvements on the disputed land. There can therefore be no basis for awarding him compensation, his 12 years of illegal occupation and enjoyment of the usufruct notwithstanding.

Hence the Appeal was allowed.

26: RALANG MUMANYI V. WAMBURA MWITA [1969] HCD n.2

The plaintiff sued the defendant in the Primary Court in North Mara District for the return of bride wealth. There was evidence that, after several years of

marriage, the plaintiff's wife (the defendant's daughter) had deserted the plaintiff, but here was no evidence that the plaintiff had obtained a divorce. At the trial the plaintiff and the defendant gave evidence but were not allowed to cress- examine one another. It was not recorded whether or not they were allowed to call other witnesses. No issues were framed by the court, nor were the opinions of the assessors recorded. The trial court gave judgment for the plaintiff, relying on ss. 133, 134 and 140, Law of Persons, G. N. 279/1963, as applied to North Mara District by G. N. 640/1963, which provide that desertion is a ground for divorce and that the husband may claim divorce and seek a return of bride wealth without legal obligation to search for his wife.**It was held that:**

(1) After the plaint had been read and the defendant's statement in reply recorded, the court should have framed the issues in the case and determined whether or not the defendant admitted or denied the plaintiff's allegations. [Citing rules 44-47, Magistrate's Courts (Civil Procedure in Primary Court) Rules G. N. 310/1964].

(2) The trial court should have recorded whether or not the parties had been give opportunity to cross-examine and to call witnesses.

(3) Although a primary court has discretion as to whether or not to sit with assessors [s. 8, Magistrate's Courts Act, Cap. 537], once the court decides to sit with assessors it must record their opinions and, if he disagrees with them, give the reasons for his disagreement.

(4) The sections of the law of Persons cited by the trial court must be read together with s. 37A which provides that bride wealth may be

required to be returned “in case of divorce”. In the present case there was no evidence of a divorce and the award cannot be sustained.

27: PAUL V. R.[1971]HCD n.124

The appellant was charged in the Temeke Primary Court of stealing contrary to section 265 of the Penal Code and was acquitted. The complainant was dissatisfied with the result and complained to the District Court Magistrate who issued a summons to the appellant for appearance to that court. The case filed at the District Court shows proceedings as between Rose Mwita (the complainant) and the Republic and is headed (Criminal Revision).

(1) [After quoting the relevant extract from the District Court records] "These proceedings are 'in revision'. Had the complainant endeavored to lodge an appeal against the decision of the Primary Court, she would have been unable to do so, for she is not the prosecutor but only a complainant. Even though on the cover of the District Court proceedings the matter is shown as between the complainant and the 'Republic', no prosecutor appears to have taken any part in the case and the District Court seems to have acted merely on the letter of the complaint of the original complainant in the court of first instance. I think that it cannot be doubted but that the so-called 'Revision' was not properly before the court as it stood, though the district Court undoubtedly has powers of revision under the Magistrates" Courts Act. It was certainly not an appeal, for there is no petition of appeal and no appellant.

(2) [After quoting sub-sections 1 and 2 of Section 18 of the Magistrates' courts act]. "It seems clear therefore that, if the District Court purported to be sitting in its revisional jurisdiction (as apparently is the case here), it had no power to substitute a conviction for the acquittal had in the Primary court

and the conviction with which it concludes its Order in Revision in beyond its powers. If on the other hand, one regards these District Court proceedings as being an appeal, there is no appellant. It is evident that the whole of these proceedings in the District Court are ultra vires and cannot stand.

(3) Order in Revision set aside.

28: EMMANUEL PAUL V. WILFRED RWEMIGIRA [1969] HCD n.12

The plaintiff claimed to be entitled to redeem a clan shamba sold by the second defendant to the first defendant without clan consent. The second defendant asserted that he had consulted and obtained the approval of the clan elders, but he did not consult the plaintiff because, although the plaintiff was a member of the clan, he was descended from a different family – his approval was therefore not necessary for the validity of the sale. The Primary Court, sitting with assessors, found upon considering the authorities including Cory and Hartnoll, Customary Law of the Haya Tribe, as well as decided cases, that, although the plaintiff was descended from a different branch of the clan, he was entitled to be consulted, failing which he could redeem the shamba if near relatives failed to do so. An order was made for redemption within six months from the date of judgment. On appeal, the District Court upheld the judgment but reduced the redemption period to one month on consideration that a purchaser who was in possession of the shamba, well knowing that he would not be able to retain it, if it was redeemed, would fail to cultivate it. The plaintiff appealed to the High Court against the reduction of the redemption period. **It was held that:**

(1) The redemption price would automatically embrace improvements effected during the redemption period.

(2)The judgment of the Primary Court was delivered on the 5th of October 1967. That is more than a year ago. The six months' redemption period granted by the Primary Court will long have expired by now. Although the order about to be made by this court may possibly be no more than an academic exercise, in view of the expiry of the period, as it is possible that the status quo has been maintained pending the determination of the appeal, I formally allow it. The order of the District Court reducing the period to one month is set aside and the judgment of the Primary Court is restored in toto.

29: MARWA MBAU V. LIGAMBA ERINGO [1969] HCD n.14

The plaintiff sued the defendant in Zanaki Primary Court for the return of a bicycle allegedly entrusted to the defendant in 1959 for safekeeping. The case was filed on 24 August 1967. At the trial, the plaintiff stated facts concerning the entrusting of the bicycle. The defendant admitted that the bicycle had been entrusted to him, but he stated that the bicycle had been seized by the traffic police for failure to pay licence fees and the plaintiff had refused to go to the police to recover the bicycle. In an additional statement the plaintiff alleged that the defendant had sold the bicycle; it was not recorded whether or not this statement was on affirmation. The defendant was not allowed to call his witnesses, and the court gave judgment for the plaintiff. On appeal to the District Court, the court heard witnesses for the

defendant but affirmed the judgment for the plaintiff, taking into account some evidence that the defendant had occasionally used the bicycle. The defendant then appealed to **the High Court where it was held that:**

(1) Under the Schedule, Magistrates' Courts (Limitation of Proceedings under Customary Law) Rules, G.N. 311/1964, the period of limitation for civil wrongs is three years from the date of the wrong or from the date the rules came into effect (29 May, 1964), whichever is later. Under either test the action is time-barred.

(2) There is no ground for believing that the relevant customary law imposed absolute liability on trustees or bailes. Therefore, the plaintiff's only duty was to return the bicycle or give a reasonable explanation for being unable to do so. The use of the bicycle was not expressly prohibited and is not unusual in such circumstances.

(3) Rule 3 (4), G.N. 311/1964, gives discretion to admit a time barred action. However, the discretion should not be exercised in the circumstances of this case.

(4) The trial court erred in not recording whether or not the plaintiff's second statement was on affirmation.

(5) Assuming that the statement was on affirmation the trial court erred in denying the defendant the opportunity to call his witnesses. [Citing Rule 45, Magistrates' Court (Civil Procedure in Primary Courts) Rules, 1964.] Defendant's appeal allowed.

31: SALVATORI TENA V. WILLIAM MKODO [1969] HCD n. 18

S and W agreed that W should build a house for S with materials supplied by him. S was to pay W for his labour. The foundations were laid, and S advanced money. The building was not completed. S sued W in the Primary Court at the end of six months and obtained a judgment ordering W to complete the house within six months. The house was not completed nor was any action taken by the Primary Court, apparently because it then had doubts as to its jurisdiction. S brought a second action in the District Court which held the issue res judicata. On further appeal, **the High Court held that:**

> (1) A number of authorities have decided that s. 14 of Magistrates Courts act, Cap. 537 should be construed widely to give primary court's jurisdiction in contracts of this kind, and that small debts between Africans were within the section.
>
> (2) The matter was not res judicata. The plaint in the District Court was filed after the period set by the Primary Court had expired, and the claim related to facts which arose after the Primary Court considered the matter.
>
> (3) The present dispute related to the position of the parties after the date of the Primary Court hearing, not after the period by the Primary Court had expired, since the ability of W to complete the work within that period depended upon S's supplying materials. Both parties claim that the contract was not carried out in that period due to the failure

of the other party. There should be a trial on this question of who finally broke the contract.

(4) Section 57, Magistrate Courts Act, implies that wherever possible proceedings should be begun in the Primary Court. Accordingly the decision of the District Court is set aside and the suit is transferred to the Primary Court under s. 12, Magistrates Courts Act, for it to decide which party was ultimately in breach.

32: JAPHET MWANGWA V. MTEMI SENGE [1969] HCD n.21

The plaintiff brought an action for defamation, alleging that the defendant had instituted criminal proceedings against him by filing a complaint in the Primary Court alleging that the plaintiff had threatened to kill him, c/ss 89 (1) (a), Penal Code. It also appears from testimony in the present case that the defendant communicated this information to persons other than police and court officials. The criminal proceedings against the plaintiff were withdrawn after the defendant stated he pardoned the plaintiff and wished to withdraw his charge. The trial court found that the defendant's allegation was defamatory by innuendo in that the words implied that the plaintiff was "a potential assassin or murderer …. Not fit to live in decent society and ….. That he should be shunned by all peace-loving citizens, since he was violent", and would therefore tend to lower him in the estimation of right – thinking members of society generally. There was no plea of justification (truth) nor was privilege raised, although the defendant pleaded "good faith", apparently

meaning no malice. However the trial court found he had acted with malice. The plaintiff was awarded Shs. 6,000/-. **It was held that:**

(1) The trial court erred in finding malice without sufficient evidence; but, unless the occasion is one of qualified privilege, a defamatory statement is actionable without a showing of actual malice in the sense of a wrongful intent. The word maliciously is used in the pleadings simply to indicate that the publication of the statement was a wrongful act, and does not relate to the defendant's intention.

(2) The trial court correctly held that the allegation was defamatory by innuendo.

(3) Since the defendant "published it by communication of the matter not only to the court officials but also to other persons" there was a sufficient publication. [Note: the court does not make it clear which publication is being relied on, but since a formal complaint to a court is absolutely privileged, so that even malice will not destroy the privilege, it appears that the communication of the allegation to persons in the community was the actionable publication].

(4) Damages to be reduced to Shs. 3,500/-. No special damages was alleged or proved, but his is not necessary where there is an allegation of a criminal offence, for whether libel or slander such an allegation of a criminal offence is actionable per se. The court stated "the mere probability that consequences injurious to the respondent may ensue from the defamation complained of entitled him to compensation. But the trial court erred on the side of generosity, and the judgment was

"so excessive as to warrant interference on the part of this court." The court said: "It is always difficult to assess by monetary standards an event which is of a non-material nature" but the trial court properly considered the plaintiff's present office of Regional Game Warden, and the fact that he had been "a chief for some seventeen years and was consequently of some dignity." The court commented: "this office has now been discontinued, and it would therefore have been wrong to have paid regard to his rank as if it still obtained. But to view it as a past measure of present importance is permissible in the assessment of any damages" which he has suffered.

(5) The fact that the defendant had withdrawn his charge "might mitigate damages if he brought to the notice of the persons to whom publication had been made that the allegations were untrue. This he has not done and the record shows that he still maintains that the allegations are correct."

33: JISHO AND ANOTHER V. R [1971] HCD n.131

The two appellants together with one Kabulabujo Jisho were jointly charged with doing grievous were based on the evidence of the complainant and that of a child aged about 13 years who gave evidence on affirmation. The complainant testified that on the material date he went to the house of one Luzaguza where he met the accused persons drinking 'pombe'. The owner of the house however turned him out and as he was leaving Kabulabujo Jisho struck him with a fist and then the second appellant strock him with a stick

which fell him to the ground causing a fracture on the arm and rendering him unconscious. After this fall the complainant could not remember whether the first appellant inflicted any blow on him, and the only evidence against him was that of the child who said he saw the first appellant hit the complainant as well. The question was whether the child's evidence could form the basis for convicting the first appellant. **It was held that:**

> (1)The rule as laid down by the Court of Appeal in the case of KIBANGANY ARAP KOLIL v. R. (1959) E. A. p. 92 is that before a child is sworn in order to give evidence the court must investigate in order to ascertain whether that child understands the nature of oath." In the present case the young boy, as stated earlier, gave evidence on affirmation. Before he was sworn the learned trial magistrate noted "…… he (the boy) knows about the oath ……." and immediately after that the boy was affirmed. It would seem clear that the procedure as laid down in the case of KIBANGENY cited above was not followed, since there is no record of investigation as made by the trial magistrate, and on that account I am of the view that the evidence of this child was in- admissible.
>
> (2) Even assuming that the evidence of this child was admissible the conviction would still be unsupportable on another ground. In the case of PETRO MANGONGO KATWA v. R. (1944) E. A. p. 100 it was held that although the evidence of a child given on affirmation does not strictly speaking require corroboration, yet the court should be very careful before acting upon such evidence. In the present case the learned trial magistrate found that the evidence of the child witness

was corroborated by that of the complainant. It seems that this finding is not supported by the evidence.

(3) Having made that finding which as I have tried to show, is not supported by the evidence the learned magistrate did not scrutinise the evidence of the child witness before acting on it as required under the rule in Petro's case. His failure to do so was a misdirection which I think amounted to a ground on which the conviction of Erikado could also be said to be bad.

(4) Conviction on first appellant set aside. Appeal of second appellant is dismissed.

34: ANDREA V. R.[1971] HCD n.141

The appellant was convicted of causing grievous harm to the complainant c/s 225 of the Penal Code. It was alleged that the appellant shot the complainant with an arrow at about 10 p. m. at night. After being shot, the complainant cried that appellant had shot him and he was also able to identify the appellant with the help of light of the torch shone by the appellant's woman. The appellant did make a statement which amounted to a confession to a detective corporal. **The High Court held that:**

(1) In this case the identification of the appellant was the sole basis for his conviction. It has often been held that where the evidence implicating the accused is entirely based on identification, such evidence must be "absolutely watertight to justify conviction." [See **R. v. Sebwato** 1960 E. A. 174;

Emmanuel Tumbotele v. R. 1968 H. C. D. 144; **Wilson Ollo v. R.** 1968 H. C. D. 183.] (2) "The conviction of the appellant could not have been recorded in the absence of his statement to the Police, which statement the trial court wrongly admitted, it being a confession made to a Police Officer. The evidence of identification by the complainant was far from water-tight." (3) Appeal allowed. (4) Conviction quashed and sentence set aside.

35: ANTONY V. R [1971] HCD n.146

The appellant was convicted by the Primary Court of housebreaking and stealing contrary to sections 294 (1) and 265 of the Penal Code. His appeal to the District court of Geita was dismissed and this is the second appeal to the High Court. His appeal to the High Court on the charge of housebreaking was allowed on the ground that the Primary Court magistrate had not taken a plea and his trial was therefore a nullity. Certainly comments were however made by the Judge on the law of "constructive breaking". It was held that:

> (Obiter)As the law stands constructive breaking will only be said to be committed if a person enters into a house by some aperture which by actual necessity, is permanently left open. It has thus been held to be sufficient breaking if a thief comes down into the house by a chimney, though there would be no breaking if he came in through a window which the builders had not yet filled with glass - Kenny – 18th Edition page 246." "For my part I see no valid reason why there should be such a distinction. As commented in Kenny the cases of constructive

breaking are not extensions of the law made to cover circumstances not originally envisaged, but are relics of the more strict rule of archaic law which treated as a capital offence any coming to a house with intent to commit a felony therein." "In my view there is great need now to extend the law regarding constructive breaking to embrace circumstances not originally envisaged. (**Ramadhani s/o Bakari v. R.** (1969) HCD. 309 disapproved.)

36: PHILIPO MTOAKODI V. R. [1969] HCD n.38

The accused was convicted in Primary Court of cattle theft and was sentenced to 3 years imprisonment and 24 strokes and to a fine of Shs. 500/- and in addition was ordered to pay compensation of Shs. 300/-. During the trial the Primary Court refused to permit the accused to call one of his wives as a witness, apparently on the theory that he had to call all of his wives or none of them. Exercising its revisional jurisdiction without notice to the accused the district court found that there were no special circumstances justifying a fine in addition to the prison sentence and set aside the fine. The accused then appealed the conviction to the District Court but his appeal was denied on the ground that an order in revision had already been made. Accused then appealed to the High Court against the conviction and the District Court dismissal of the appeal. **It was held that:**

(1) The revisional order quashing the fine was properly made under s. 17, Magistrates' Courts Act, Cap. 537.

(2) Although the District Court could not on appeal review the previous order of revision made by a magistrate of that court, it could consider the portions of the memorandum of appeal which concerned matters which had not been the subject of its previous consideration such as the appeal against the conviction [Citing Suleman Ahmed v. Rex, (1922) 9 E.A.P.L.R. 19; Gordhan Gopal v. Chagan Raja (1935) 17 K.L.R. 65].

(3)There is a question of some substance as to whether [accused] suffered an injustice by being deprived of the right to call his wife as a defence witness. Appeal allowed in part and case remitted to district court to hear and determine the appeal against conviction in the manner prescribed in ss. 16 – 17, Magistrates' Courts Act.

37: HASSANI MSANGE SAROTA V. R [1969] HCD n.40

The accused was charged in Primary Court with stealing and was acquitted. The District Court magistrate then exercised his revisional jurisdiction and ordered that the police reinvestigate the case and file new charges if appropriate. The District Court did not cite any error in the lower court judgment but acted on the ground that the case was a "serious one and wanted careful investigation". As a result the accused was convicted in a second proceeding of stealing by servant. **On further appeal, the High Court held that:**

(1) An appellate court may revise an order or decision only if the order or decision of the lower court is incorrect, illegal or improper or if the

proceedings are irregular. He may not do so merely because he disagrees with the result. In the present case there was no error in the lower court judgment and the revisional order was improper.

(2) Because the revisional order in the first proceeding was improper, the second proceeding as a nullity. Conviction quashed.

38: SWALEHE S/O MOHAMEDI V.R [1969] HCD n.44

The appellant was convicted in the Primary Court of Mtama on two pairs of related counts of housebreaking and stealing, c/s 294(1) and 265, Penal Code. He was sentenced to imprisonment for two years on each of the housebreaking convictions and to imprisonment for two months and three months respectively, on the convictions for theft, all the sentences of imprisonment to run concurrently, and to the statutory twenty four strokes corporal punishment, under the Minimum Sentences Act. **It was held that:**

(1)There are, to my mind, special circumstances apparent from the facts of the offences themselves. The offences were committed together with another man much older than the appellant, whose age was found by the primary court magistrate to be nineteen years. This other man who, incidentally, did not appeal, was alleged to have had a string of previous convictions, of which he denied all but two, of house-breaking and stealing, when he was sentenced to a substantive term of imprisonment for three years and to twenty four strokes corporal punishment. It is thus apparent that in committing these instant offences the appellant was influenced by this older man with a

criminal record, whose age, incidentally, was found by the magistrate to be about thirty five years. The combination of all the relevant circumstances, to my mind, constitutes special circumstances within the meaning to my mind, constitutes special circumstances within the meaning of the Minimum Sentences Act qualifying the appellant for the exercise of the court's discretion. Bearing in mind his youth, I consider that the justice of the case would be met by the imposition of a substantive sentence of imprisonment for one year.

39: HAMEA S/O MOHAMED V. OMARI S/O ABDULLAH [1967]HCD n.48

A husband obtained an order from a Primary Court requiring appellants to permit their daughter, his wife to return to him. It appeared that he had told her that if she visited his sick relative at a hospital on a certain morning, rather than on the previous evening as he wished, they would be divorced. It was not clear whether he had said, "I will divorce you" or "If you go you are divorced." The High Court considered the phrase "I will divorce you" or "if you go you are divorced" and **held that:**

(1) A marriage is deemed valid and subsisting until its dissolution is proved.

(2)Under Muslim Law, the formula for verbal divorce is precise; "I will divorce you" is a mere threat; "If you go you are divorced" is a phrase resulting in divorce upon the realization of the stated condition. Appeal dismissed; Judgment allowing the wife to return to her husband upheld.

40: KUMBATA MAHIMBO V. KUMBATA MUGENDI [1967] HCD n.54

Appellant had brought an action in a primary court for unpaid bride wealth. The parties settled the case respondent agreeing that the bride wealth was due. Appellant withdrew his suit without claiming costs, and later filed another action for the costs of the initial suit. **It was held that:**

> The fact that (appellant) withdrew the action cannot debar him from claiming his cost. The bride wealth was in fact due, and was paid only after appellant brought legal proceedings. The respondent could have avoided the costs by paying his just debt, and "cannot now escape the liability to pay the costs of the suit."

41: DAUDI MWASPILE V. R [1967] HCD n.59

Appellant sued for six head of cattle in primary court. He relied on the testimony of two witnesses whom the magistrate found not to be credible. On appeal, the district court found that this testimony was credible and therefore reversed the judgment. **On further appeal, the High Court held that:**

> The witnesses did not appear in person at the appeal, and the district court should have followed the valuation of their creditability given by the trial court. An appellate court should reassess the credibility of witness only if there are circumstances of an unusual nature which appear in the record, particularly if as here, the testimony has

explicitly been rejected by the trial court. The judgment of the district court was set aside and that of the primary court restored.

42: KATAMBA S/O MWAISUNGA V. R [1967] HCD n.58

The accused was convicted in primary court of assault; a fine and compensation were awarded. The accused then appealed to the district court and his appeal was allowed. The present appeal was brought by the complainant. **It was held that:**

> Section 21 of the Magistrates' Courts Act 1963 provides that in proceedings of a criminal nature, the Director of Public Prosecutions alone has the right to appeal to the High Court in cases in which a district court has substituted an acquittal for a conviction in a primary court. Therefore the High court lacks jurisdiction to hear this appeal.

43: SAIDI MOHAMED GESHI V. HAMADI RASHID [1967] HCD n.73

Respondents destroyed a house built on their land by appellant. Their conviction of malicious property damage was quashed by the District Court, and the compensation order was set aside. **It was held that:**

> The respondents were at law entitled to eject Saidi who was trespassing on their own land in their presence, and they were further entitled to remove any object Saidi had brought thereon during the trespass. The complainant's appeal was summarily rejected.

44: JOHN S/O KIWANUKA V. R [1967] HCD n.102

Accused was convicted in three separate cases of housebreaking and stealing, and in a fourth case of school breaking and stealing, in Primary Court. Sentences of two years and twenty-four strokes were imposed for housebreaking, with one-year sentences for the thefts in those cases ordered to run concurrently with the housebreaking sentences- and a similar sentence was imposed in the school breaking –theft case; to run concurrently with one of the housebreaking sentences – by the magistrate who had tried all four cases. This magistrate ordered that the housebreaking sentences should run consecutively, resulting in an effective order for six years' imprisonment and seventy-two strokes. On Appeal to the District Court, the District magistrate confirmed each sentence but ordered that all four should concurrently**. It was held that:**

(1) Had the housebreaking charges been tried in a single case, concurrent sentences could have been imposed, under Primary Courts Criminal Procedure, paragraph 6. Moreover, only one sentence of corporal punishment could have been imposed according to Corporal Punishment Ordinance, Cap. 17, s. 10.

(2) However, there is no provision in the Primary Courts Criminal Procedure Code defining the magistrates' power as to sentence imposed in two or more separate cases. Section 36 of the Penal Code is "wide enough" to cover such a situation, but it has not been re-enacted as Primary Court legislation—apparently only because of legislative "oversight.'

(3) Thus, in dealing with the charges in separate trials, the magistrate "excluded," and the sentences "must be understood to be consecutive.

(4) The evidence does not support the school breaking conviction: a conviction of receiving stolen goods and a sentence of nine months is imposed thereon.

(5)The "alarming result" is that the accused is sentenced to six years and nine months' imprisonment and seventy-two strokes.

(6) While the High Court has "no power to mitigate the severity of this sentence," the matter would be placed before the Attorney General for consideration.

45: ABDUL S/O SALUMU V. R.[1967] HCD n.107

Accused was convicted of burglary and stealing before a primary court. The evidence established his possession of stolen goods some twenty days after they had been taken, but failed to connect him with the original taking. The District Court held that while a conviction of burglary and theft was improper, accused could be convicted of receiving stolen goods under section 311(1) of the Penal Code. **It was held that:**

An accused's explanation of his possession of stolen goods need not be reasonably be true.

46: MOHAMEDI NGONYANI V. MTUMWA DODO [1967] HCD n.115

Defendant appeal an ejectment order issued by a primary court with respect to premises which he occupied. It was held by the High Court that:

The case involved no matter of customary law (see Magistrates' Courts Act, Cap. 537,s. 14) and the action is not one which the court is empowered to hear pursuant to Part 11 of the First Schedule to Cap. 537. Therefore, the Primary Court lacked jurisdiction. The case should have been instituted before the Rent Restriction Board, and the court to which the matter should have been referred is the Resident Magistrate's (Rent Restriction (Amendment) (No. 2.) Act 1966, s. 11A).

47: RANGE CHACHA V. ELIAS NYIRABU [1967] HCD n.115

Plaintiff was divorced by his wife, and there was evidence that she had deserted him for another man whom she later married. Plaintiff sued her father for the return of cattle given as bride wealth, in the Nyamwanga Primary Court. The Primary and District Courts came to differing conclusions as to the number of cattle originally given, and as to the number which had been repaid by the defendant. The Primary Court, finding that six of thirty – eight cattle were as yet unreturned, ordered the return of only two, on the grounds that the marriage had lasted four years and a child had been born. The District Court ordered full repayment of the bride wealth, because the divorce had been "due to the fault of the wife." **It was held that:**

(1) Under Paragraph 58 of the Local Customary Law (Declaration) Order of 1963, "where a divorce was due entirely to the fault of the wife, no divorce can be granted unless the full bride price is repaid.

(2) Although the defendant might have been as much as "a month out of time in lodging his appeal" to the High Court, he had produced evidence that he was sick during that time, and the application would therefore be allowed.

(3) The record was remitted to the District Court for further evidence on the issue of the number of cattle originally given.

The court stated, Obiter; "(A) s the appellant has already been paid bride price a second time on the second marriage of daughter, it would only be fair that he should make full restitution of the bride price paid on the occasion of the first marriage.

48: JAYANT D. DESAI V. HASHI WARSAMA [1967] HCD n.171

An Asian doctor sued defendant, a Somali, for house rent and medical fees. The Primary Court entered an ex parte judgment in his favour. The District Court ruled that the Primary Court proceedings were a nullity, since that court had no jurisdiction, recovery of rent being a matter for the Rent Restriction Board. Plaintiff argued that the Primary Court did have jurisdiction to hear the case as one involving "Customary law" since it is "a custom of people to lease houses and pay rent therefore." **It was held that:**

Customary Law cannot be the basis of any proceedings between parties "who meet on no common ground of legal procedure and jurisprudence." Appeal dismissed.

49: SAIDI RAJABU V. R.[1967] HCD n.184

Accused was convicted in a Primary Court of stealing and housebreaking. The District Magistrate upheld the conviction, one of his reasons being that the accused "was once convicted with similar offence in October, 1966. **It was held that:**

> This remark was "most improper". The fact of such a conviction should carry no eight in deciding a case on appeal. Conviction set aside.

50: ZEPHRIN MGABONA V. JONES KALUMUNA [1970] HCD n.12

The objector appealed a second time against attachment of his property in execution of civil proceeding made under rule 17 of the Magistrates' Courts (Civil Procedure in Primary Courts) Rules, 1964. The appellant, the objector in the proceedings in the lower courts, asserted that his property had been improperly seized by the court, in execution of a decree which the primary court had given in favour of the respondent Jones against the appellant's nephew, Martin s/o Andrea. The decree had been made in Kamachumu Civil Case No. 281/67 in which Jones, the present respondent, had sued Martin Andrea to recover a loan of Shs. 1515/-. By consent, judgment was given in favour of the present respondent Jones and it was in execution of this judgment debt that the property was seized which the present

appellant/applicant Zephrin in now claiming rightful belongs to him. The primary curt heard Zephrin's objection but decided that the property really belonged not to him but to the judgment debtor Martin. This decision was upheld by the district court on appeal but the district court noted in its judgment as follows:- "Although the primary court had no jurisdiction to try a case of such a debt of 1515/-, under s. 18 of Cap. 537 no revision can be entertained at this stage since the case was decided on 17.11.67 – now over 12 months. While I decline to distort the status quo, I shall deal with the matter in the form this application has been presented."

(1) It appears to be correct, as the appellant Zephrin urges in his petition of appeal, that the primary court had no jurisdiction to hear the civil case No. 281/67 which was a claim for recovery of a loan of Shs. 1515/-. Section 14(1) of the Magistrates' Courts Act, Cap. 537 sets out the jurisdiction of the primary courts. As was held by Mustafa, J. in the case of ENDWARD KALEMELA vs Muyebe Rwenjege, P.C. Civil Appeal No. 105 of 1967, the primary court was given jurisdiction under section 14(1) (ix) and (ii) in all proceedings of civil nature where the law applicable is customary law or Islamic law or for the recovery of civil debts, rent or interest due to the Republic, the Government or any municipal, town or district council, but was given no jurisdiction to entertain claims like a loan between private individuals. Since the decision in the last quoted case, section 14 of the Magistrates' Courts Act has been amended by the Written Laws (Miscellaneous Amendment) Act No. 50 of 1968. The amendment adds a new sub-paragraph (iii) to subsection (1) of section 14, giving additional jurisdiction to the primary courts in civil proceedings – "(iii) for the recovery

of any civil debt arising out of contract, if the value of the subject matter of the suit does not exceed one thousand shillings, and any proceedings by way of counter-claim or set-off therein of the same nature and not exceeding such value." "It would seem that the Written Laws (Miscellaneous Amendment) Act No. 50 of 1968 has not affected the position as explained by Mustafa, J., namely, that a primary court has no jurisdiction to entertain claims like a loan between private individuals, unless such a loan arises out of contract and does not exceed Shs. 1,000/-. However, the decision in Kamachumu Civil Case No. 281 of 1967 was by consent. No application to set it aside was made. The district court was therefore justified in holding that it could not after 12 months revise the matter and therefore was right to uphold the primary court's decision which dismissed the respondent Zephrin's objection to the execution proceedings." (2) "Appeal dismissed."

51: NKAILE TOZO V. PHILLIMON MUSA MWASHILANGA [2002] TLR 276

The respondent unsuccessfully sued the applicant for the recovery of land before Vwawa Urban Primary Court. He went on to loose on appeal to Mbozi District Court. Upon the dismissing the appeal the District Magistrate did not award costs to the appellant, who then appealed to the High Court against that order. **The High Court held that:**

(i) The granting of costs to the parties under Order 39, Rule 1 (1) of the Civil Procedure Code, is not an automatic award to the successful party but is in the discretion of the court.

(ii) When a party successfully enforces a legal right in no way misconducts himself, is entitled to his costs.

Cases referred to:

Njoro Furniture Mart Ltd v. TANESCO (1995) TLR 202

Naramma v Kotamma (1965) 1 and WR 433

Civil Service Company v. GSN Company (1903) 2 KB 756 C.A

Dering v Uris (1964) All ER 666

Oltway v. Jones (1955) All ER 5855

Jan Mohamed v Twentsche (1967) EA 287

52: BUSHANGILA NG'OGA V. MANYANDA MAIGE [2002] TLR 335

The respondent took his wife, Mirembe Sato, to a local medicine-man, the appellant, for treatment. Having performed his rituals, the appellant told the respondent that the respondent had an omen and that he should leave his wife alone at the appellant home undergoing treatment and should not return there as the presence of his omen would cause death to his wife. The respondent complied and left his wife at the appellant's home. Thereafter the respondent used to request his elder brother to take maintenance at the appellant home. After six months the respondent, now suspicious, went to appellant's home; he found his wife taking part in a local dance conducted by the appellant. Married woman, it was stated, do not take part in a said dance. When requested to go back to her husband, Mirembe Sato refused,

preferring to stay at the appellant's home. The respondent then successful sued the appellant for damages for enticing the respondent's wife. The trial court awarded TZS 200, 000 in damages. The appellant unsuccessfully appealed to the District Court. **On further appeal, the High Court held that:**

(i) There was ample evidence to show that the appellant did entice the respondent's wife and there was nothing in the record to suggests that the conduct of the respondent justified, or was an excuse for his spouse leaving the matrimonial home;

(ii) It is settled that in the absence of misdirection or misapprehension of evidence, an appellate court should not interfere with concurrent findings of fact of the two lower courts; in this case there was no misdirection or misapprehension of evidence and therefore no justification for interfering with the findings of facts of two lower courts.

(iii) The damages awarded were not so high as to lead to the conclusion that a wrong principle was used in assessing the damages.

53: PETER LOILUDIE V. MEYAN MBAYO OTHERS [2002] TLR 68-69

The respondents were convicted of an omission to take reasonable care of their dogs before the Enaboishu Primary Court. The dogs were said to have bitten the appellant's cow to death at night. They appealed to the District Court of Arusha where the appeal was allowed. The appellant, dissatisfied,

appealed to the High Court. The contentious issues were identification of dogs in question. **On further appeal, the High Court held that:**

(i) the evidence was not sufficient to establish conclusively that the dogs which the appellant saw that night belonged to the respondents.

(ii) since it was dark, more positive evidence of identification should have been given to the appellant, especially whether the conditions that night allowed for proper identification, such as whether the torch light used bright enough to allow for correct I identification, whether the dogs had any special marks or whether he was so familiar with them as not to mistake them at any time.

54: SAMSONI MWAMBENE V. EDSON JAMES MWANYINGI [2001] TLR 1

The respondent sued the appellant for return of a piece of land before the Primary Court of Masebe. The primary court unanimously found the land in dispute was the property of the deceased father of the respondent, and therefore should be returned to the family of the respondent as its share of inheritance of the estate of the father. But it ordered the respondent to pay the appellant compensation of TZS 40, 932 520 for developments and expenses incurred on the land as condition of taking possession the shamba. The respondent was aggrieved and appealed to the District court of Rungwe district at Tukuyu. The District Court allowed the appeal and ordered the appellant to vacate the land in dispute for the respondent unconditionally. The appellant then appealed to the High Court challenging District Court decision. **It was held that:**

(i) the appellant was an invitee *ex gratia* of James on the land in dispute. As this court has consistently held no invitee can exclude his host whatever the length of his occupation.

(ii) with respect to compensation, it would be unfair to compel the respondent to pay any compensation for development affected after the death of James, and James had not permitted them .

Cases referred to:

Makofia Merianangа v Asha Ndisia (1969) HCD n. 204

Swalehe v Salim (1972) HCD n. 140

55: SOMOE NAKUWA V. SAID ABDALLAH NAKUWA [2001] TLR 175

The appellant and the respondent who were married in 1973 had their marriage dissolved by Lindi Primary Court in 1996. On top of the order for division of matrimonial assets the court also ordered the respondent to pay the appellant TZS 500,000 as the compensation. The respondent aggrieved with the compensation order, appealed to the District Court. The District Court allowed the appeal and set aside the compensation order. The appellant aggrieved by the order of the first appellate court appealed to the High Court for the restoration of the compensation order**. The High Court held that:**

(i) The compensation order of TZS 500,000 had no legal backing and was properly quashed by the first appellate court.

56: CHAIRMAN OF KYANGALA VILLAGE V. MOSES S/O MWAMALALA AND 21 OTHERS [2001] TLR 232

The appellant instituted a suit in Primary Court and lost. His appeal to the District Court was also unsuccessful and he appealed further to the High Court. At the trial only one out of 22 defendants give evidence and on appeal to the High Court it was argued for the appellant that the courts below were wrong to find for the 22 defendants while 21 had offered no defence and the first defendant who gave evidence had not obtained or applied for an order to act as a legal representative of his co-defendants. **The High Court held that:**

(i) The provision of Order 1, Rules 8 and 12 of the Civil Procedure Code, 1966 relating to representative suit do not apply to the defence and the Civil Procedure Code, 1966 does not apply to proceedings in primary courts;

(ii) Civil proceedings in Primary Courts are governed by Primary Courts Civil Procedure Rules, 1964, GN no. 310 of 1964 which make no provision for representative suits;

(iii) According to rule 26 (1) of Primary Courts Civil Procedure Rules when only one or some of many co-defendants appear at the hearing, the case may proceed to conclusion and the court shall make such order as it thinks fit, provided that all defendants were served;

(iv) As all the defendants had been served in this case the trial court committed no error.

57: EMBASSY MABEJA V. LUGODEJA LUGUSHWA [2001] TLR 293

In December 1997 the appellant instituted a claim for arrears of maintenance of 4 children of his sister, who was separated and later divorced from her husband, from 1982 to 1995. The Primary Court granted the claim. The district court revised the proceedings declared the grant null and void on the ground that the claim was time barred under the Customary Law (Limitation of Proceeding) Rules 1963 (G.N 311/1964). **On appeal to the High Court, it was held that:**

(i) A claim for maintenance of infant children is not a claim under customary law but a claim based on section 29 of the Law of Marriage Act 1971;

(ii) As the appellant maintained the children from 1982 to 1995 and instituted proceedings for recovery of arrears of maintenance in December 1997, and section 135 provides for a three years limitation period for the same, the arrears of maintenance for the year 1995 are not time barred.

58: ABDALLAH S MKUMBA V. MOHAMMED ILILAME [2001] TLR 326

This was a second appeal by the appellant after being unsuccessful in the Primary Court as well as in the District Court. The appellant was claiming ownership of the piece of land. The parties' advocates who appeared before the High Court also appeared for the parties in the District Court.

When the matter came for hearing, Mr. Rweyemamu, the learned advocate for the respondent, raised a Preliminary Objection to the effect that the appeal was incompetent because the petition of appeal was not accompanied by a copy of the decree being appealed against. This, learned counsel submitted, was contrary to Order XXXIX, Rule 1 (1) of the Civil Procedure Code. Secondly, the same advocate, surprisingly, submitted that the judgment of the Primary Court (which he had defended in the District Court) offered rule 3 of the Magistrates' Court (Primary Courts) (Judgment of Court) Rules 1987 in that its judgment had been signed by the magistrate only. On the merit, learned counsel for the appellant submitted that the judgment of the District Court was based on hearsay evidence. **It was held that:**

(i) Appeals to the High Court in relation to matters originating from Primary Court are governed by the provision of section 25 (3) of the Magistrates' Courts Act 1984 and are by way of petition of appeal;

(ii) There is no legal requirement that a petition of appeal must be accompanied by a copy of the decree in appeals originating in Primary Court;

(iii) The judgment of the court was signed by the Magistrate and one of the assessors and so formed the judgment of the court. Rule 3 of G.N. Number 2 of 1987 was therefore, fully complied with.

Case referred to:

HJ Stanley and Sons v. Ally Ramadhani Kunyamele [1988] TLR 250

59: MWANAHAWA HEMED V. RASHID KULOMBA [1999] TLR 21

The appellant had petitioned the Primary Court for a Decree of Divorce due to conflicts in her marriage with the respondent. The primary Court unanimously granted the petition and dissolved the marriage. The respondent successfully appealed to the District Court. The appellant appealed further to the High Court**. It was held that:**

(i) According to section 101 of the Law of Marriage Act 1971, no person shall petition for divorce unless he/she has first referred the matrimonial dispute to the Marriage Conciliation Board and the Board has certified that it has failed to reconcile the parties;

(ii) section 101 (c) of the Law of Marriage Act 1971 provides that a party cannot be compelled to attend before the Marriage Conciliation Board but the effect of refusal or failure to attend is to allow the other party to proceed to petition for divorce without the Board's certificate;

(iii) section 107(1) of the Law of Marriage Act 1971 requires the court, in determining whether or not a marriage is irreparably broken down, to have regard to all relevant factors regarding the conduct and circumstances of the parties;

(iv) to establish that a marriage is irreparably broken down, the court may accept evidence to show any of the factors mentioned under section 107 (2) of the Law of Marriage Act 1971, which mentions willful neglect as one of the factors;

(v) there was willful neglect on the part of the respondent.

60: JUMA RASHID NANYANJE V. SHEKHE FARISI [1999] TLR 29

Farisi Mbwana and his wife jointly owned a house. After the death of the wife the husband sold the house to the appellant for TZS 15 000 without informing his five children. One of the children successfully filed a suit in a Primary Court to recover the house on the ground that their father could not validly sell the house which he jointly owned with their mother. An appeal to the District Court challenging, among others, the jurisdiction of the Primary Court was not successful. **A further appeal was made to the High Court where it was held that:**

(i) the District Court Magistrate erred in holding that the Primary Court had pecuniary jurisdiction to entertain this matter by virtue of provision of section 18 (1) (a) (ii) of the Magistrates' Courts Act 1984;

(ii) Since Farisi Mbwana and his late wife, the mother of the respondent were joint owners of the house during her lifetime then, upon her death, and in the absence of evidence that she had bequeathed her share in it to some other person, property in the house devolved upon the husband;

(iii) Since upon the death of the wife property in the house devolved upon the husband, he could deal with it as he wanted and, therefore he could dispose of it by sale;

(iv) The sale of the house by Farisi Mbwana to the appellant was valid.

61: KIJAKAZI MBEGU AND FIVE OTHERS V. RAMADHANI MBEGU [1999] TLR 174

After the High court has ordered a re-trial of a Probate and Administration Cause, the respondent lodged his application for grant of letters of administration in the Primary Court. Afraid that he might not get justice from the trial magistrate the respondent prayed that another magistrate try the case. Instead of acting as requested, the District Court decided the transfer the case to itself. While the case was before the District Court the appellants lodged a caveat against appointment of the respondent as administrator. Without giving a hearing to the appellants, the District Court decided the case in favour of the respondent. On appeal the decision of the District Court was challenged on a number of grounds, including failure of the court to act according to the wishes of clan members. **On further appeal to the High Court it was held that:**

(i) The District Court erred in granting letters of administration to the respondent while a caveat was in force;

(ii) the District Court erred in law by not giving to the appellants right to be heard;

(iii) It was an error on the part of the District Court to ignore the order of the High Court to have the case tried before another magistrate, i.e. another primary Court Magistrate;

(iv) It was wrong for the District Court to transfer to itself a matter that involve Islamic law, since the jurisdiction in civil proceedings

where customary law or Islamic law applies is vested to the Primary Court as provided under section 18 (1) (a) (ii) of the Magistrates' Courts Act 1984 read together with rule 1 of the Fifth Schedule to the Act;

(iv) There is nowhere in the Magistrates' Courts Act 1984 a requirement for the court to collect clan views before a grant of letters of administration is made.

62: SAMWELI MOYO V. MARY CASSIAN KAYOMBO [1999] TLR 197

The parties to this appeal were granted divorce by the Primary Court which nevertheless declined to order division of matrimonial assets as it found that the assets were not matrimonial property. The District Court, on appeal by the respondent, ordered division of the assets and also ordered maintenance to be paid to the respondent. **Upon further appeal to the High Court, it was held that:**

(i) under section 114 (1) the Law of Marriage Act 1971 the court may order the division of assets only if the assets are matrimonial assets acquired by the parties during the marriage and through their joint efforts;

(ii) As the assets in this case were acquired neither during the marriage nor through the joint efforts of the parties, the District Court erred in ordering division of those assets;

(iii) As the order for maintenance was never asked for, and no enquiry was made into the means of the appellant about his ability to pay, and the divorce did not have the undesirable effect of pushing the respondent into any particular hardship, the order for maintenance was improperly given by the District Court.

Case referred to:

A.M. Kimweri v. Yusuph Athumani, [1970] HCD n. 119

63: NDIZU NGASA V. MASISA MAGASHA [1999] TLR 202

The respondent was acquitted of a charge of causing actual bodily harm to the appellant. On appeal to the District Court, the Acquittal was upheld on the ground that the Appellate court could not fault the court of first instance because the assessment of evidence was based on credibility of witnesses. **On second appeal to the High Court, it was held that:**

(i) The first appellate court has a duty to re-assess the evidence of the trial court;

(ii) Had both the Lower Courts properly directed themselves on the evidence of the appellant, of PW2 the ten-cell leader, and on the PF.3 report, these would have suffice to arrive at a conviction.

Case referred to:

R v. Muhuzi Zaidi and Another (1969) HCD 249

64: TALIAN LANGOI V. MUSEE LOSERIAN [1999] TLR 379

Among his grounds of appeal the appellant criticized the trial court for calling its own witness on top of those called by the parties to the suit. **It was held by the High Court that:**

(i) It was not necessary for the trial court to take it upon itself to call witnesses.

(ii) The trial court's decision was based on all the evidence which was adduced for the parties at the trial.

Cases referred to:

Joseph Marco v. Pascal Rweyemamu (1977) LRT n. 59

Barka Said Salim v. Mohamed Said (1970) HCD n. 95

Salehe Mahamburi v. Naseni Mrinda (1969) HCD n. 276

65: MATHIAS KATONYA V. NDOLA MASIMBI [1999] TLR 390

The appellant filed a suit in a Primary Court for recovery of clan land from the respondent more than fourteen years after the cat complained of took place. The trial began before the magistrate sitting with two assessors but on subsequent hearings the magistrate sat with two assessors one of whom had not taken part on the first day of the trial. This new assessor was the first one to give his opinion with which the original assessor concurred after the magistrate had summed up the case to them. The trial magistrate wrote the

judgment of the court agreeing with them. He signed the judgment but none of the assessors did. **It was held that:**

(i) As the land was held under customary law the limitation period for its recovery was twelve years and, therefore, the suit was time barred;

(ii) The substitution of an assessor or assessors during a trial is an irregularity;

(iii) An assessor who has not heard all the evidence in a trial is incompetent;

(iv) A Court on Appeal will not reverse or alter a decision of the Lower Courts because of irregularity in the proceedings unless such irregularity has in fact occasioned a failure of justice;

(v) It is evident that the participation of a stranger influenced the result and there was therefore a failure of justice;

(vi) A trial magistrate is required to consult assessors and not sum up the case to them before obtaining their opinion;

(vii) It is mandatory for the magistrate and assessors to all sign the judgment and failure to do so was a fatal irregularity.

Cases referred to:

Ezizeus Rutakubwa v. Jason Angelo, Civil Appeal no. 21 of 1988 (unreported)

Joseph Kabni v. Regina, 21 E.A.C.A 260

Kabulofwa Mwakalile and 11 Others v. R (1980) TLR 144

66: DADI SAIDI KWANGA V. NURDIN AKACHAPA [1999] TLR 398

The respondent contracted a civil marriage with Joane Reveta. Twenty four years later the respondent issued Joane with a talak and on the same day, matrimonial properties jointly acquired were divided. Five months later, the appellant and Joane agreed to contract a civil marriage and registered the intention at the District Commissioner's office. Three months later, the respondent successfully sued the appellant for adultery damages. The appellant unsuccessfully appealed to the District Court. Hence the present appeal. **It was held that:**

(i) Civil marriages are recognized by the provisions of section 29 of the Law of Marriage Act, 1971, Chapter 71

(ii) Although the issuance of a talak is evidence that a marriage has broken down, it does not amount to a dissolution of that marriage; under the Law of Marriage Act, only courts of law can dissolve a lawfully contracted marriage in the absence of such a divorce decree in this case, the marriage between the respondent and Joane was still in existence, and so anybody having an affair with her commit adultery;

(iii) adultery is a matter of fact and so can be established by direct or circumstantial evidence; there was insufficient evidence to prove to a degree of a reasonable probability that the appellant and Joane had lived together either as lovers or as "husband and wife"

(v) there was no evidence that the intended marriage between the appellant and Joane was finally contracted; mere registration of an intention to marry cannot be sufficient evidence of adultery.

Case referred to:

Gai Lipenzule v. Sumi Magoge (1983) TLR 289

67: GREGORY RAPHAEL V. PASTOR RWEHABULA [2005] TLR 99

This is a second appeal from a case that originated in the Primary Court of Nkwenda. The first appeal was lodged in the District Court of Karagwe whose judgment was delivered on 6 July 2000, but the Memorandum of Appeal to the High Court was lodged in the District Court on 15August 2000 vide section 25(3) of the Magistrates' Courts Act 1984. 1984. In admitting the appeal the judge doubted whether the appeal was filed in time. The advocate for the appellant contended that the appeal was filed within time in view of the provisions of sections 2, 19(2), 43(f) and 46 of the Law of Limitation Act 1971 which, he argued, was the law applicable and not the Magistrates' Courts Act 1984. **It was held that:**

(i) The combined effect of sections 46 and 43(t) of the Law of Limitation Act 1971 is that the Act is not applicable where there is a clear time limit in other written laws and that such other time limits in other written laws are deemed to have been made by this law; accordingly, as section 25(l)(b) of the Magistrates' Courts Act 1984 clearly states the time limit for one to appeal to be 30 days, that time is deemed to be provided for by the Law of Limitation Act 1971;

(ii) section 19(2) of the Law of Limitation Act 1971 speaks about exclusion of the time taken for obtaining a copy of a decree or order after delivery of judgment but the section does not mention the judgment itself; accordingly, obtaining a copy of judgment is not one of the things for which time may be excluded: *expressio unius exclusio alterius;*

(iii) Attachment of copies of decrees and judgments is a condition precedent in instituting appeals originating from District Courts and courts of resident magistrates, but for appeals in matters originating from Primary Courts there is no such requirement and the filing process is complete when the petition of appeal is filed upon payment of the requisite court fees; accordingly, the appeal in this case is time barred as time started to run after the date of delivery of the decision of the District Court;

(iv) When hearing appeals originating from Primary Courts the law applicable is the Civil Procedure (Appeals in Proceedings originating in Primary Courts) Rules 1963 (G.N. 312/1964).

68: TATU KIUNGWE V. KASSIMU MADAI [2005] TLR 403

The appellant Tatu Kiungwe, complained to village authorities and later to police that her money was stolen from her. The respondent, Kassimu Madai was the suspect. He was prosecuted in a Primary Court but was later acquitted. The respondent in turn sued the appellant for TZS. 462, 600 for malicious prosecution. After evaluating the evidence, the trial Primary Court

dismissed the respondent's claim on finding that it was not established that the appellant had prosecuted the respondent maliciously. The respondent appealed to the District Court which reversed the decision of the trial court and awarded the respondent TZS. 300, 000 as damages. The appellant was dissatisfied hence this appeal. **Hence it was held that:**

> (i) On the evidence adduced, the trial court was satisfied that the appellant did not act maliciously in setting in motion the criminal proceedings and in reversing the decision of the Lower Court, the first appellate court wrongly allowed itself to be influenced by the decision of a Criminal Court which did not determine the issue whether or not the respondent was maliciously prosecuted by the appellant;
>
> (ii) The decision of a Criminal Court is only relevant to determine the question as to whether or not the respondent was acquitted. Considering the standard of proof required in civil and criminal matters, the first appellate court must have slid into a fundamental error by disregarding the decision of the trial court in the civil matter without assigning reasons.

69: EXPEDITO DAUDI CHUNGA V. NSOMBO AND CO. LTD [2004] TLR 319

The Primary Court appointed the appellant administrator of the estate of the late Angelo Daudi Chunga. But before the letters of administration had been filed, the beneficiaries unanimously consented that the deceased's house be sold: The house was then valued at TZS. 9 500 000 and the Trial Court

ordered the respondent to auction the house accordingly. The respondent sold the house at TZS. 4 000 000 and the Trial Court endorsed the certificate of sale for that price. Aggrieved, the appellant field an application for revision in the District Court but was unsuccessful, hence this Appeal. **It was held that:**

(i) No sale other than that by public auction can be made without the express permission of the Court, and it was highly improper for the Court broker to sell the house at a price lower than the reserved price without obtaining an endorsement from the Court;

(ii) The applicable law governing execution proceedings in Primary Courts is the Magistrates' Courts (Civil Procedure in Primary Courts) Rules 1964, GN 310 of 1964, and the statutory period of notice is 30 days.

Cases referred to:

(1) In the Matter a/the late Mohamed Kisawaja, High Court of Tanzania at Dar es Salaam, Probate and Administration Case Number 65 of 1992 (unreported).

70: SEKUNDA MBWAMBO V. ROSE RAMADHANI [2004] TLR 439

The appellant was a wife of the deceased who died intestate. The respondent is the mother of the deceased. During the subsistence of their marriage the appellant and her deceased husband were not blessed with any issue. However, the deceased had four children born of different mothers,

recognized by the deceased's family and the appellant, and all along living with the respondent. Before the Moshi Urban Primary Court, the respondent and appellant were appointed joint administrator of the Estate of the deceased. The appellant was dissatisfied and appealed to the Moshi District Court which struck out the appellant's appointment and confirmed the respondent's appointment, hence this appeal to the High Court.**It was held that:**

(i) An administrator of an estate of a deceased person is not supposed to collect and monopolize the deceased's properties and use them as his own and/or dissipate them as he wishes but he has the unenviable heavy responsibility, which he has to discharge on behalf of the deceased, of distributing the estate to beneficiaries impartially.

(ii) An administrator may be a widow/widows, parent or child of the deceased or any other close relative; if such people are not available or if they are found to be unfit in one way or another, the Court has the power to appoint any other fit person or authority to discharge this duty.

71: MUSA MWALUGALA V. NDESHEHOTA [1998] TLR 1

The appellant was ordered by the primary court to pay Shs.900/= as damages for adultery. His appeal to the district court was unsuccessful. He appealed further to the High Court where **it was held that:**

i) A man's right to have sexual intercourse with a woman who had been his wife in the past end with the dissolution of his marriage to

her; by having sexual intercourse with the woman after the dissolution of marriage with her, and after she had re-married the respondent, the appellant committed adultery;

ii) Damages for adultery are always compensatory only, not exemplary or punitive, and the grounds upon which they may be awarded are the actual value of the wife lost, compensation to the husband for the injury to his feelings, to his honour and hurt to his family life;

iii) The conduct of the adulterer, as well as the character and conduct of the husband and that of the wife are all relevant in assessing damages for adultery.

Cases referred to:

(1) Butterworth v. Butterworth and Englefield [1920] P.126

(2) Davies v. Powell Duffryn and Associated Collieries [1942] A. C 601

72: SIMON KAKALA V. PATRICIA LWEKAMWA [1998] TLR 187

The applicant sought leave to appeal to the Court of Appeal in a matter originating from a primary court. The parties were in agreement that it was necessary to have a certificate that there was a point of law involved in the intended appeal. But they differed about the time in which to apply for such certificate, the respondent contending that it was 14 days while the applicant contended that there was no time limit. **It was held that:**

Leave to appeal has to be sought under s. 5 (1) of the Appellate Jurisdiction Act 1979 within 14 days but because the matter originates

from the primary court, the application for leave cannot be made without there being an application under s.5 (2) (c) of the same Act for a certificate that a point of law is involved in the intended appeal; therefore, an application for that certificate is subject to the same time frame as an application for leave to appeal.

73: ASHA SHEMZIGWA V. HALIMA SHEKIGENDA [1998] TLR 254

The appellant successfully sued the respondent in the primary court for recovery of a piece of farmland. The district court reversed that decision, hence this appeal. The appellant challenged the validity of the oral will by which her deceased husband was said to have given the land in dispute to his daughter, the respondent, born out of wedlock by another woman whom he never married, saying it offended both Sambaa customary law and Islamic law on wills. She contended that the respondent could only have been given the piece of land that was being used by the deceased himself, not land used by either of his wives. **It was held that:**

(i) Were the parties invoking Sambaa customary law only to question the validity of the will for want of witnesses, the contention of the appellant that such deceased's will was invalid for want of her presence and other requisite witnesses would have found support by this court as per the requirements of rules 5 and 11 of the Local Customary Law (Declaration) Order 1963 (GN 436/1963), Second Schedule;

(ii) The rules of Islamic Law are said to be immutable and they require no special formality in making a will; therefore, the appellant's contention challenging the oral will of her deceased husband for want of a proper witness cannot be supported by the court;

(iii) It is a standing principle of customary law that in a household it is the head of the family, in this case the husband, who owns land, is the members of his family, being wife or wives and dependent children who may work on the farms, do hold usufructuary rights only over such farms;

(iv) The deceased husband, having been the legal owner of all the farms allocated to his wives, was entitled to parcel off any piece of such lands and allocate it as he did, by way of bequest to the respondent.

74: CECILIA MSHAMU V.DICK KAWOGA [2001] TLR 318

The respondent had petitioned for divorce and division of property before Kisarawe Primary Court. At the end of the trial the magistrate held that no marriage existed between the parties as the respondent had no capacity to marry since her monogamous marriage to Victoria Kagali contracted in 1970 had never been dissolved. The court however found that each of the parties was entitled to a share in the property acquired during their cohabitation and out of their joint ventures. The appellant, aggrieved by the holding that there was no marriage, appealed unsuccessfully to the District Court. Not being satisfied she appealed to the High Court, with six grounds of appeal. There

was evidence at the trial from both the appellant and her sister that the respondent had a wife. The appellant further admitted that she had married one Hemed Mkulo in 1979. The first, second, fourth and six the grounds were either directed to the validity of the marriage certificate or failure by the District Court to hold that the appellant and respondent were husband and wife. The third and fifth grounds involved the division of property. **The High Court held that:**

(i) So long as the marriage between the respondent and another woman remained undissolved, the respondent had no capacity to marry the appellant;

(ii) The respondent and the appellant lived in concubinage;

(iii) The division of the property as per concurrent findings of the two courts below cannot be faulted.

75: DANIEL MASALU V. MUSSA SHADRACK [1987] TLR 35

The appellant Daniel s/o Masalu lost in the suit in which he claimed damages of five head of cattle for adultery against the respondent Mussa s/o Shadrack. It was at Magu Urban Primary Court. The appeal to the Magu District Court was equally unsuccessful hence this appeal. Thus, in this appeal the appellant was appealing against the decision of lower courts in not awarding him damages. The appellant claimed damages of 5 head of cattle for adultery against the respondent. He contended that he had paid 10,000/= as bride price and had waited to contract marriage. On his return

from Geita, he found the woman already married to the respondent. **It was held that:**

(i) Marriage under Sukuma customary law rites, involves handing over of a woman as a wife according to the rites stipulated under s.25 (5) (d) of the Law of Marriage Act, 1971;

(ii) respondent had a powerful defence against the accusation of adultery because when he married the woman he did not know, nor could he have known even by exercise of reasonable diligence that she was married in accordance with s.72(2) of the Law of Marriage Act, 1971.

Hence the Appeal was dismissed.

76: ATHANAS MAKUNGWA V. DARINI HASSANI [1983] TLR 132

This was an appeal against the judgment of the District Court at Kisutu in which the learned District Magistrate reversed the judgment of Kinondoni Primary Court and granted divorce to the respondent in this appeal. The Primary Court had dismissed the petition on the ground that there was no reference to the Conciliation Board prior to the filing of the suit. The District Court had found that the marriage between the parties had irreparably broken down and that exhibit 3 (which was in the form of a letter) in the trial court was a document from the Conciliation Board showing that the matter had been referred to them. The main issues on appeal were whether the marriage had broken down irreparably and whether the matter was referred

to the Conciliation Board prior to the filing of the petition for divorce in the Primary Court. **The High court held that:**

(i) Where the petition is founded exclusively on the petitioner's own wrong-doing in the absence of any special reason a divorce decree should not be granted;

(ii) Where there is no certificate within the meaning of s. 101 of the Law of Marriage Act, 1971 from the Conciliation Board indicating its failure to reconcile the spouses a petition for divorce becomes incomplete.

77: SAIDI MOHAMED V. ZENA ALLY [1985] TLR 13

The respondent petitioned for divorce on the ground of cruelty in a primary court where she was unsuccessful. On appeal to the district court she won whereupon the appellant decided to challenge the district court's ruling in the high court. It was established by evidence that the appellant was in the habit of beating the respondent. It was in evidence that the appellant threatened to kill the respondent. Moreover he, once stripped her naked before other people including her father-in-law. **The High Court held that:**

(i) Cruelty means wilful and unjustifiable conduct of such a character as to cause danger to life, limb or health, bodily or mental, so as to give rise to a reasonable apprehension of such danger;

(ii) the appellant's conduct of not only beating but also undressing his wife infront of other people generally, and her father-in-law in

particular was an embarrassing and distressing act of cruelty which inflicted considerable physical and mental torture to the respondent.

Hence the Appeal was dismissed.

Case referred to:

Russell v. Russell [1897] A.C. 395

78: MWINYIHAMISI KASIMU V. ZAINABU BAKARI [1985] TLR 217

The parties were married under Islamic Law and after living together for over 13 years, the respondent petitioned for divorce. The Primary Court dismissed the petition and her appeal to the District Court was also dismissed. But the District Court magistrate advised that because theirs was an Islamic marriage, the respondent could still obtain divorce by redeeming herself (kujikhului) by returning the dowry which the appellant had paid and that this would be in accord with s.107(3)(c) of the Law of Marriage Act, 1971. Subsequently the respondent applied to the court to redeem herself as advised, and her application was allowed ex-parte. The husband brought this appeal to the High Court. **The High Court held that:**

(i) In order for the court to make a finding that a marriage is irreparably broken down and to grant a decree of divorce as per s.107 (3) of the Law of Marriage Act, 1971, it must be proved firstly, that the parties were married under Islamic Law, secondly, that a Marriage Conciliation Board has certified its failure to reconcile the parties and, thirdly, that subsequent to the Board's failure to reconcile them one of

the parties has done an act which, under Islamic Law, is sufficient to terminate the marriage;

(ii) in order for s.107 (3) of the Law of Marriage Act, 1971, to come into play, all the three things must be proved to the satisfaction of the court hearing the petition for divorce, and they must be proved before judgment is entered, not after;

(iii) while it was established to the satisfaction of the court before judgment was entered that the parties were married according to Islamic Law and that the Conciliation Board had failed to reconcile them, the third requirement, that any one of them had done an act sufficient to terminate the marriage under Islamic Law, was not so established;

(iv) even if the act of the respondent redeeming herself by returning the dowry could constitute an act to terminate marriage under Islamic Law, that act was legally ineffectual in this case because it was done after the court had pronounced judgment;

(v) as s.140 of the Law of Marriage Act, 1971, does not empower any court to compel a wife to live with her husband or a husband with his wife, an application for an order to compel the respondent to return to the appellant cannot be entertained.

79: BI HAWA MOHAMED V. ALLY SEFU [1983] TLR 32

The appellant and respondent were wife and husband respectively until the dissolution of their marriage by a court decree of the Primary Court of Ilala

District at Kariakoo, Dar es Salaam in 1980. In subsequent proceedings the Primary Court held that the appellant was not entitled to any share in the matrimonial assets as she was a mere wife and that the house was bought by the husband's money. On appeal to the High Court, the Primary Court's decision was substantially upheld. In this appeal the Court of Appeal of **Tanzania held that:**

(i) Since the welfare of the family is an essential component of the economic activities of a family man or woman it is proper to consider contribution by a spouse to the welfare of the family as contribution to the acquisition of matrimonial or family assets;

(ii) the "joint efforts" and 'work towards the acquiring of the assets' have to be construed as embracing the domestic "efforts' or "work" of husband and wife;

(iii) where a spouse commits a matrimonial mis-conduct which reduced to nothing her contribution towards the welfare of the family and consequential acquisition of matrimonial or family assets she or he would not be entitled to a share in the property.

Hence the Appeal was dismissed.

Cases referred:

1. **Zawadi Abdallah v. Ibrahim Iddi** [1981] T.L.R. 311

2. **Rukia Diwani Konzi v. Abdallah Issa Kihenya** Matr. Cause No. 6 of 1971[1983] TLR 33

3. **Bateman v. Bateman** [1979] FAM 25

4. **Iddi Kunganya v. Ali Mpate** [1967] HCD 49

5. **Egerton v. Brownlow** [1853] 4 HL Cas 196

6. **Martin v. Martin** [1976] 3 All ER 625

80: OMARI CHIKAMBA V. FATUMA MOHAMED MALUNGA [1989] TLR 39

The appellant and the respondent were husband and wife who were married according to Islamic Law. During the subsistence of their marriage the appellant and the respondent had acquired four houses, a coconut farm and a stock of animals. Matrimonial problems developed and the marriage was dissolved by an Urban Primary Court. The respondent was proved to have been living an adulterous life. Trial Court found that the properties were jointly acquired through their joint efforts and awarded two houses to the appellant and two houses to the respondent. The farm and stock were awarded to the appellant while the respondent was awarded Tshs.10, 000/= as her share of the farm and animals. Respondent appealed to the District Court which, inter alia, found that one of the houses was given as a gift to the respondent's mother and should not have been a subject of division. The appellant appealed to the High Court arguing, inter alia, respondent's alleged misconduct and mismanagement of property to be crucial in distribution of matrimonial property. **The High Court held that:**

(i) Where during the subsistence of a marriage either spouse or both spouses give matrimonial property to another as a gift, it is presumed

that such property has been permanently given to that other person unless there is evidence to the contrary;

(ii) the house given to the respondent's mother was not a matrimonial property and should not have been subjected to these proceedings. The District Court was right to exclude it from the list of matrimonial property;

(iii) although evidence in this case shows that respondent was of loose and immoral character both Islamic law and section 114(2)(a) of the Law of Marriage Act, 1971 provide that a divorced woman is entitled to, and does not forfeit her share, in the division of matrimonial property because of immoral or loose character;

(iv) misconduct by a spouse touching to the management of matrimonial property is a relevant factor when the issue of division of matrimonial property upon dissolution of marriage arises. The District Court had rightly awarded the respondent one house out of three.

Hence the Appeal was dismissed.

81: MOHAMED ABDALLAH V. HALIMA LISANGWE [1988] TLR 197

Marriage was declared irreparably broken down and thus dissolved by the trial court. The main issue was the division of the matrimonial house. Assessors and magistrate at the trial court had different views. In his determination, the District Court Magistrate accorded the award of the division of the house.Aggrieved, the appellant appealed arguing non-

participation on the part of the respondent in the construction of the house. **It was held by the High Court that:**

(i) The principle under the division of property under s.114 of Law of Marriage Act is one of compensation. Whether what is being compensated is direct monetary contribution or domestic services, it does not matter;

(ii) respondent's participation in clearing the site where the house was built amounted to her participation in its construction.

Hence the Appeal was dismissed.

82: DANIEL MLINGWA V. MWAJA MKOTYO [1997] TLR 39

The appellant had sued the respondent in the Primary Court at Dodoma for adultery, claiming seven head of cattle as compensation. The trial court held that the respondent had committed adultery with appellant's lawful wife and awarded three head of cattle as compensation. The District Court on appeal held that there was no valid marriage between the appellant and PW 2. In a further appeal, **the High Court held that:**

(i)That there was no serious dispute that there was a valid marriage contracted under customary rites between the appellant and PW 2;

(ii)That the magistrate who had sat in the first appeal had erred when he said that payment of a dowry was a necessary prerequisite to validate a marriage. Non-payment of dowry did not invalidate an otherwise valid marriage.

Hence the Appeal was allowed and decision of Primary Court restored.

Cases referred to:

1. **Lalata Msangawe v. Henry Mwamlima** [1979] LRT No 3
2. **Wilson Thomas v. Republic** [1979] LRT No 26

83: MOHAMED HASSANI V. MAYASA MZEE AND MWANAHAWA MZEE [1994] TLR 225

This was an appeal against the decision of the High Court that the appointment of one Mfundo Omari as an administrator of the estate of the late Mzee Risasi was void because it was done under Rule 2(b) and not under Rule 2(a) of the Fifth Schedule to the Magistrates' Courts Act, 1984, and thus he had no power to dispose the property of the deceased's estate and, therefore, his sale of the house to the appellant was null and void. It was argued by the appellant that the appointment was valid under Rule 2(b) because it was a replacement and not a first appointment. The Court of **Appeal of Tanzania held that:**

(i) Primary courts are empowered under Rule 2(a) of the Fifth Schedule to the Magistrates' Courts Act, 1984, to make first appointment of administrators of estate and Rule 2(b) of the same schedule for appointment of a replacement. Therefore the Judge was wrong to restrict the powers of Primary Courts to appoint administrators to Rule 2(a).

(ii) It is up to the person challenging the validity of appointment of an administrator by the court to show that the person so appointed does not have the required qualifications to administer the estate.

(iii) The administrator is not legally required to obtain consent of all the heirs before disposing of property or sale of a house.

Hence the Appeal was allowed.

Case referred to:

(1) **Aziz Daudi Aziz v. Amin Ahmed Ally and Another**, Civil Appeal No 30 of 1990 (unreported).

84: YUSUF SAME AND ANOTHER V. HADIJA YUSUF [1996] TLR 347

The appellants appealed against a decision of the court of the Resident Magistrate who had allowed the respondent's suit that she was the owner of certain property and had awarded her certain damages. It appeared that the property had belonged to the respondent's husband who had died in 1979. The deceased's sons had sold the property to the two purchasers who subsequently sold it to the appellants. The respondent applied for letters of administration in August 1991 in respect of the deceased estate and these were granted in February 1992. Armed with this grant the Land Office cancelled the two previous registrations and transferred the ownership to the respondent. At the trial the appellants had raised the question of limitation but the magistrate struck out the defence on the ground that it had not been pleaded earlier. **The High Court held that:**

(i) In terms of s 3(1) of the Law of Limitation Act it was immaterial whether limitation had been set up as a defence and the magistrate had accordingly erred in this respect.

(ii)The limitation period in respect of land, irrespective of when letters of administration had been granted, was 12 years and on this basis the respondent's claim was time-barred.

Hence the Appeal was upheld.

85: FANUEL MSENGI V. PETER MTUMBA [1992] TLR 109

The respondent was acquitted by the District Court of the offence of cattle theft. The appellant, owner of the cattle, aggrieved by the decision of the District Court appealed to the High Court. **It was held that:**

(i) This was not a private prosecution, rather a public prosecution conducted by the Director of Public Prosecutions, as such the complainant has no right of appeal - Section 378(1) Criminal Procedure Act No. 9 of 1985;

(ii) where the criminal case originates from the Primary Courts under section 20(1)(a) of the Magistrates' Courts Act No. 2 of 1984 the complainant or the Director of Public Prosecutions may appeal to the District Court and to the High Court against an acquittal in a public prosecution.

86: SAIDI ULEDI V. KALESI NGONELA [1997] TLR 195

The appellant appealed against his conviction in a primary court for criminal trespass in contravention of s 299(a) of the Penal Code and his sentence of Shs 1,000/= or three months' imprisonment. He contended on appeal that it had not been proved that he knew that the land belonged to the respondent. It appeared from the evidence that the land in question had been inherited by the respondent from his father who had died in 1957. In 1994 the respondent found the chairman of a village allotting the land to some of his villagers. The people occupying the land (of which the appellant was one) claimed it as their own and the case was heard in the primary court which upheld the respondent's claim. **It was held that:**

(i)The appellant's contention that he was unaware of the respondent's title could not be upheld he had in a manner of speaking been a party to the litigation in 1994 concerning the title to the land. It was inconceivable that this event would have missed his attention;

(ii)The elements of the offence created by s 299(a) had been duly proven.

Hence the Appeal was dismissed.

Case referred to:

1. **Saidi Juma v. Republic** [1968] HCD 158

87: SCOLASTICA BENEDICT V. MARTIN BENEDICT [1993] TLR 1

The appellant's husband died intestate in 1971. He was survived by two wives and a number of sons and daughters. The deceased left to his heirs substantial property including motor vehicles, farmland, cattle and houses. The administrators of the deceased's property distributed the property and the interests therein to the heirs in accordance with the guidance of the clan council acting under Haya customary law. None of the widows of the deceased inherited any property of the deceased; instead they were required to reside with and be maintained by their respective children according to Haya customary law. The respondent, one of the sons of the deceased by his first wife, was given, among other things, a house on plot Nos. 17 and 19 Block `D' in Bukoba township, in which the appellant, the second wife of the deceased had been living with her deceased husband. The only daughter whom the appellant had sired with the deceased was given, among other things, a farmland including a house in need of some repair at Kanoni Shamba.

The appellant filed a civil suit in the Urban Primary Court of Bukoba challenging the administration of the estate of her deceased husband, particularly in respect of the house on plot Nos. 17 and 19 Block `D' in Bukoba township. The defendants resisted the suit on the ground, inter alia, that the primary court had no jurisdiction on the subject-matter. The primary court overruled the defendants who successfully appealed to the District Court whose decision was confirmed by the High Court. The High Court, however, granted the appellant `liberty to pursue her claim' either in the District Court or the High Court. This liberty was not exercised. The

respondent, who was given the house on plot Nos. 17 and 19 instituted a suit in the Court of Resident Magistrate at Bukoba seeking, inter alia, to evict the appellant and her daughter from the suit premises. The trial court granted vacant possession to the respondent. The appellant's appeal to the High Court failed. On a further appeal to the Court of Appeal of Tanzania the Court upheld the decision of the High Court. In addition the Court considered when a court becomes functus officio and the question of jurisdiction of primary courts in administration of registered land. **It was held that:**

(i) As a general rule, a primary court, like all other courts, has no jurisdiction to overturn or set aside its own decisions as it becomes functus officio after making its decisions;

(ii)The only exception to this general rule includes the setting aside of ex parte decisions and reviews of decisions induced by fraud or misinformation;

(iii)While section 15(1)(c) of the Magistrates Courts Act 1963 (now s. 19 of the Magistrates' Courts Act 1984) did not specify the particulars relating to the administration of estates, the order of the Chief Justice published as Government Notice No. 320 of 1964 conferred jurisdiction on primary courts in matters of administration of estates regardless of whether the subject-matter is land registered under the Land Registration Ordinance, provided the applicable law is customary or Islamic law, other than matters falling under the Marriage, Divorce and Succession (Non-Christian Asiatics) Ordinance.

Hence the Appeal was dismissed in its entirety.

Cases referred to:

1. Julitha Mwaisunga (PC) Civil Appeal No. 38 of 1978 (unreported).

2. Scolastica B. Katanyebile (P.C.) Civil Appeal No. 11 of 1976 (unreported).

3. Munugwa Lutalamila and Two others v. Martha Lutalamila [1982] TLR 98.

88: VIOLET ISHENGOMA KAHANGWA AND JOVIN MUTABUZI V. THE ADMINISTRATOR GENERAL AND MRS. EUDOKIA KAHANGWA [1990] TLR 72

In an application for directions the High Court directed that the life style of the deceased at the time of his death was governed by the traditions, customs and practices of the Bahaya tribe to which he (the deceased) belonged, therefore, the law applicable in administering the distribution of the estate was the customary law of the Bahaya. The High Court further directed that since the first appellant was not lawfully married to the deceased because the previous monogamous marriage to the second respondent was still subsisting, the 2 issues of the deceased's cohabitation with the first appellant were illegitimate children who under the applicable Bahaya customary law did not legally qualify for distribution, because an illegitimate child cannot inherit from the father's side upon his dying intestate. On appeal to the Court of Appeal of Tanzania against the directions, **it was held that:**

(i) In administering the estate the Administrator-General does not have to appear in the Primary Court for any purpose because he is not

acting as an advocate representing a particular party. All that is required of him is to distribute the estate to all those who qualify for distribution. In case he runs into a difficulty he may turn to the High Court f or direction.

(ii) under paragraph 43 of the Local Customary Law (Declaration) (No.4) Order, 1963, G.N. No.436 as applied to the Bahaya tribe vide G.N.No.605 of 1963, an illegitimate child cannot inherit from the father's side upon his dying intestate;

(iii) a child as defined under the Law of Marriage Act, 1967 does not include an illegitimate child, thus the word "children" in section 129 (1) of the Law of Marriage Act does not include illegitimate children;

(iv) a putative father's obligation to his illegitimate children is personal and ends with his death. It does not survive him and cannot attach to his estate upon his dying intestate.

89: JACOB MWANGOKA V. GURD AMON [1987] TLR 165

The appellant is the father of a girl who was allegedly made pregnant by the respondent. The appellant had obtained judgement in his favour from the Primary Court which was successfully appealed against in the District Court on three grounds, to wit, that Primary Courts have no jurisdiction in tort cases; that expenses incurred by a parent in educating his child cannot be sued for in court if the child's education is terminated as a result of pregnancy; that a parent has no cause of action against a man who

fornicates with his daughter. The issue on appeal was whether the first appellate court erred in so holding**. It was held that:**

(i) Primary Courts have jurisdiction in all proceedings of a civil nature where the law applicable is customary law;

(ii) a customary tort is justifiable in Primary Courts;

(iii) damages for expenses incurred in educating a daughter who terminates her studies on account of pregnancy are not awardable.

Hence the Appeal was dismissed.

Cases referred to.

1. **Mpapayu v. Tusiliwa** [1972] HCD n. 229

2. **Halfani Saluum v. Halfa Kondo** [1969] HCD n. 181

90: FRANCIS ADOLF V. IBRAHIM MUSTAFA [1989] TLR 219

The respondent had in a written agreement pledged his shamba to secure a loan of shs.20, 000/= from the appellant. The agreement was duly witnessed. On failure to repay the loan the appellant sued seeking to realize the shamba.The Primary Court which heard the case decided in favour of the appellant. On appeal by the respondent the District Court found that the Primary Court had no jurisdiction to hear the case as provided by the Magistrate's Courts Act, 1984 because the loan of shs.20,000/= exceeded its pecuniary jurisdiction.

The second appellate court considered what law was applicable and whether the Primary Court had jurisdiction to entertain the case. **It held that:**

> The transaction between the parties was governed by customary law therefore the Primary Court had jurisdiction to hear the case based on customary law and not on the general principles of contract law.
>
> Hence the Appeal was allowed.

91: MOHAMED HASSANI V. MAYASA MZEE AND MWANAHAWA MZEE [1994] TLR 225

This was an appeal against the decision of the High Court that the appointment of one Mfundo Omari as an administrator of the estate of the late Mzee Risasi was void because it was done under Rule 2(b) and not under Rule 2(a) of the Fifth Schedule to the Magistrates' Courts Act, 1984, and thus he had no power to dispose the property of the deceased's estate and, therefore, his sale of the house to the appellant was null and void. It was argued by the appellant that the appointment was valid under Rule 2(b) because it was a replacement and not a first appointment. **It was held that:**

> (i) Primary courts are empowered under Rule 2(a) of the Fifth Schedule to the Magistrates' Courts Act, 1984, to make first appointment of administrators of estate and Rule 2(b) of the same schedule for appointment of a replacement. Therefore the Judge was wrong to restrict the powers of Primary Courts to appoint administrators to Rule 2(a);

(ii) It is up to the person challenging the validity of appointment of an administrator by the court to show that the person so appointed does not have the required qualifications to administer the estate;

(iii) The administrator is not legally required to obtain consent of all the heirs before disposing of property or sale of a house.

92: RASHID NKUNGU V. ALLY MOHAMED [1984] TLR 46

The appellant claimed a piece of land from the respondent. The Primary Court Magistrate framed only one issue, namely, to which party the disputed land belonged. The Magistrate then proceeded to sum up the case to the assessors who gave opinion in favour of appellant. The Magistrate entered judgment accordingly where after the respondent successfully appealed to the District Court. Appellant then brought this appeal. **It was held that:**

(i) As no evidence was adduced there was no basis for the summing up to the assessors' and the judgment that followed;

(ii) pleading which is all there was before the court are not evidence and cannot be the basis of a decision except where they amount to admissions which was not the case in the instant case;

(iii) the irregularity went to the root of the entire proceeding for, in effect, there was no trial at all.

93: JOSEPH LOMAYANI AND OTHERS V. MELEKIZEDECK MICHAEL [1997] TLR 192

The appellant appealed to the High Court from a decision of the district court which had ordered that a case which originated in the trial primary court and which was before the district court on appeal be tried de novo. The dispute between the parties concerned an alleged encroachment and after both parties had called witnesses the trial court visited the scene of the alleged encroachment and drew a sketch of it. The court decided the case mainly on the basis of its own observations during the visit to the disputed land. The district court held that the trial court had not followed the correct procedure regarding the visit to a locus in quo and nullified the proceedings and ordered a trial de novo. **On appeal, it was held that:**

(i) That the trial court had not so much failed to observe the necessary guidelines but rather that it had failed to discuss the evidence which had been adduced by the parties and given a judgment based on that evidence. The substantive complaint was that there was no judgment in law from the primary court;

(ii) If the appellate court believed that there was no judgment at all it should have nullified the judgment and remitted the case to the primary court with a direction that a judgment based on all the evidence which was before it be written;

(iii) If the appellate court found that there was a judgment but that it was unsatisfactory then it should have proceeded to consider the

other grounds of appeal and evaluate the evidence and come to its own conclusion;

(iv) The court cautioned that an order for a trial de novo should only be made in the clearest of situations.

Case referred to:

1. **Nizar M H Ladak v. Gulamali Fazal Jan Mohamed** [1980] TLR 29

94. AMINA BAKARI V. RAMADHANI RAJABU [1984] TLR 41

This was a suit for the custody of a child who was born after his parents were formally divorced. The appellant claimed that the child was sired by a person other than her former husband. The trial court refused to grant the respondent's claim for the reason that the appellant had named another person as the father of the child. On appeal the District Court reversed the decision and hence the present appeal. **Where it was held that:**

Whatever be the correct English expression of "children born in wedlock belong to the father", it provides no justification for denying the spirit of the customary rule from which Rule 175 derives, namely, the preservation of the sanctity and dignity of the marriage institution by refusing to recognise adultery, a trespass to the marriage, as taking precedence over and ousting the husband's rights.

Cases referred to:

1. **Richard Mapesa v. Rashid Bwana** [1978] LRT n.4.

2. **Mungasio Munchari v. Moseti Meremo** [1978] LRT n.6.

3. **Masuka v. Sigonjwe** [1971] H.C.D. n. 92.

4. **Mgowa Madolo v. Mgogolo Dododo** [1973] LRT n.7

95: HEMED S TAMIM V. RENATA MASHAYO [1994] TLR 197 (CA)

The appellant's third appeal follows from dissatisfaction with the decisions of the Primary, District and High Courts in which he had sought divorce and division of matrimonial assets in the form of a dwelling house which had been acquired in the course of cohabiting with the respondent for a period of eight years. In the Primary Court the respondent's claim was established and reliefs granted namely dissolution of the marriage and equal division of the dwelling house. But the presumption of marriage was found to have been rebutted by the District and High Courts. On further appeal to the Court of **Appeal held that:**

(i) Where the parties have lived together as husband and wife in the course of which they acquire a house, despite the rebuttal of the presumption of marriage as provided for under s 160 (1) of the Law of Marriage Act 1971, the courts have the power under s 160 (2) of the Act to make consequential orders as in the dissolution of marriage or separation and division of matrimonial property acquired by the parties during their relationship is one such order;

(ii) Having found that the parties were not duly married, the decision of the lower court regarding the dissolution of marriage is void.

Hence the Appeal was dismissed.

96: REPUBLIC V. NJANI HASSAN [1983] TLR 238

After sentencing an emaciated juvenile aged thirteen years to a total of 18 strokes in two different cases, the Primary Court magistrate forwarded the case file to a District Court for confirmation of sentence. The District Court, influenced by a medical report that the accused was of tender age and very weak reduced the sentence to 4 strokes. Before execution of the sentence medical evidence showed that the accused was anaemic, had a swollen spleen and that he was too weak to resist even the omnibus 4 strokes sentence. The District magistrate thinking that he had no power to interfere in the order made by himself forwarded the record to the High Court for appropriate revisional order.**It was held that:**

> Where a corporal sentence cannot be inflicted under section 15(1) of the Corporal Punishment Ordinance, Cap. 17, under section 16 the court that passed sentence may in its discretion either remit such sentence or sentence the offender to imprisonment.

97: KISESE MBUGHA V. ZAINABU SWALEHE [1991] TLR 90

The respondent was charged with stealing from her husband. The Primary Court convicted her, awarded a punishment of conditional discharge and ordered her to pay half of the stolen money to her husband i.e. Shs. 15,000/=.

The wife who after the theft began to live in separation appealed to the District Court protesting her innocence. The District Court quashed the conviction and sentence of the Primary Court on the ground that the respondent had a defence of "honest claim of right".

The second appellate court considered whether or not the respondent committed theft. The court also considered what constitutes a condition in a conditional discharge. **And held that:**

(i) Under section 264 of the Penal Code, Cap. 16, a husband may be guilty of stealing from his wife or a wife from her husband;

(ii) since the trial court was unanimous that the respondent had taken her husband's money and the District Court endorsed that view, the connection was inevitable;

(iii) under section 258 of the Penal Code, Cap. 16, anyone who takes away something under an honest claim of right is not guilty of the offence of theft. In the case at hand, the respondent had at no time claimed that she had taken the Shs. 30,000/= under an honest claim of right;

(iv) under Section 4(i) of the Primary Court's Criminal Procedure Code the condition for a conditional discharge ought to be that "during a period not exceeding one year the accused shall appear and receive sentence when called upon and in the meantime he or she shall keep the peace and be of good behavour". It was wrong for the trial court to order that the condition for discharge was that the accused pay her husband half of the stolen money.

98: HALIMA ATHUMANI V.MAULIDI HAMISI [1991] TLR 179

The appellant successfully applied for divorce at Utemini Primary Court in Singida District, against her husband, the respondent. She sought divorce on the ground of cruelty on the part of her husband. The trial Court was satisfied that the husband had treated his wife with cruelty and granted the application for divorce. The respondent successfully appealed to the District Court. The district magistrate reversed the decision of the Primary Court for two reasons. First, that as the couple was Islamic, the body that attempted to reconcile them had no jurisdiction as it was not an Islamic body.

Second, that the Marriage Conciliatory Board did not certify that it failed to reconcile the parties. The appellant appealed to the High Court. **Where it was held that:**

(i) The mere fact that the Board that reconciled the parties was not a Moslem Conciliatory Board did not render the reconciliation a nullity;

(ii) under section 101 (f) of the Law of Marriage Act the court may dispense with reference to a Marriage Conciliatory Board if it is satisfied that there are extraordinary circumstances which make reference to the Board impracticable;

(iii) the appellant had succeeded to prove that the marriage was broken down beyond repair.

Hence the Appeal was allowed.

99: JOHN KIRAKWE V. IDDI SIKO [1989] TLR 215

On 8/10/1986 the respondent's son eloped with the daughter of the appellant. On 23/8/1988 the appellant with some elders went to the respondent's home for negotiation about the bride price payable. There was evidence that the respondent collected his own elders for the bargain. It was eventually agreed that the bride price payable be 12 head of cattle, two goats and cash shs.2,650/=. The respondent agreed to pay six head of cattle and cash shs.2, 650/= on the spot as his first instalment. However he changed his mind later. The appellant successfully sued the respondent at Shirati Primary Court in Tarime District in a claim for payment of the agreed bride price. The Primary Court found as a fact that the respondent's son had married the appellant's daughter and so the respondent was obliged to pay bride price as agreed.

On appeal, by the respondent, the District Court of Tarime held that there was no marriage between the respondent's son and the appellant's daughter and so the question of payment of bride price did not arise. In addition, even if there was a marriage, no order for payment of bride price could issue as the parties had never agreed on the amount of bride price payable. The appellant appealed to the High Court. **Where it was held that:**

(i) That under Kuria customary law marriages contracted by elopement are recognized;

(ii) the fact that the respondent's son and the appellant's daughter had lived together for over two years as husband and wife raised the presumption of marriage which the respondent had failed to rebut;

(iii) to constitute a presumption of marriage three elements are necessary.

(a) that the parties have cohabited for over two years;

(b) that the parties have acquired the reputation of husband and wife; (c) that there was no formal marriage ceremony between said couple.

100: ROBERT ARANJO V. ZENA MWIJUMA [1986] TLR 207

The appellant had petitioned for divorce on the ground of his wife's desertion. The Primary Court granted the decree on the grounds of the respondent's desertion and her persistent denial of sexual intercourse to the appellant. The Court further ordered a division of the matrimonial assets and awarded a quarter thereof to the respondent wife. The appellant challenged the award to the wife on the ground that she was the cause of the breakdown of the marriage. **It was held that:**

Consideration of the conduct of the party who causes the breakdown of the marriage is relevant only in relation to the acquisition of the matrimonial assets not in relation to the breakdown of the marriage.

Hence the Appeal was dismissed.

Case referred to:

1. **Hawa Mohamed v. Ally Sefu**, Civil App. No. 9 of 1983.

101.MACHARIMA SAID MNYIKA V.RAMLA SAID MNYIKA, CRIMINAL APPEAL NO 37 OF 2016, CAT AT TANGA (UNREPORTED)

The appellant was charged, tried and convicted of fraudulently disposing of trust property contrary to section 314 (1) of the Penal Code (cap 16 RE 2002)by Mtae Primary Court. He was consequently sentenced to seven (7) years imprisonment and ordered to return the misappropriated properties of the deceases's estate.His appeal to the District Court of Lushoto against both the conviction and sentence was dismissed. Undaunted, he further appealed to the High Court which reduced the sentence that of seven (7) years to one of five (5) years imprisonment. Still aggrieved, he preferred the third appeal to the Court of Appeal of Tanzania.The Court of appeal, suo motu,raised the issue of jurisdiction i.e whether the trial primary court had jurisdiction to try, convict and sentence the appellant.**It was found that:**

> In terms of section 18 (1) (c) of the Magistrates' Courts Act, Cap 11 RE 2002 and its the first schedule, the trial Court had no jurisdiction to try the appellant upon a charge preferred under section 314 (1) of the Penal Code.It proceeded to declare all the proceedings conducted before the trial court and the two appellate courts a nullity.Subsequently, were quashed and orders thereon were set aside.The appellant was set free.

102. NELI MANASE FOYA V.DAMIAN MLINGA [2005] TLR 167

The respondent was the original plaintiff before Moshi Urban Primary Court, alleging that the appellant had altered the boundary of a plot by uprooting boundary trees. The respondent was successful, and appeals by the appellant both before the District Court and the High Court were not successful. She further appealed to the Court of Appeal which considered three grounds namely whether the Moshi Urban Primary Court had jurisdiction to try a suit over a piece of land located at Mbokomu, Old Moshi area; whether the court assessors gave their opinion; and whether the second appeal was rightly determined. The appellant challenged the jurisdiction of the Moshi Primary Court on the ground that the suit property was located in Moshi rural and therefore that the court that had jurisdiction was the Old Moshi Primary Court, Moshi RuraL The challenge on the role of assessors was premised on the fact that the magistrate did not record the opinion of the assessors.

Held: (i) Since the suit was instituted in a Primary Court in Moshi district, and since the property was situated in Moshi District, according to section 3(1) and (2) of the Magistrate's Courts Act 1984 the Moshi Urban Primary Court had jurisdiction to hear and determine the case;

(ii) Since assessors are members of the court and sign the judgment as such and not for the purpose of authenticating it or confirming it, they are neither required to give their opinions nor to have their opinions recorded by the magistrate;

(iii) There being no point of law raised in the second appeal and since the second appellate court found no reason to differ from both lower courts' findings of fact, the second appeal was rightly decided.

103: MOHAMED HASSAN V. MAYASA MZEE AND MWANAHAWA MZEE [1994]TLR 225

It was held that:-

The primary court has powers to appoint and replace administrator(s) under Rule 2(a) and (b) of the fifth Schedule to the Magistrate Courts Ac, repectively.

104: THE DISTRICT EXECUTIVE DIRECTOR TARIME DISTRICT COUNCIL AND THREE OTHERS V. SAMWEL MWERA SIYANGE, CIVIL REVISION NO. 3 OF 2014, CAT (UNREPORTED)

The Court of Appeal restated the procedure on how contempt of court should be handled. It observed four procedural due processes that guide courts when determining contempt of court proceedings. **Firstly**, the court should frame and record the substance of a charge of contempt of court alleged. **Secondly**, courts are required to read such charge to the accused, who should then be called upon to show cause, why he should not be convicted on the charge. **Thirdly,** the accused should be given a fair opportunity to reply. **Fourthly,** the record of the court should contain adequate note of the accused person's reply, if any, as well as the court's decision on the alleged contempt. For clarity, the Court restated the law that:

"…It has repeatedly been held by superior courts that when a court takes cognizance of an offence of contempt of court, ***it is essential that the court should frame and record the substance of a charge****,* ***read such charge to the accused*** ***who should then be called upon to show cause why he should not be convicted on the charge****; and* ***the accused should be given a fair opportunity to reply****. Besides,* ***the record of the court should contain an adequate note of the accused person's reply,*** *if any,* ***as well as the court's decision****. (See Joseph Odhengo s/o Ogongo v R., 21 E.A.C.A. 302.). In the present case, that procedure was totally disregarded; no charge was drawn up, let alone read over to the accused persons, and the accused persons were given no opportunity at all to say anything in reply. They were condemned unheard…….. ….. But where the basic principle of natural justice that a man must not be condemned unheard has been violated following such breach of procedure ought not be sustained, for such irregularity is fundamental and, therefore incurable.*

For these reasons, all the convictions for contempt of court are hereby quashed and all the sentences in relation thereto set aside." [Emphasis provided].